PART 10 – DEVELOPMENT IN RESIDENTIAL ZONES

Division A – Introduction to Part 10

Advice

Purpose of the advice

- *Each division of this part of the DCP begins with advice, principally aimed at prospective applicants for Council's approval of development.*

Finding the meaning of words and terms used in Part 10 of the DCP

- *When searching for a term defined by an environmental planning instrument referred in clause 4. b. refer to each of the following sources in turn, to locate the definition.*

  Step 1: Refer to the LEP's Dictionary.

  Step 2: Refer to State Environmental Planning Policy (Exempt & Complying Development Codes) 2008 – clause 1.5.

  Step 3: Refer to the Environmental Planning & Assessment Act 1979 – sections 1.4 and 1.5.

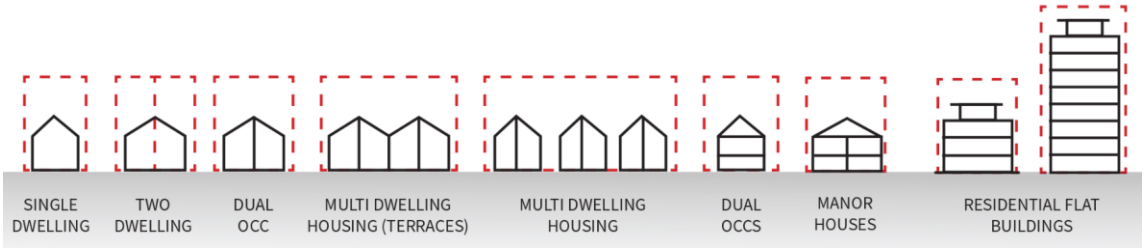
  Step 4: Refer to the applicable environmental planning instrument, when cited by other provisions of this part.

  Step 5: Refer to Glossaries in Planning for Bush Fire Protection, the Apartment Design Guide or the Low Rise Medium Density Design Guide. These guides contain definitions of words and terms and may be referred to if none of the above documents define the word or term sought.

- *Go to the **NSW Legislation website** to access the Act or the environmental planning instrument required. When the Act or instrument has been accessed, use the find function (Ctrl + F) to find the required term quickly.*

Application of Part 10

- *Part 10 applies to residential development, including the types shown in this diagram. The part also applies to residential components of mixed use development. Part 10 is divided into several divisions, each one provides guidelines for a certain type or types of residential development, and non-residential development permitted in the Residential zones and some of the Business zones in the Albury LGA.*



Area specific development plans

- *Division I contains area specific development plans, which apply to the land they define, in addition to other applicable provisions of the LEP and DCP.*

Diagrams & illustrations

- *A Schedule concludes Part 10, which contains a series of figures to assist in the interpretation of guidelines in each Development Guidelines Table, located in Divisions B to H.*

ALBURY DCP PART 10 – DEVELOPMENT IN RESIDENTIAL ZONES

1. Application

a. Part 10 applies to development permitted with consent, in these zones:

   i. R1 General Residential,

   ii. R2 Low Density Residential,

   iii. R3 Medium Density Residential,

   iv. R5 Large Lot Residential, and

   v. B1 Neighbourhood Centre, B2 Local Centre and B4 Mixed Use, residential development only.

b. Part 10 does not apply to exempt development or development permitted by a Complying Development Certificate.

2. Objectives of Part 10

a. Improve design outcomes for residential development in the Albury LGA.

b. Support application of development standards in Part 4 of the Albury Local Environmental Plan 2010 (the LEP).

c. Enable and provide guidance for preparing and assessing applications for development to which this part applies.

3. Objectives for development to which Part 10 applies

Objectives for development to which Part 10 applies complement the objectives of applicable zones in the LEP. The objectives of this part are to be considered by Council when a development application is determined, including the following objectives, to:

a. Support residential development contributing to Albury being a good place to live, being a place:

   i. That is connected to nature, with tree-lined streets,

   ii. That embraces sustainable design principles,

   iii. That is liveable and vibrant with an attractive and functional character, and

   iv. Where housing is affordable.

b. Ensure development is consistent with the objects of s.1.3 of the Environmental Planning & Assessment Act 1979 (the Act) and the aims of cl.1.2 of the LEP.

c. Enable development to be consistent with and contribute to the objectives of the zone in which development is proposed.

4. Interpretation

a. Paragraphs with the heading '***Advice***' are just that. They do not form part of this DCP.

b. Certain words and terms used in this part have the same meaning as defined by ss. 1.4 and 1.5 the Environmental Planning & Assessment Act 1979, relevant environmental planning instruments or design guides:

   i. State Environmental Planning Policy (Educational Establishments and Child Care Facilities) 2017 (Educational Establishments and Child Care SEPP),

   ii. State Environmental Planning Policy (Affordable Rental Housing) 2009 (Affordable Rental Housing SEPP),

   iii. State Environmental Planning Policy (Exempt & Complying Development Codes) 2008 (Codes SEPP),

iv. State Environmental Planning Policy (Housing for Seniors or People with a Disability) 2004 (Seniors SEPP),

v. State Environmental Planning Policy No 65 – Design Quality of Residential Apartment Development (SEPP 65),

vi. State Environmental Planning Policy No 64 – Advertising and Signage (SEPP 64),

vii. Albury Local Environmental Plan 2010 (the LEP),

viii. Planning for Bush Fire Protection 2019, NSW Rural Fire Service (RFS guidelines),

ix. Low Rise Medium Density Design Guide, 2017 NSW Department of Planning and Environment,

x. Child Care Planning Guideline, 2016 NSW Department of Planning and Environment,

xi. Apartment Design Guide, 2015 NSW Department of Planning and Environment, and

xii. Seniors Living Policy - Urban design guidelines for infill development, Urban Design Advisory Service, Department of Infrastructure Planning and Natural Resources, 2004.

5. Part 10 contents

Division B - Subdivision

1. Objectives
2. Subdivision of land in residential zones

Division C – Development in R2 Low Density Residential & R5 Large Lot Residential zones

1. Objectives
2. Development in R2 Low Density Residential & R5 Large Lot Residential zones
3. Ancillary development, including sheds, garages & outbuildings

Division D – Dwelling houses & secondary dwellings

1. Objectives
2. Dwelling houses & secondary dwellings
3. Ancillary development, including sheds, garages & outbuildings

Division E - Medium density housing

1. Objectives
2. Dual occupancies (one dwelling beside another) and semi-detached dwellings
3. Multi dwelling housing (except terraces)
4. Multi dwelling housing (terraces)
5. Ancillary development, including sheds, garages & outbuildings

Division F - Residential flat buildings

1. Objectives
2. Manor houses and dual occupancies (one dwelling above another)
3. Residential flat buildings to which SEPP 65 does not apply
4. Residential flat buildings to which SEPP 65 applies

Division G – Residential development enabled by a SEPP

1. Objectives
2. Housing for seniors and people with disabilities
3. Group homes
4. Boarding houses

Division H - Non-residential development in residential zones

1. Objectives
2. Non-residential development in residential zones

Division I – Area specific development plans

1. Objectives
2. Area specific development plans

Schedule – Diagrams & illustrations

1. Objective
2. Application

Division B – Subdivision

Advice

Interpretation & the LEP

- *For the meaning of words and terms refer to clause 4 of Division A – Introduction, for more information.*
- *Minimum lot sizes are prescribed by Part 4 of the LEP. This part of the DCP does not apply to subdivision by Strata title, as this form of subdivision is mainly intended for the subdivision of buildings and the land on which they are situated. Strata subdivision is permitted by the LEP, despite the minimum lot size standards of Part 4 of the LEP. Refer to this part of the LEP for more details.*
- *For the provision of public utilities and infrastructure to new lots, cl.7.6 of the LEP applies.*
- *Most fencing within Residential zones does not require Council's approval, being classified as exempt development. Development standards for exempt development are in the Codes SEPP.*
- *Diagrams and illustrations are located in the Schedule at the end of this part, to assist interpretation of guidelines in the Development Guidelines Tables.*

Master plans & concept development applications

- *A 'master plan' is a plan prepared to conceptually illustrate how a site is to be subdivided and/or developed.*
- *'Concept development application' has the same meaning as in s.4.22 (1) of the Act.*
- *'Accessible area' is land wherein a safe pedestrian access path is available between a development site and land in either a B1, B2, B3 or B4 zone; and the distance of that access path (or paths) is 400 metres or less, when measured along the street or streets.*
- *'Street network' means the layout of local and other streets in a hierarchy, that is designed to accommodate expected volumes of vehicular, pedestrian and bicycle traffic, including other forms of wheeled, non-liquid-fuel-driven transport, such as personal buggies and carts.*

Subdivision in the Thurgoona Wirlinga Precinct & other urban growth areas

- *When a development application is being prepared to subdivide land included in the Thurgoona Wirlinga Precinct Structure Plan, applicants are encouraged to consult with Council regarding the structure plan's implementation, to ensure consistency with Part 19 of this DCP.*
- *When a site is the subject of a structure plan or other Council-adopted plan or strategy, applicants should contact Council regarding application of the plan or strategy as part of a development application.*

Utility installations

- *When preparing a development application, applicants are advised to contact:*
  - *Council regarding stormwater drainage, water and sewer services, and*
  - *Providers of gas, electricity and telecommunications services,*

  to determine service availability, approval requirements or restrictions for servicing (if any).
- *When necessary, development is to be designed to accommodate any on-site infrastructure in accordance with standards and approvals of relevant agencies.*
- *Development applications are to include details of all existing and proposed services.*
- *Location of any proposed water or sewer mains are to be supplied with the development application.*
- *Servicing through areas with significant vegetation is to be avoided when practical.*
- *On bush fire prone land, proposed development is to provide for access and a water supply for fire-fighting in accordance with the NSW Rural Fire Service guidelines.*

Tree & vegetation management

- *Trees and vegetation should be retained where possible. Refer to Part 5 of this DCP for further information.*

Consultation & collaboration

- *When preparing a development application, applicants are encouraged to discuss proposed development with Council's planning/assessment officers and consider Council's Engineering Guidelines for Subdivision and Development Standards.*
- *When a new street is proposed Council should be consulted when preparing a development application, with regard to appropriate design standards and other requirements.*
- *Should dedication of land for use as public open space be proposed, applicants should consult with Council before lodging a development application.*
- *Applicants should consult with Council regarding Albury's bicycle/shared path network, which is being incrementally developed throughout the City, to determine if a proposed subdivision should include an extension of the network.*
- *Consultation and collaboration with owners of adjoining or adjacent land is encouraged, especially when there is potential for proposed streets to connect with planned, approved or existing streets, on adjacent or adjoining land, to create or improve overall connectivity, safety, accessibility and performance of the street network.*

1. Objectives

Objectives for development to which Division B applies are to be considered by Council when a development application is determined. The objectives are, to:

a. Encourage a diversity of lot sizes, to suit a range of dwelling types and densities in appropriate locations.

b. Provide for lots being designed to accommodate other permissible development.

c. Ensure subdivision of land responds to the environmental conditions of the site and the locality.

d. Promote residential subdivision that is consistent with, or embellishes, the character of Albury's established and planned residential areas.

e. Improve accessibility to services, amenities and facilities, by introducing new, or adding to or improving street, pedestrian and bicycle networks.

f. Complement or establish a pattern of roads and lots to promote sustainable and robust residential development.

g. Enable extension and improvement of the public domain, especially on large sites, including provision of new streets and public open space, suitably landscaped with trees and other vegetation.

h. Create a public domain that is compatible with, and sympathetic to, the natural environment, including nearby waterways and environmental-zoned land.

i. Enable street and lot orientation to optimise passive solar design and climate management.

j. Enable an appropriate interface with surrounding environmental lands and public open space.

k. Ensure adequate provision is made for current and future utility infrastructure needs.

2. Subdivision of land in residential zones

a. This clause applies to subdivision of land in the R1 General Residential, R2 Low Density Residential, R3 Medium Density Residential and R5 Large Lot Residential zones.

b. This clause applies to subdivision of land by Torrens title and Community title only, when consent is required by the LEP.

c. This clause does not apply to subdivision of land or buildings by Strata title.

d. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

e. Where there is no guideline for a design element, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

Development Guidelines Table

<table>
<tr><th colspan="3">Division B cl. 2 Subdivision of land in residential zones</th></tr>
<tr><th>Design elements</th><th>Guidelines</th><th>Performance criteria</th></tr>
<tr><td colspan="3">a. Subdivision design.</td></tr>
<tr><td>i. Min. lot width.</td><td>
<table>
<tr><th>Lot size.</th><th>Min. lot width*.</th></tr>
<tr><td><450m^2.</td><td>8m.</td></tr>
<tr><td>450m^2 - 650m^2 (inclusive).</td><td>15m.</td></tr>
<tr><td>650m^2 - 1500m^2 (exclusive).</td><td>20m.</td></tr>
<tr><td>1500m^2 - 2500m^2 (inclusive).</td><td>30m.</td></tr>
<tr><td>2500m^2 - 4000m^2 (exclusive).</td><td>35m.</td></tr>
<tr><td>4000m^2 - 10ha (inclusive).</td><td>45m.</td></tr>
<tr><td>>10ha.</td><td>60m.</td></tr>
</table>
* Min. lot width is measured at the street boundary.
* On corner lots, min. lot width applies to the shorter boundary.
* Lot areas exclude access handles of battle-axe lots.
</td><td>Lots are suitably proportioned, to:
• Accommodate residential development,
• Be compatible with or create a harmonious streetscape, and
• Be compatible with or create a functional and attractive character in the locality.</td></tr>
<tr><td>ii. Departure from min. lot width guidelines, where access from a rear lane.

Refer to Figure 1 in the Schedule.</td><td>Departure from a min. lot width guideline will be considered when lanes are proposed to access the rear of lots.

Plans and other details are to be submitted with an application to demonstrate how buildings will be accommodated and accessed on lots that depart from min. lot area and width guidelines.</td><td>Lot dimensions and access are appropriate when access from a rear lane is provided or available.</td></tr>
<tr><td>iii. Subdivision of land with an average slope exceeding 1:4.

Min. area.

Min. width.</td><td>

1,200m^2.

25m.</td><td>Lots are sufficiently sized and proportioned to accommodate development on sloping land.</td></tr>
</table>

Division B cl. 2 Subdivision of land in residential zones		
Design elements	**Guidelines**	**Performance criteria**
iv. Min. lot size in the R5 zone when reticulated sewerage is unavailable.	2ha.	Lots are sufficiently sized to accommodate development and safe treatment and disposal of wastewater.
v. Lot shape.	Lots are generally rectangular-shaped, except in the R5 zone.	Lots are suitably shaped and proportioned, to: • Accommodate other development, • Be compatible with or create a harmonious streetscape, and • Be compatible with or create a functional and attractive character in the locality.
vi. Creation of battle-axe lots.	A battle-axe lot is only to be created: • From a greenfield lot, when topography or other site conditions prevent the lot having a compliant min. lot width at the street and when at least one boundary adjoins a Public Reserve or other element of the public domain, or land in an environmental zone, or • From a lot in an existing urban area, when no new street(s) is (are) proposed.	A battle-axe lot: • Is provided safe and practical access, • Is suitably sized and proportioned to provide reasonable amenity for occupants and neighbours, and, • Is compatible with the public domain and the character of the locality.
vii. Battle-axe lots, in all zones, except the R5 zone:		Access and utility services to each lot is adequate. Safety and visibility for pedestrians and vehicles using an access handle is adequate.
Max. length of a battle-axe lot's access handle.	30m.	
Min. width of a battle-axe lot's access handle.	3.5m.	
Max. number of battle-axe lots to be accessed from a single access handle.	2.	
Min. width of a battle-axe lot's access handle providing access to more than one lot.	5.0m.	

Division B cl. 2 Subdivision of land in residential zones		
Design elements	**Guidelines**	**Performance criteria**
viii. Battle-axe lots in the R5 zone: Max. length of a battle-axe lot's access handle. Min. width of a battle-axe lot's access handle. Min. width of carriageway. Max. number of battle-axe lots to be accessed from a single access handle.	 200m. 10m. 4m. The number of lots accessed from a single access handle will be considered on merit.	Access and utility services to each lot is adequate. Safety and visibility for pedestrians and vehicles using an access handle is adequate.
ix. Noise & air quality.	When there is a risk that future residents in a subdivision will be impacted by a nearby source of noise or offensive or hazardous emissions to the atmosphere, the development is to be sited and designed to avoid or acceptably reduce exposure to that risk. When deemed necessary by Council, a noise and/or air quality impact assessment is to be submitted with a development application and the development's design is to adopt the recommendations of that assessment.	Impacts of noise and air-emissions are avoided or effectively mitigated and minimised.
x. Subdivision design standards.	Roads and driveways are to align with site contours as much as possible, to avoid or reduce impacts from stormwater flows and erosion, flood events and excessive earthworks. Construction on steep slopes (> 1:8) and within 40m of a natural watercourse is to be avoided as much as possible. Design of streets and related infrastructure is to be consistent with Council's *Engineering Guidelines for Subdivisions and Development Standards*. On bush fire prone land, driveways, roads and related infrastructure are to be consistent with RFS guidelines.	Subdivision design is compatible with the environmental conditions of the site and locality and is consistent with the guidelines of Council and the RFS, when applicable.
b. Structure plans.		
i. Consistency with structure plans.		When land to be subdivided is affected by a structure plan or other strategic document adopted by Council, the subdivision helps to implement and is consistent with the plan or other strategic document.

Division B cl. 2 Subdivision of land in residential zones		
Design elements	**Guidelines**	**Performance criteria**
c. Albury's off-street bicycle network.		
i. Extension of the off-street bicycle/shared path network.	When a site is affected by an existing or proposed part of Albury's off-street bicycle/shared path network and Council requires extension of the network through any part of a site, the bicycle/shared path is to be designed and sited in accordance with Council's requirements and details of the path be included in the development application to subdivide the site.	Albury's off-street bicycle/shared path network is suitably extended.
d. New streets.		
i. New streets in residential subdivisions.		New streets improve connectivity in the locality by joining two or more other streets together, either existing or planned.
ii. Street & lot orientation. Refer to Figure 2 in the Schedule.	Streets and lots are set out to optimise: • Solar access, by being aligned to the cardinal points as closely as possible and the longer sides of street blocks being aligned east to west, • Departure from this principle may be considered, to align streets with local topography, or to improve pedestrian access from the proposed lots to other activities, such as local centres, community facilities, schools and open space, and • The number of lots fronting the short sides of a street block is to be maximised.	Streets and lots are oriented to promote and/or optimise: • Passive solar design and climate management, • An attractive and functional streetscape, not dominated by solid tall fencing or walls, or fencing or walls built of unsuitable or unattractive materials, and • Informal surveillance of the public domain.
iii. Culs-de-sac. Refer to Figure 3 in the Schedule.	Culs-de-sac are only acceptable, when: • A watercourse or a steep ridge or gully (slope > 1:5) prevents two streets or two parts of the same street from being connected, or • Connection to an existing road or part of a road on adjoining land is physically impractical for another reason. A cul-de-sac is to provide access to no more than 15 dwellings.	Culs-de-sac are designed and located only in suitable circumstances, and the number of dwellings with access to them is suitably limited.
iv. Verges & nature strips.	Verges & nature strips are to be of a sufficient width to accommodate: • Utility services, • Street trees, existing and new, • Kerb and gutter, and • Footpaths and/or bike/shared paths. Streets and roads, including their verges and nature strips are to be designed in accordance with Council's *Engineering Guidelines for Subdivisions and Development Standards*.	The design of verges and nature strips promote a comfortable and attractive public domain that complement Albury's identity and character.

Division B cl. 2 Subdivision of land in residential zones		
Design elements	**Guidelines**	**Performance criteria**
e. Street design principles.		
i. Street network design principles. Refer to Figure 4 in the Schedule.	Street network design principles to be applied in the design of subdivisions include: • Creation of or contribution to an interconnected, hierarchical street network, which optimises connectivity and provides all network users a safe and convenient choice of routes. • Provision for public transport and safe routes for pedestrians and cyclists to public transport stops. • Integration with Albury's existing and planned transport networks. • Provision of safe and convenient pedestrian access, sufficient to accommodate expected levels of pedestrian and bicycle traffic. • In areas of expected high pedestrian traffic, footpaths on either side of the street are to be provided. High pedestrian traffic areas are typically within a 400 metre distance (measured along a street or streets) of key neighbourhood facilities including shops, community facilities, schools and open spaces. When rear lanes are proposed to provide vehicular access to lots, departure from minimum lot width standards (per cl. 2. a. ii) will be considered.	Subdivision of land extends or complements the local street network in a manner consistent with these principles, to contribute to Albury being a safer, more accessible, convenient and vibrant urban place, which promotes environmental, social and economic sustainability.
ii. Subdivision adjoining public open space or land in an Environmental zone. Refer to Figure 5 in the Schedule.	Where a site adjoins linear public open space or land in an Environmental zone, these principles are to be applied in subdivision design: • A public street is to adjoin the public open space or land in the Environmental zone, along the length of the site/public open space/environmental land boundary. • This street is to connect with other streets in the locality, to provide continuous access. • The number of lots fronting this street is to be optimised. • Lots fronting this street are to enable dwellings to address the street and the adjacent open space or environmental land. • When the land to be subdivided and/or the adjoining land is bush fire prone, the width of the public street and the front building setback on adjoining lots is to equal or exceed an asset protection zone determined in accordance with RFS guidelines. The public street is to be designed and provided infrastructure in accordance with RFS guidelines.	Subdivision of land adjoining or adjacent to linear public open space or land in an Environmental zone: • Provides appropriate access for the public and emergency services, • Optimises resident-amenity and informal surveillance of the street and adjacent public open space or environmental land, • Protects and enhances the recreational and/or environmental values of the adjoining or adjacent land, and • Promotes public safety and the character of the locality.

Division B cl. 2 Subdivision of land in residential zones		
Design elements	**Guidelines**	**Performance criteria**
iii. Indirect access and boundary treatments for lots fronting or adjoining specified existing roads. Refer to Figure 6 in the Schedule.	This guideline applies to land adjoining the following specified roads: • Davey Road, • Elizabeth Mitchell Drive, • Ettamogah Road, • Kerr Road, • Kywanna Road, • Pastoral Lane, • Riverina Highway, • Table Top Road, • Thurgoona Drive, • Wignell Road, and • Williams Road. Access to lots from these roads is not to be provided, when a practical, indirect, alternate means of access is available or can be made available and is considered safer and more advantageous than direct access to lot from these roads. Some of these roads may be designated 'access-restricted' by the Roads Act 1993, meaning an alternative access will be required, unless impractical. Indirect, alternative means of providing access to these roads include: • An access lane or shared driveway parallel with the specified road, • A side-street that directly connects with the specified road or another street, • Rear-access to the lots fronting the specified road, from a lane or another street, • Extending an alternative access from an adjoining subdivision or land, by one of these methods, or • Another method acceptable to Council. Subdivision design is to enable subsequent development on a lot to address a specified road, when that lot abuts or has an outlook onto a specified road.	Road safety, amenity, and the character of these roads and adjacent land are maintained or improved.
f. Utility infrastructure.		
i. Access to lots and roadworks.		Access to lots and associated roadworks are consistent with Council's *Engineering Guidelines for Subdivisions and Development Standards*. On bush fire prone land, access is provided in accordance with RFS guidelines.

Division B cl. 2 Subdivision of land in residential zones		
Design elements	**Guidelines**	**Performance criteria**
ii. Water and sewer supply.		If required, arrangements are made with Council, the water and sewer authority, for adequate and compliant provision of water and sewer services to all lots. Arrangements are consistent with Council's *Engineering Guidelines for Subdivisions and Development Standards*. On bush fire prone land, water supply is provided in accordance with RFS guidelines.
iii. Stormwater management.	A stormwater management concept plan is to be submitted with a development application.	Provision of stormwater facilities is consistent with Council's *Engineering Guidelines for Subdivisions and Development Standards*.
iv. Waste Management.		Construction and demolition waste is managed and disposed of in accordance with the requirements of Council or other relevant authorities.
v. Electricity, gas and telecommunications services.		Information is provided to Council to demonstrate that these services are available or can be made available before issue of a subdivision certificate.
vi. Orderly provision of utility infrastructure.		Provision of utility services is a logical extension of existing infrastructure and is consistent with an applicable servicing program. Utility services are provided in an orderly and economically efficient and effective manner.
g. Landscaping.		
i. Landscape design. This guideline does not apply in the R5 zone.	A landscape concept plan is to be submitted with a development application that proposes subdivision of land into 4 or more lots, prepared in accordance with Council's *Engineering*	Landscape planning and design is properly conducted for development.

Division B cl. 2 Subdivision of land in residential zones		
Design elements	**Guidelines**	**Performance criteria**
	Guidelines for Subdivisions and Development Standards.	
h. Earthworks.		
i. Earthworks, retaining walls & other related structures. Refer to Figure 7 in the Schedule.	Benching of lots is to be stepped to align as closely as possible with the slope of the land. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with an adjoining lot, either existing or proposed. All earthworks and associated structures are to be properly drained and not direct surface water onto adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.
	Earthworks and structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed by a qualified person.
	Appropriate construction techniques, including minimising removal of vegetation where possible, are to be implemented to assist in erosion and sediment control during and post construction. An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	Construction of earthworks and related structures does not adversely impact stormwater flows and the environment.
i. Subdivision staging.		
i. Staging of subdivisions.	A staging plan is to be provided when staging is proposed.	Release of lots in a subdivision coincides with provision of infrastructure and is consistent with the sequencing of utilities by service-providing agencies.
j. Master plans & concept development applications.		
i. Minimum site area when a master plan is required.	5,000m^2 in existing urban areas. 10,000m^2 in greenfield areas. A master plan is only required in the R5 zone when a new road is proposed.	Larger sites are planned, designed and developed to make a positive and compatible contribution to the locality and Albury's environment.

Division B cl. 2 Subdivision of land in residential zones		
Design elements	**Guidelines**	**Performance criteria**
ii. Guidelines to be considered in preparing a master plan. Refer to Figures 8, 9, 10, 11 & 12 in the Schedule.	Matters relevant to the subdivision and subsequent development of a site are to be considered, including: • An analysis of the site and locality's accessibility, functions, character and environmental conditions, including potential impacts on ecology. • Means to improve accessibility of the site and the locality. • Integration with the existing street network and hierarchy, including consideration of street network design principles in cl. 2. e. i.. • Potential to connect new streets, footpaths, shared paths or cycleways with planned, approved or constructed streets on adjoining land, with reference to the Thurgoona Wirlinga Precinct Structure Plan or other strategic document, when applicable. • Potential to extend and complement existing street, footpath and bicycle/shared path networks, in areas other than where the Thurgoona Wirlinga Precinct Structure Plan or other strategic document applies. • Preferred uses and built form, following subdivision, based on the site and locality analysis. • Higher density lots and housing when the site is within an 'accessible area' in relation to a B1, B2, B3 or B4 zone. • The pattern of subdivision and subsequent development complementing the character and functions of the locality. • Provision of public open space identified in a Council-adopted structure plan or strategy. • Provision of public open space may also be supported through analysis of land proposed as open space, considering matters such as: - an analysis of existing supply and likely demand for open space in the locality, - accessibility – i.e. the open space is within a 400m walk for potential users, not restricted by barriers such as a major road (e.g. roads specified by cl. 2. e. iii.), a creek line, and the like. - area and dimensions of the land, - the site's characteristics, including constraints such as flooding or steep slopes (> 1:8), and - addition to or integration with other open space (e.g. linear networks). • Where there is potential to dedicate land for environmental conservation, whether the land could also support recreational values and accessibility in the locality are to be considered. When deemed appropriate, low-impact public access is to be provided, that is sensitive to the conservation values of the land.	Master plans are prepared having considered all relevant environmental conditions and Albury's planning framework.

Division B cl. 2 Subdivision of land in residential zones		
Design elements	**Guidelines**	**Performance criteria**
	• Potential to retain any significant trees and other vegetation in the public domain, such as in street reserves and public open space. • Potential of the site to be impacted by any hazard, such as contamination, bush fire or flooding, and means of eliminating or reducing the risk posed by the hazard. • Stormwater management, including consistency with any Council drainage strategy. • The potential traffic impact of the site's development and means to avoid, minimise or mitigate those impacts.	
k. Estate entry features.		
i. Min. number of lots for an estate entry feature.	100.	Estate entry features are appropriately located and well-designed.
ii. Design of estate entry features.	Estate entry features are to be designed to: • Be compatible with the existing and/or emerging character of the locality. • Be built from materials using colours and textures that promote a sense of place and identity in the locality. • Maintain the amenity of nearby residents. • Be complemented by landscaping that is compatible with the site and locality. • Not inhibit informal surveillance of the public domain from nearby dwellings or other buildings. • Maintain road safety, when within or adjacent to a public road or driveway. An application for, or that includes an 'estate entry feature', is to be accompanied by suitably detailed, scaled and dimensioned plans and elevations. The drawings and plans are to include details of siting, dimensions, colours, materials, landscaping, and structural certification for the proposed entry feature. Details of the period in which the entry feature is to remain or be maintained by the applicant are to be submitted with an application, including an operation and maintenance manual.	

Division C – Development in R2 Low Density Residential & R5 Large Lot Residential zones

Advice

Interpretation & the LEP

- *For the meaning of words and terms refer to clause 4 of Division A – Introduction, for more information.*
- *Dwelling houses and secondary dwellings are permitted with consent by the LEP in the R2 Low Density Residential the R5 Large Lot Residential zones.*
- *Secondary dwellings are permitted with consent by cl. 22 of the Affordable Rental Housing SEPP in the R5 zone.*
- *Cl. 23 of the Affordable Rental Housing SEPP permits secondary dwellings as complying development, provided the development standards in Schedule 1 of this SEPP are complied with.*
- *The floor area of a secondary dwelling is limited by cl.5.4(9) of the LEP, to the greater of 60m^2 or 25% of the floor area of the principal dwelling.*
- *A secondary dwelling must be on the same lot as the principal dwelling, meaning their subdivision is prohibited.*
- *For the provision of public utilities and infrastructure to development, cl.7.6 of the LEP applies.*
- *Ancillary development, including sheds, garages and other outbuildings, require development consent, when they do not satisfy requirements to be exempt or complying development under the Codes SEPP.*
- *Most fencing within Residential zones does not require Council's approval, being classified as exempt development. Development standards for exempt development are contained in the Codes SEPP.*
- *Diagrams and illustrations are located in the Schedule at the end of this part, to assist interpretation of guidelines in the Development Guidelines Tables.*

Utility installations

- *When preparing a development application, applicants should contact:*
  - *Council regarding stormwater drainage, water and sewer services, and*
  - *Providers of gas, electricity and telecommunications services,*

  to determine service availability, approval requirements or restrictions for servicing (if any).
- *When necessary, development is to be designed to accommodate any on-site infrastructure in accordance with standards and approvals of relevant agencies.*
- *Development applications are to include details of all existing and proposed services.*
- *Location of any proposed water or sewer mains are to be supplied with the development application.*
- *Servicing through areas with significant vegetation is to be avoided when practical.*
- *On bush fire prone land, proposed development is to provide for access and a water supply for fire-fighting in accordance with the NSW Rural Fire Service guidelines.*

Tree & vegetation management

- *Trees and vegetation should be retained where possible. Refer to Part 5 of this DCP for further information.*

Consultation & collaboration

- *When preparing a development application, applicants are encouraged to discuss proposed development with Council's planning/assessment officers.*

ALBURY DCP PART 10 – DEVELOPMENT IN RESIDENTIAL ZONES

1. Objectives

Objectives for development to which Division C applies are to be considered by Council when a development application is determined. The objectives are, to:

a. Ensure development in the R2 and R5 zones responds to the environmental conditions of the site and the locality.

b. Enable development in the R2 and R5 zones to be compatible with the streetscape and to contribute positively to the character of the locality in which development is proposed.

c. Create reasonable amenity for occupants of development in the R2 and R5 zones without causing unreasonable impacts on the amenity of neighbours.

2. Development in R2 Low Density Residential & R5 Large Lot Residential zones

a. This clause applies to all development in the R2 Low Density Residential and R5 Large Lot Residential zones, except:

i. Ancillary development, as defined by the Codes SEPP, that is not exempt or complying development under that policy or any other environmental planning instrument,
ii. Non-residential development (addressed in Division H), and
iii. Subdivision.

b. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

c. Where there is no guideline for a design element, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

Development Guidelines Table

Division C cl. 2 Development in R2 & R5 zones		
Design elements	**Guidelines**	**Performance criteria**
a. Site planning.		
i. Min. landscaped area: On lots up to 4,000m^2. Min. width of landscaped areas (to count as part of min landscaped area). Refer to Figure 13 in the Schedule.	 45%. 1m.	Adequate landscaped area is provided, to ensure: • Space for growing plants, including trees, • Absorption of rainwater into the ground, • Reasonable amenity for residents, • Lots are not over-developed with buildings, structures and paving, and • Paving and buildings do not dominate the streetscape.

Division C cl. 2 Development in R2 & R5 zones		
Design elements	**Guidelines**	**Performance criteria**
ii. Siting development on steep land.	Development on slopes greater than 1:4 is discouraged.	Development is suitably sited to avoid steep land and align with site contours, to minimise earthworks and the impact of development on the character of the locality.
iii. Development on a battle-axe lot.		Development on a battle-axe lot: • Provides reasonable amenity for occupants and neighbours. • Is compatible with the public domain and the character of the locality. • Addresses public open space or another type of public reserve, or land in an environmental protection zone, when the lot adjoins or when development on the lot would have an outlook to that reserve or land in an environmental zone.
b. Land use compatibility.		
i. Site analysis. This guideline does not apply in the R2 zone.	A site analysis is to be prepared when deemed necessary by Council, to identify adjacent or nearby activities which would likely impact occupants' health, safety and amenity. The development application is to include information to demonstrate that any nearby activities and their likely impacts will be effectively avoided, mitigated or managed.	Development is compatible with nearby land uses and land use conflict is avoided, mitigated or managed effectively. The environment and the health and amenity of the occupants of proposed development are suitably protected.
c. Building height.		
i. Maximum no. storeys for a dwelling house.	2.	Building height and the number of storeys is compatible with the character of the locality. Development reasonably maintains acceptable relationships with adjoining development in terms of bulk and scale, and resident-amenity.
ii. Max. no. storeys for a secondary dwelling, when not in the same building as the principal dwelling.	1.	
iii. Earthworks, retaining walls & other related structures. Refer to Figures 14 & 15 in the Schedule.	Development is to be stepped to align as closely as possible with the slope of the lot. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.

Division C cl. 2 Development in R2 & R5 zones		
Design elements	**Guidelines**	**Performance criteria**
	Earthworks that result in finished ground levels that differ by more than 600mm from existing ground levels are only to be carried out: • Within the dwelling house's footprint, to provide for habitable or non-habitable rooms or spaces. • To provide access to the dwelling house or those habitable or non-habitable rooms or spaces mentioned above. If the lot was benched when the land was subdivided, earthworks and related structures are not to further increase or decrease finished ground levels at any boundary with adjoining land. All earthworks and associated structures are to be properly drained and not direct surface water onto adjoining land.	
	Structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed.
	Appropriate construction techniques, including minimising removal of vegetation where possible, are to be implemented to assist in erosion and sediment control during and post construction. An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	Earthworks and retaining walls do not adversely impact stormwater flows or channel drainage onto neighbouring property.
iv. Max. floor height of balconies, decks, patios and the like.	0.5m with 5m setback. 2m with 5m – 7.5m setback. 3m with 7.5m – 10m setback.	Maintains acceptable built form and amenity relationships with neighbouring development.

Division C cl. 2 Development in R2 & R5 zones		
Design elements	**Guidelines**	**Performance criteria**
d. Setbacks.		
i. Min. primary street setback. Refer to Figure 16 in the Schedule.	Average setback of the two buildings closest to the lot, in the same street and on the same side of the street. 10m when averaging as set out above is impractical.	Setbacks are compatible with the setback of neighbouring buildings. Setbacks contribute to the character of the locality.
ii. Min. primary street setback for a secondary dwelling.	Behind the principal dwelling, when the secondary dwelling is in a building separate from the principal dwelling. Alterations and additions to the principal dwelling to create a secondary dwelling are not to be forward of the principal dwelling's primary street setback.	
iii. Min. setback from main roads.	30m on the following roads: • Wagga Road, • Riverina Highway, • Hume Highway, • Gerogery Road (R5 zone only), • Tynan Road, and • Table Top Road.	An appropriate buffer is provided between main roads to mitigate noise, pollution and visual impacts.
iv. Min. secondary street setback on a corner lot.	50% of the primary road setback. When the secondary street setback is to a main road clause 2 d. iii. applies.	Maintains compatibility with neighbouring development and the streetscape. Utility of the site is not unreasonably diminished.
v. Min. side setback: In R2 zone. In R5 zone.	 2.5m. 5.0m.	Adequate building separation is provided at side boundaries, for amenity, boundary fencing, access, safety, and maintenance.
vi. Min. rear setback.	10m.	Adequate building separation is provided at rear boundaries, which maintains or improves resident-amenity and the character of the locality.
vii. Garage or carport setback.	A garage or carport must be set back at or behind the primary street setback of the dwelling house.	Visual dominance of car parking associated with dwellings is acceptably minimised.
viii. Min. setback from watercourses.	100m from the Murray River. 100m from Lake Hume. 40m from any other watercourse.	Environmental qualities of watercourses are adequately protected.

Division C cl. 2 Development in R2 & R5 zones		
Design elements	**Guidelines**	**Performance criteria**
e. Character & the public domain.		
i. Character.	The building is designed to be compatible with the streetscape and character of the locality.	Development is of high architectural quality and contributes positively to local character and a safe public domain. Design and choice of materials and colours are compatible with surrounding development and contribute to a pleasant and attractive public domain. The mass and form of development integrates with and promotes diversity in the locality through quality urban design.
ii. Design, massing & articulation. Refer to Figure 17 in the Schedule.	Massing and articulation are to reduce apparent scale and bulk and create visually interesting buildings. Materials, textures and colours are to complement the massing and design of the building. Buildings are to be suitably articulated using harmonious architectural elements in the design, such as verandahs, porticos, awnings, bay windows, balconies or terraces. Elements such as these may be forward of the primary street setback. Simple roof forms are to be designed to complement other building elements and minimise bulk and scale of the building. Roof forms are to be compatible with those of nearby buildings. Infrastructure and services are to be integrated into to the development's design or screened.	
iii. Community safety & surveillance.	Principal pedestrian entries are to address, be readily identifiable and directly accessible from the street. When a building façade faces a reserve or other element of the public domain, that façade is to include windows and/or doors to address that reserve or other element of the public domain. Fencing and landscaping are not to unacceptably diminish informal surveillance of the public domain.	A safe method of access to and egress from development is provided. Development has acceptable impacts on community safety and contributes to informal surveillance of the public domain.
f. Resident-amenity.		
i. Climate management for west-facing residential accommodation. Refer to Figure 18.	Where habitable rooms face west (between north-west and south-west), architectural elements are to be used, such as: • Extended eaves, • Verandahs,	Heat-gain is reduced to improve thermal performance and comfort for occupants of residential accommodation.

Division C cl. 2 Development in R2 & R5 zones		
Design elements	**Guidelines**	**Performance criteria**
	• Shutters, or • Awnings. Architectural design elements may be complemented by landscaping.	
ii. Noise & air quality.	Development is to be sited and designed to acceptably reduce the impact of noise in the locality. When there is a risk development will be impacted by a nearby source of noise or offensive or hazardous emissions to the atmosphere, the development is to be designed and sited to acceptably reduce that risk. When deemed necessary by Council, a noise impact assessment is to be submitted with a development application and the development's design is to adopt the recommendations of that assessment.	Impacts of noise and air-emissions are avoided or effectively mitigated and minimised.
iii. Waste Management.	Provide bin storage in accordance with Council's kerbside requirements, in a readily accessible location for residents. Bins are not to be stored forward of the primary street setback, or in a location visible from the public domain. Construction and demolition waste is to be managed and disposed of in accordance with the requirements of Council or another authority, when applicable.	Waste storage meets residents' requirements, reasonably maintains resident-amenity and the qualities of the streetscape and the character of the locality. Waste from the development is effectively managed in accordance with applicable requirements.
iv. Building materials.	Reflective building materials are not to be used.	Building materials do not unreasonably diminish neighbours' amenity.
g. Boundary treatments (fences & walls).		
i. Max. height of boundary treatments and gates, on a lot up to 2,000m^2.	1.2m, or 1.8m, with at least 50% being see-through.	Boundary treatments are compatible with and contribute to the character of the locality.
Max. height of side and rear boundary treatment behind the primary street setback.	1.8m.	
Boundary treatment materials and colours.	To be consistent with materials and colours of the dwelling house and compatible with the streetscape.	

<table>
<tr><th colspan="3">Division C cl. 2 Development in R2 & R5 zones</th></tr>
<tr><th>Design elements</th><th>Guidelines</th><th>Performance criteria</th></tr>
<tr><td>ii. Max. height of boundary treatments and gates, on a lot over 2,000m^2.</td><td>1.4m.

Rural-type fences and gates are to be used, such as post and wire or post and rail.
Other materials may be used sympathetically to provide entry statements into lots, while maintaining safe sightlines to roadways.

Use of urban fencing or walls (i.e. solid metal or timber paling) is discouraged.</td><td></td></tr>
<tr><td>i. Walls and screens.</td><td>Masonry, metal or timber walls (or other materials) and screens are only to be used as landscaping elements or for privacy and are to be setback as specified for side and rear setbacks and behind the primary street setback.</td><td>Walls and screens do not diminish the character of the locality.</td></tr>
<tr><td colspan="3">h. Access & parking.</td></tr>
<tr><td>i. Min. car parking spaces:

For a dwelling house.

For a secondary dwelling.</td><td>Specified by Part 17.

Additional parking not required if existing parking exceeds min. number of spaces specified by Part 17.</td><td>The number of on-site parking spaces is adequate and does not unreasonably reduce parking supply on local streets.</td></tr>
<tr><td>ii. Max. garage door width when facing any road, except a lane.

Refer to Figure 20 in the Schedule.</td><td><table><tr><th>Lot Width</th><th>Max. width of garage door</th></tr><tr><td>7m – 12m</td><td>3.2m</td></tr><tr><td>>12m – 24m</td><td>6m</td></tr><tr><td>>24m*</td><td>9.2m*</td></tr></table>*An additional single garage may be erected adjacent to a double garage if:
The entry to the additional garage is set back at least 1m behind the entry to the other garage, and
The width of the driveway at the garage openings tapers gradually to a max. width of 6m at the property boundary.</td><td>Adequate area available for ingress and egress of private vehicles.

Garage doors and openings do not dominate the streetscape.</td></tr>
</table>

Division C cl. 2 Development in R2 & R5 zones		
Design elements	**Guidelines**	**Performance criteria**
iii. Pedestrian and vehicle access for secondary dwellings.	Secondary dwellings are to use the primary dwelling access and driveway. Separate access can be provided from a secondary street on a corner lot.	Suitable access is provided to secondary dwellings.
i. Utility Infrastructure.		
i. Access to the development and associated road works.		Access to the development and associated road works are to be consistent with Council's *Engineering Guidelines for Subdivisions and Development Standards*. On bush fire prone land, access is provided in accordance with RFS guidelines.
ii. Wastewater management.	Where reticulated sewerage is available: • Sewerage is to be provided in accordance with the Council's *Engineering Guidelines for Subdivisions and Development Standards*. Where reticulated sewerage is unavailable: • Effluent disposal via a pump-out system is unacceptable, • Dwellings and facilities in outbuildings are to be connected to an approved on-site effluent treatment and disposal system, and • Effluent is to be retained and disposed of within the boundaries of the lot. A land capability assessment is to be provided to demonstrate an on-site effluent treatment and disposal system can be accommodated and that the environmental impacts of that system are acceptable.	Adequate arrangements are made for on-site effluent treatment and disposal. Potential environmental impacts of on-site effluent treatment and disposal are properly considered and effectively avoided, mitigated or minimised.
iii. Water Supply.	Where reticulated water supply is available: • Arrangements are to be made with Council, the water and sewer authority, for water supply to all lots, • These arrangements are to be consistent with Council's *Engineering Guidelines for*	A reticulated water supply or an on-site rainwater harvesting and storage system is provided to sustainably meet the needs of the development and its occupants. Arrangements have been or will be made for the supply of water for the development that are consistent with Council's requirements and

Division C cl. 2 Development in R2 & R5 zones		
Design elements	**Guidelines**	**Performance criteria**
	Subdivisions and Development Standards, and • On bush fire prone land, water supply is to be consistent with RFS guidelines. Where reticulated water supply is unavailable: • Utility services are to be provided in accordance with RFS guidelines on bush fire prone land, in addition to the following supplementary controls, • A land assessment must be submitted to Council to demonstrate the water collection area proposed is sufficient to provide water for domestic and firefighting purposes, • Separate storage is required for non-domestic uses, such as watering of lawns and gardens, and for firefighting purposes, • A domestic water supply storage of at least 100,000 litres is to be available for domestic purposes for each dwelling, • Drinking water shall comply with current water quality standards (as outlined in the Australian Drinking Water Guidelines), • If well, creek, bore or spring water is potentially available for drinking water supply, its quality and reliability need to be tested and assessed for suitability for drinking purposes, • A gravity-fed water system is to be used, to avoid reliance on electricity or other powered systems, • The size of dams may be restricted by water harvesting limits imposed by Water NSW. Applicants are advised to liaise with Water NSW to determine what restrictions may apply, and • Dams are not to be permitted where the flow of water, in the event of dam failure, would be in the path of dwellings or public roads.	RFS guidelines on bush fire prone land.

Division C cl. 2 Development in R2 & R5 zones		
Design elements	**Guidelines**	**Performance criteria**
iv. Stormwater management.	All buildings and works, including paved areas must be drained by gravity, to: • A public drainage system, or • An inter-allotment drainage system, or • An on-site system, when the former two drainage methods are unavailable. Provision of stormwater facilities is to be consistent with Council's *Engineering Guidelines for Subdivisions and Development Standards*.	All buildings and works are properly drained. Stormwater drainage does not have unreasonable impacts on adjoining land. Stormwater management is adequate and in accordance with Council's requirements.
v. Electricity, gas and telecommunications services.		Evidence is provided to Council that these services are available before issue of an occupation certificate.

3. Ancillary development, including sheds, garages & other outbuildings

a. This clause applies to ancillary development, including sheds, garages and other outbuildings as defined by the Codes SEPP, that is not exempt or complying development under that policy or any other environmental planning instrument.

b. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

Development Guidelines Table

Division C cl. 3 Ancillary development, including sheds, garages & other outbuildings		
Design elements	**Guidelines**	**Performance criteria**
i. Max. gross floor area of a shed or a garage (when not part of a dwelling house), or both: On lots up to 4,000m^2.	60% of the gross floor area of the dwelling house. The gross floor area of other ancillary development will be considered on merit.	Ancillary development, including sheds, garages and other outbuildings, are compatible with buildings on the lot, on neighbouring land and the streetscape or landscape qualities of the locality, as they are: • Suitably sized as a proportion of the lot size and in relation to all buildings on the lot, • Sited and designed to ensure the impact of their siting, bulk, height and scale is minimised, • Sited and designed to reasonably maintain sunlight access of neighbouring dwellings and private open space,
ii. Min. landscaped area.	Ancillary development does not reduce the min. landscaped area to an amount less than that required.	

Division C cl. 3 Ancillary development, including sheds, garages & other outbuildings		
Design elements	**Guidelines**	**Performance criteria**
iii. Max. building wall height, measured from existing ground level to the eaves.	4.0m.	• Constructed of compatible building materials and colours, and • Landscaped to maintain reasonable amenity.
iv. Min. setbacks. R2 zone: Front. Side. & rear. R5 zone: Front. Side & rear.	 3m behind the primary street setback of the dwelling house. 2.5m. 5m behind the primary street setback of the dwelling house. 5m.	
v. Materials.	Sheds and other outbuildings are to be constructed of non-reflective materials and colours that are compatible with other buildings on the lot.	
vi. Earthworks, retaining walls & other related structures.	Cl. 2. c. iii. applies.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.

Division D – Dwelling houses & secondary dwellings

Advice

Interpretation & the LEP

- *For the meaning of words and terms refer to clause 4 of Division A – Introduction, for more information.*
- *Dwelling houses and secondary dwellings are permitted with consent by the LEP in R1 General Residential, R3 Medium Density Residential, B1 Neighbourhood Centre, B2 Local Centre and B4 Mixed Use zones. Refer Division C for R2 Low Density Residential and R5 Large Lot Residential zones.*
- *Cl. 23 of the Affordable Rental Housing SEPP permits secondary dwellings as complying development, provided the development standards in Schedule 1 of this SEPP are complied with.*
- *The floor area of a secondary dwelling is limited by cl.5.4(9) of the LEP, to the greater of 60m^2 or 25% of the floor area of the principal dwelling.*
- *A secondary dwelling must be on the same lot as the principal dwelling, meaning their subdivision is prohibited.*
- *For the provision of public utilities and infrastructure to development, cl.7.6 of the LEP applies.*
- *Ancillary development, including sheds, garages and other outbuildings, require development consent, when they do not satisfy requirements to be exempt or complying development under the Codes SEPP.*
- *Most fencing within Residential zones does not require Council's approval, being classified as exempt development. Development standards for exempt development are contained in the Codes SEPP.*
- *Diagrams and illustrations are located in the Schedule at the end of this part, to assist interpretation of guidelines in the Development Guidelines Tables.*

Utility installations

- *When preparing a development application, applicants should contact:*
  - *Council regarding stormwater drainage, water and sewer services, and*
  - *Providers of gas, electricity and telecommunications services,*

  to determine service availability, approval requirements or restrictions for servicing (if any).
- *When necessary, development is to be designed to accommodate any on-site infrastructure in accordance with standards and approvals of relevant agencies.*
- *Development applications are to include details of all existing and proposed services.*
- *Location of any proposed water or sewer mains are to be supplied with the development application.*
- *Servicing through areas with significant vegetation is to be avoided when practical.*
- *On bush fire prone land, proposed development is to provide for access and a water supply for fire-fighting in accordance with the NSW Rural Fire Service guidelines.*

Tree & vegetation management

- *Trees and vegetation should be retained where possible. Refer to Part 5 of this DCP for further information.*

Consultation & collaboration

- *When preparing a development application, applicants are encouraged to discuss proposed development with Council's planning/assessment officers.*

1. Objectives

Objectives for development to which Division D applies are to be considered by Council when a development application is determined. The objectives are, to:

a. Ensure dwelling houses, secondary dwellings and ancillary development respond to the environmental conditions of the site and the locality.

b. Enable dwelling houses, secondary dwellings and ancillary development to be compatible with the streetscape and to contribute positively to the character of the locality in which development is proposed.

c. Create reasonable amenity for occupants of dwelling houses and secondary dwellings without causing unreasonable impact to neighbours' amenity.

2. Dwelling houses & secondary dwellings

a. This clause applies to the erection of new dwelling houses, secondary dwellings and adaptation of and alterations and additions to existing buildings to create a dwelling house or secondary dwelling.

b. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

c. Where there is no guideline for a design element, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

Development Guidelines Table

<table>
<tr><th colspan="3">Division D cl. 2 Dwelling houses & secondary dwellings</th></tr>
<tr><th>Design elements</th><th>Guidelines</th><th>Performance criteria</th></tr>
<tr><td colspan="3">a. Site Planning.</td></tr>
<tr>
<td>i. Min. landscaped area.
Refer to Figure 13 in the Schedule.

Min. width of landscaped areas (to count as part of min. landscaped area).

Min. proportion of the primary street setback to be landscaped area.</td>
<td>
<table>
<tr><th>Lot Area</th><th>Min. Landscaped area as % of lot area</th></tr>
<tr><td>300m^2 – 450m^2</td><td>15%</td></tr>
<tr><td>> 450m^2 – 600m^2</td><td>20%</td></tr>
<tr><td>> 600m^2 – 900m^2</td><td>30%</td></tr>
<tr><td>> 900m^2 – 1,500m^2</td><td>40%</td></tr>
<tr><td>> 1,500m^2</td><td>45%</td></tr>
</table>
1m

25%, on a lot up to 18m wide.
50%, on a lot greater than 18m wide.
</td>
<td>Adequate landscaped area is provided, to ensure:
• Space for growing plants, including trees,
• Absorption of rainwater into the ground,
• Reasonable amenity for residents,
• Lots are not over-developed with buildings, structures and paving, and
• Paving and buildings do not dominate the streetscape.</td>
</tr>
</table>

Division D cl. 2 Dwelling houses & secondary dwellings		
Design elements	**Guidelines**	**Performance criteria**
ii. Development on a battle-axe lot.		Development on a battle-axe lot: • Provides reasonable amenity for occupants and neighbours. • Is compatible with the public domain and the character of the locality. • Addresses public open space or another type of public reserve, or land in an environmental protection zone, when the lot adjoins or when development on the lot would have an outlook to that reserve or land in an environmental protection zone.
iii. Max. basement area.	Within applicable building setbacks.	Basements do not impact the ability to maintain or plant vegetation on the lot.
b. **Building height.**		
i. Max. no. storeys for a dwelling house.	2.	Building height and the number of storeys is compatible with the streetscape and the character of the locality. Development reasonably maintains acceptable relationships with adjoining development in terms of bulk and scale, and resident-amenity.
ii. Max. no. storeys for a secondary dwelling, when not in the same building as the principal dwelling.	1.	
iii. Max. no. of storeys in the rear 40% of a lot, measured as a percentage of the average length of the two side boundaries.	1. This guideline does not apply in the R3 and B4 zones (except when the rear of the lot adjoins land in the R1 or R2 zones), or when the lot adjoins a rear lane, or is a corner lot, or is in a heritage conservation area.	Development in the rear of a lot maintains resident amenity and is compatible with local character.
iv. Earthworks, retaining walls & other related structures. Refer to Figures 14 & 15 in the Schedule.	Development is to be stepped to align as closely as possible with the slope of the lot. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.

Division D cl. 2 Dwelling houses & secondary dwellings		
Design elements	**Guidelines**	**Performance criteria**
	Earthworks that result in finished ground levels that differ by more than 600mm from existing ground levels are only to be carried out: • Within the dwelling house's footprint, to provide for habitable or non-habitable rooms or spaces. • To provide access to the dwelling house or those habitable or non-habitable rooms or spaces mentioned above. If the lot was benched when the land was subdivided, earthworks and related structures are not to further increase or decrease finished ground levels at any boundary with adjoining land. All earthworks and associated structures are to be properly drained and not direct surface water onto adjoining land.	
	Structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed.
	Appropriate construction techniques, including minimising where possible, are to be implemented to assist in erosion and sediment control during and post construction. An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	Construction of earthworks and related structures does not adversely impact stormwater flows and the environment.
v. Max. floor height of balconies decks, patios and the like.	0.5m within 2m setback. 2m with 2m - 3m setback. 3m with 3m – 6m setback.	Maintains acceptable built form and amenity relationships with neighbouring development.
c. **Setbacks.**		
i. Min. primary street setback for a dwelling house. Refer to Figure 16 in the Schedule.	Average setback of the two buildings closest to the lot, in the same street and on the same side of the street. 4m when averaging as set out above is impractical.	Setbacks are compatible with the setback of neighbouring buildings.

Division D cl. 2 Dwelling houses & secondary dwellings		
Design elements	**Guidelines**	**Performance criteria**
ii. Min. primary street setback for a secondary dwelling.	Behind the principal dwelling, when the secondary dwelling is in a building separate from the principal dwelling. Alterations and additions to the principal dwelling to create a secondary dwelling, are to have the same, or be behind the, primary street setback of the principal dwelling.	Setbacks contribute to a consistent streetscape and character in the locality.
iii. Min. secondary street setback on a corner lot.	50% of the primary road setback.	Maintains compatibility with neighbouring development and the streetscape. Utility of the site is not unreasonably diminished.
iv. Min. setback for a garage when facing any road, except a lane.	0.5m behind the primary street setback of the dwelling house.	Garage doors and openings do not dominate the streetscape. Adequate area available for ingress and egress of private vehicles.
v. Min. side setback.	900mm, when building height closest to the boundary does not exceed 4.5m. 1.5m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at side boundaries, for amenity, boundary fencing, access, safety, and maintenance.
vi. Min. rear setback.	2m, when building height closest to the boundary does not exceed 4.5m. 6m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at rear boundaries, for access, safety, private open space, privacy and sunlight access.
vii. Min. garage setback from a rear lane.	0m, provided there is adequate area for access into and egress from a garage. Entry to and exit from a garage is to be demonstrated by plans of swept paths of vehicles, if required.	Safe and practical entry to and exit from a garage off a rear lane is provided.
viii. Build-to boundary/zero setbacks (0mm-900mm).	Not permitted on a lot > 20m wide at the primary street setback. 0 – 900mm setback is permitted to one side boundary only. Walls setback < 900mm must be of masonry construction and have no openings. 3m max. wall height. Unbroken length cannot be greater than 10m, or one third of the boundary length, whichever is less.	Appropriate flexibility for building siting and design is enabled on lots < 20m in width. Access between the front and rear of a lot is available on at least one side of a dwelling. Adequate area is provided for building maintenance. Amenity of occupants of neighbouring development is maintained or created.

Division D cl. 2 Dwelling houses & secondary dwellings		
Design elements	**Guidelines**	**Performance criteria**
	Max. length of 15m provided that the wall contains at least one break of at least 3m. A building adjacent to a wall with a zero setback is to be set back 1.5 metres from the common boundary, despite any other provision of this DCP.	A harmonious streetscape is maintained or created.
ix. Exceptions to the primary street setback.	In areas undergoing change in their character due to various circumstances (e.g. a change in zoning or land economics), a site and context analysis is to be carried out to establish an appropriate setback to the street, when an exception is sought to the primary street setback. Applicants are to consult with Council regarding the appropriate application of this guideline when preparing a development application.	The primary street setback is established in accordance with a site and context analysis, that has considered the area's character and specific circumstances related to the site and its development.
x. Other exceptions to setbacks.	450mm is the min. side setback for any aerial, antenna, awning, eave, flue, chimney, pipe, cooling or heating appliance, any rainwater tank greater than 1.8m in height, or any other structure, installation or appliance associated with the provision of a utility service. Side or rear setbacks do not apply to fences, fascias, gutters, downpipes, light fittings, electricity or gas meters, driveways, open carports, paths or paving. Setbacks from streets and lanes do not apply to driveways, fences, paths, or retaining walls.	Services and utilities are able to be located within side and rear setbacks, without unreasonable adverse impacts on resident-amenity. Adequate access is maintained to side and rear boundaries and for access between the front and rear of the lot. Siting is enabled, of ancillary works that must be located on, over or between lot boundaries and buildings.
d. Character & the public domain.		
i. Character.	The building is designed to be compatible with the streetscape and character of the locality.	Development is of high architectural quality and contributes positively to local character and a safe public domain. The choice of materials, textures and colours are compatible with surrounding development and contribute to a pleasant and attractive public domain.
ii. Design, massing & articulation. Refer to Figure 17 in the Schedule.	Massing and articulation are to reduce apparent scale and bulk and create visually interesting buildings. Materials, textures and colours are to complement the massing and design of the building. Buildings are to be suitably articulated using harmonious architectural elements	

Division D cl. 2 Dwelling houses & secondary dwellings		
Design elements	**Guidelines**	**Performance criteria**
	in the design, such as verandahs, porticos, awnings, bay windows, balconies or terraces. Elements such as these may be forward of the primary street setback. Simple roof forms are to be designed to complement other building elements and minimise bulk and scale of the building. Roof forms are to be compatible with those of nearby buildings. Infrastructure and services are to be integrated into to the development's design or screened.	The mass and form of development integrates with and promotes diversity in the locality through quality urban design.
iii. Community safety & surveillance.	Principal pedestrian entries are to address, be readily identifiable and directly accessible from the street. Principal pedestrian entries are not to be from a lane. When a building façade faces a reserve or other element of the public domain, that façade is to include windows and/or doors to address that reserve or other element of the public domain. Fencing and landscaping are not to unacceptably diminish informal surveillance of the public domain.	A safe method of access to and egress from development is provided. Development contributes to community safety and informal surveillance of the public domain.
e. **Resident-amenity.**		
i. Sunlight access. Refer to Figures 21 & 22 in the Schedule.	Windows and doors of habitable rooms (except bedrooms) and private open space of all dwellings are to be sited and oriented to receive at least 3 hours direct sunlight between 9am and 3pm on the winter solstice.	Sunlight access to primary indoor living areas and private open space is optimised. Sunlight access enables passive solar heating in winter and provides a pleasant and healthy indoor environment.
ii. Overshadowing.	Proposed development must retain at least 3 hours of sunlight between 9am and 3pm on the winter solstice for existing neighbouring residential accommodation's: • Windows and doors of habitable rooms except bedrooms, • At least 50% of private open space, • Photovoltaic and solar hot water systems, and • Outdoor clothes drying facilities. If areas or utilities specified in the above paragraph of existing neighbouring residential accommodation receive less	Sunlight access to existing neighbouring residential accommodation is reasonably maintained.

Division D cl. 2 Dwelling houses & secondary dwellings		
Design elements	**Guidelines**	**Performance criteria**
	than 3 hours sunlight at the time a development application is lodged for adjoining land, the amount of sunlight received is not be reduced as a result of proposed development. When existing neighbouring residential accommodation may have its sunlight access impacted by proposed development, a shadow diagram is to be submitted with the application for the proposed development, based on the winter solstice, in hourly intervals from 9am to 3pm.	
iii. Climate management for west-facing residential accommodation. Refer to Figure 18 in the Schedule.	Where habitable rooms face west (between north-west and south-west), architectural elements are to be used, such as: • Extended eaves, • Verandahs, • Shutters, or • Awnings. Architectural design elements may be complemented by landscaping.	Heat-gain is reduced to improve thermal performance and comfort for occupants of residential accommodation.
iv. Privacy. Refer to Figure 23 in the Schedule.	When privacy of occupants of proposed development or neighbours is likely to be affected, siting and design of proposed development is to maintain reasonable levels of privacy. Principal siting and design techniques to consider and use, include: • Building orientation, • Position of habitable rooms, • Window size and location, • Building separation and setbacks, • Avoiding or minimising direct lines of sight, and • Location of balconies and terraces adjacent indoor living areas. When principal techniques may not maintain reasonable levels of privacy, supplementary techniques to consider and use include: • Recessed balconies or vertical fins, • Solid or partially solid balustrades, • Bay or pop-out windows, • Planter boxes, • Privacy screens, • Sill heights, or • Opaque window glazing.	Reasonable privacy is maintained between occupants of the dwelling house and its outbuildings, with occupants of neighbouring dwellings.

Division D cl. 2 Dwelling houses & secondary dwellings		
Design elements	**Guidelines**	**Performance criteria**
v. Private open space. Min. area. Min. length and width. Max. grade. When provided above ground, min. length and width to count towards min. private open space area. Refer to Figure 19 in the Schedule.	 36m^2. 4m. 1:10. 2m.	Private open space is sited and designed to accommodate various functions such as outdoor leisure and dining, gardening and landscaping, clothes drying, and bin storage.
vi. Principal private open space. Min. area. Min. length and width. Max. grade. Refer to Figure 19 in the Schedule.	Principal private open space is located adjacent to and directly accessible from a habitable room in a dwelling, other than a bedroom. Principal private open space is included in a dwelling's private open space. 16m^2. 4m. 1:50.	Principal private open space is located and designed to provide high amenity for dwelling occupants.
vii. Provision of principal private open space for a secondary dwelling can be shared with the principal dwelling. viii. Principal private open space for a secondary dwelling, when provided its own area: At ground level: Min. area. Min. length and width. Max. grade. Above ground level, when attached to principal dwelling: Min. area. Min. length and width.	 Principal private open space is located adjacent to and directly accessible from a habitable room in a secondary dwelling. 16m^2. 4m. 1:50. 12m^2. 2m.	

Division D cl. 2 Dwelling houses & secondary dwellings		
Design elements	**Guidelines**	**Performance criteria**
ix. Noise & air quality.	Development is to be sited and designed to acceptably reduce the impact of noise in the locality. When there is a risk development will be impacted by a nearby source of noise or offensive or hazardous emissions to the atmosphere, the development is to be designed and sited to acceptably reduce that risk. When deemed necessary by Council, a noise impact assessment is to be submitted with a development application and the development's design is to adopt the recommendations of that assessment.	Impacts of noise and air-emissions are avoided or effectively mitigated and minimised.
x. Waste Management.	Provide bin storage in accordance with Council's kerbside requirements, in a readily accessible location for residents. Bins are not to be stored forward of the primary street setback, or in a location visible from the public domain. Construction and demolition waste is to be managed and disposed of in accordance with the requirements of Council or another authority, when applicable.	Waste storage meets residents' requirements, reasonably maintains resident-amenity and the qualities of the streetscape and the character of the locality. Waste from the development is effectively managed in accordance with applicable requirements.
xi. Building materials.	Reflective building materials are not to be used.	Building materials do not unreasonably diminish neighbours' amenity.
f. Boundary treatments (fences & walls).		
i. Max. height of a boundary treatment forward of the primary street setback. Refer to Figure 24 in the Schedule.	1.2m, or 1.8m, with at least 50% being see-through.	Amenity is protected for residents without adverse impact on the streetscape. Informal surveillance is enabled, and the boundary treatment contributes positively to the streetscape.
ii. Max. height of a gate, forward of the primary street setback.	As above.	Gates are of the same height as and compatible in appearance with the remainder of front boundary treatment and maintain safety on the public road.
iii. Max. height of side and rear boundary treatment behind the primary street setback.	1.8m.	Side and rear fencing enables privacy and security without being visually intrusive or dominant.

<table>
<tr><th colspan="3">Division D cl. 2 Dwelling houses & secondary dwellings</th></tr>
<tr><th>Design elements</th><th>Guidelines</th><th>Performance criteria</th></tr>
<tr><td>iv. Boundary treatment materials and colours.</td><td>To be consistent with materials and colours of the dwelling house and compatible with the streetscape.

On a lot adjoining semi-rural or rural land, or land in an Environmental zone, boundary treatments on that lot are to be compatible with the character of the land adjoining the lot.

Post and rail or post and wire fencing are examples of suitable fencing. Solid metal or timber fencing, or masonry walls are discouraged.</td><td>Boundary treatments contribute positively to the streetscape and are compatible with the character of the locality.</td></tr>
<tr><td colspan="3">g. Access & parking.</td></tr>
<tr><td>i. Min. no. car parking spaces for a dwelling house.

ii. Min. parking for a secondary dwelling.</td><td>Specified by Part 17.

Additional parking not required if existing parking exceeds min. number of spaces specified by Part 17.</td><td>The number of on-site parking spaces is adequate and does not unreasonably reduce parking supply on local streets.</td></tr>
<tr><td>iii. Max. garage width when facing any road, except a lane.

Refer to Figure 20 in the Schedule.</td><td><table><tr><th>Lot Width</th><th>Max. width of garage door</th></tr><tr><td>7m – 12m</td><td>3.2m</td></tr><tr><td>>12m – 24m</td><td>6m</td></tr><tr><td>>24m*</td><td>9.2m*</td></tr></table>*An additional single garage may be erected adjacent to a double garage if:
The entry to the additional garage is set back at least 1m behind the entry to the other garage, and
The width of the driveway at the garage openings tapers gradually to a max. width of 6m at the property boundary.</td><td>Adequate area is available for ingress and egress of private vehicles.

Garage doors and openings do not dominate the streetscape.</td></tr>
<tr><td>iv. Carports forward of the primary street setback.</td><td>A carport erected forward of the primary street setback is to:
Have max. dimensions of 6m x 3m,
Be setback at least 1m from the front boundary,
Not exceed 4.5m in height,
Only be enclosed one side, either at the rear of the carport or on the side closest to a side lot boundary, and
Be designed and built of materials and colours compatible with the main building(s) on the lot.</td><td>Carports forward of the primary street setback do not unreasonably affect the amenity of neighbours and are compatible with other buildings on the lot and the streetscape.</td></tr>
</table>

Division D cl. 2 Dwelling houses & secondary dwellings		
Design elements	**Guidelines**	**Performance criteria**
v. Pedestrian and vehicle access for secondary dwellings.	Secondary dwellings are to use the primary dwelling access and driveway. Separate access can be provided from a secondary street on a corner lot.	Suitable access is provided to secondary dwellings.
h. **Utility infrastructure.**		
i. Access to the development and associated road works.		Access to the development and associated road works are consistent with Council's *Engineering Guidelines for Subdivisions and Development Standards.* On bush fire prone land, access is provided in accordance with RFS guidelines.
ii. Water and sewer supply.		If required, arrangements are made with Council, the water and sewer authority, for provision of water and sewer services. Such arrangements are consistent with Council's *Engineering Guidelines for Subdivisions and Development Standards.* On bush fire prone land, water supply is provided in accordance with RFS guidelines.
iii. Stormwater management.	A stormwater management concept plan is to be submitted with a development application.	Stormwater management is consistent with Council's *Engineering Guidelines for Subdivisions and Development Standards*.
iv. Electricity, gas and telecommunications services.		Evidence is provided to Council, that these services are available, before issue of an occupation certificate.

3. Ancillary development, including sheds, garages & other outbuildings

a. This clause applies to ancillary development, including sheds, garages and other outbuildings as defined by the Codes SEPP, that is not exempt or complying development under that policy or any other environmental planning instrument.

b. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

Development Guidelines Table

Division D cl. 3 Ancillary development, including sheds, garages & other outbuildings		
Design elements	**Guidelines**	**Performance criteria**
i. Max. gross floor area of a shed or a garage (when not part of a dwelling house), or both.	60% of the gross floor area of the dwelling house. The gross floor area of other ancillary development will be considered on merit.	Ancillary development, including sheds, garages and other outbuildings, are compatible with buildings on the lot, on neighbouring land and the streetscape or landscape qualities of the locality, as they are: • Suitably sized as a proportion of the lot size and in relation to all buildings on the lot, • Sited and designed to ensure the impact of their siting, bulk, height and scale is minimised, • Sited and designed to reasonably maintain sunlight access of neighbouring dwellings and private open space, • Constructed of compatible building materials and colours, and • Landscaped to maintain reasonable amenity.
ii. Min. landscaped area and private open space.	Ancillary development does not reduce the min. landscaped area or private open space to an amount less than that required.	
iii. Max. building wall height, measured from existing ground level to the eaves.	3.3m with a minimum side and rear setback of 900mm 3.6m with a minimum side and rear setback of 1.5m.	
iv. Min. front setback.	3m behind the primary street setback of the dwelling house.	
v. Min. side setback.	900mm.	
vi. Min. rear setback.	900mm.	
vii. Build to boundary/zero setbacks (0-900mm).	Not permitted on a lot >20m wide at the primary street setback. 0-900mm setback permitted to one boundary only. 3.3m max. wall height. An unbroken wall length is not to exceed 10m, or one third of the boundary length, whichever is less.	
viii. Materials & colours.	Sheds and other outbuildings are to be constructed of non-reflective materials and colours that are compatible with other buildings on the lot.	
ix. Earthworks, retaining walls & other related structures.	Cl. 2. b. iv. applies.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.

Division E – Medium density housing

Advice

Interpretation & the LEP

- *For the meaning of words and terms refer to clause 4 of Division A – Introduction, for more information.*
- *Medium density housing is permitted with consent by the LEP in R1 General Residential, R3 Medium Density Residential, B1 Neighbourhood Centre, B2 Local Centre and B4 Mixed Use zones.*
- *Subdivision of dual occupancies (one beside the other), attached dwellings and semi-detached dwellings is permissible with Council consent, per cl. 4.1A of the LEP. This clause permits Council to approve a development application for erection of dwellings and subdivision, provided the lot size is at least 300m^2 for each dwelling. This type of development is sometimes termed 'integrated housing'. When an application is lodged per cl. 4.1A, the design guidelines for these dwelling types are to be observed, in addition to creating lots that are of sufficient size (per the standard specified by the LEP) and dimensions to provide for the dwelling, outbuildings (if any), landscaped area, private open space, and so on, specified in the Development Guidelines Tables for each type of housing.*
- *Strata subdivision of multi dwelling housing is permitted with consent by cl. 4.1 of the LEP.*
- *For the provision of public utilities and infrastructure to new lots, cl.7.6 of the LEP applies.*
- *Ancillary development, including sheds, garages and other outbuildings, require development consent, when they do not satisfy requirements to be exempt or complying development under the Codes SEPP.*
- *Most fencing within Residential and Commercial zones does not require Council's approval, being classified as exempt development. Development standards for exempt development are contained in the Codes SEPP.*
- *Diagrams and illustrations are located in a Schedule at the end of this part, to assist interpretation of guidelines in the Development Guidelines Tables.*

Purpose of this Division

- *This division guides these types of residential development:*
  - *Dual occupancies (one dwelling beside another) and semi-detached dwellings,*
  - *Multi dwelling housing (except terraces), and*
  - *Multi dwelling housing (terraces).*
- *These types of residential development are defined differently from other forms of medium density housing, defined as 'residential flat buildings', which are guided by Division F.*
- *Medium density housing, such as town houses, villas, and attached dwellings, are guided by Clause 3 of this division. Terraces have separate guidelines in Clause 4, as they are defined differently by the Codes SEPP. Standards and guidelines have been adapted from the Codes SEPP and the companion Low Rise Medium Density Design Guide. They should be referenced by designers for further information.*

Master plans & concept development applications

- *A 'master plan' is a plan prepared to conceptually illustrate how a site is to be subdivided and developed.*
- *'Concept development application' has the same meaning as in s.4.22 (1) of the Act.*
- *'Accessible area' is land wherein a safe pedestrian access path is available between a development site and land in either a B1, B2, B3 or B4 zone; and the distance of that access path (or paths) is 400 metres or less, when measured along the street or streets.*

Utility installations

- *When preparing a development application, applicants should contact:*
  - *Council regarding stormwater drainage, water and sewer services, and*
  - *Providers of gas, electricity and telecommunications services,*

to determine service availability, approval requirements or restrictions for servicing (if any).

- *When necessary, development is to be designed to accommodate any on-site infrastructure in accordance with standards and approvals of relevant agencies.*
- *Development applications are to include details of all existing and proposed services.*
- *Location of any proposed water or sewer mains are to be supplied with the development application.*
- *Servicing through areas with significant vegetation is to be avoided when practical.*
- *On bush fire prone land, proposed development is to provide for access and a water supply for fire-fighting in accordance with the NSW Rural Fire Service guidelines.*

Tree & vegetation management

- *Trees and vegetation should be retained where possible. Refer to Part 5 of this DCP for further information.*

Consultation & collaboration

- *When preparing a development application, applicants are encouraged to discuss proposed development with Council's planning/assessment officers.*

1. Objectives

Objectives for development to which Division E applies are to be considered by Council when a development application is determined. The objectives are, to:

a. Ensure medium density housing and ancillary development responds to the environmental conditions of the site and the locality.

b. Enable medium density housing and ancillary development to be compatible with the streetscape and to contribute positively to the character of the locality in which development is proposed.

c. Create reasonable amenity for occupants of medium density housing without causing unreasonable impacts on the amenity of neighbours.

2. Dual occupancies (attached & detached) and semi-detached dwellings

a. This clause applies to:
   i. dual occupancies (attached & detached),
   ii. semi-detached dwellings, and
   iii. adaptation of and alterations and additions to existing buildings to create dual occupancies (attached & detached) or semi-detached dwellings.

b. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

c. Where there is no guideline for a design element, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

Development Guidelines Table

Division E cl. 2 Dual occupancies & semi-detached dwellings		
Design elements	**Guidelines**	**Performance criteria**
a. Site planning.		
i. Min. landscaped area. Min. width of landscaped areas (to count as part of min. landscaped area). Min. proportion of the primary street setback to be landscaped area. Refer to Figure 13 in the Schedule.	30% in the R1 zone. 20% in the R3 and B4 zones. 1m. 25%	Adequate landscaped area is provided, to ensure: • Space for growing plants, including trees, • Absorption of rainwater into the ground, • Reasonable amenity for residents, • Lots are not over-developed with buildings, structures and paving, and • Paving and buildings do not dominate the streetscape.
ii. Development on a battle-axe lot.	Development guided by this clause is not favoured on a battle-axe lot, unless: • The lot adjoins or has an outlook to public open space or another type of public reserve, or land in an environmental protection zone, and, • Access to the lot is suitable for the development.	Development on a battle-axe lot: • Provides reasonable amenity for occupants and neighbours, • Is compatible with the public domain and the character of the locality, • Addresses public open space or another type of public reserve, or land in an environmental protection zone, and • Is provided suitable access.
iii. Max. basement area.	Within applicable building setbacks.	The basement does not unreasonably reduce deep soil available for planting of trees in unbuilt areas of the lot.
b. Building height.		
i. Max. no. of storeys.	2. Does not apply in R3 and B4 zones.	Number of storeys is compatible with the streetscape and the character of the locality. Number of storeys reasonably maintains acceptable relationships with adjoining development, in terms of bulk and scale, and resident-amenity.

Division E cl. 2 Dual occupancies & semi-detached dwellings		
Design elements	**Guidelines**	**Performance criteria**
ii. Max. no. of storeys in the rear 40% of a lot, measured as a percentage of the average length of the two side boundaries.	1. Does not apply in the R3 and B4 zones (except when the lot adjoins land in the R1 or R2 zones), or when the lot adjoins a rear lane, or is a corner lot, or is in a heritage conservation area.	Development in the rear of a lot maintains resident amenity and is compatible with local character.
iii. Earthworks, retaining walls & related structures. Refer to Figure 14 & 15 in the Schedule.	Development is to be stepped to align as closely as possible with the slope of the lot. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with adjoining land. If the lot was benched when the land was subdivided, earthworks and related structures are not to further increase or decrease finished ground levels at any boundary with adjoining land. All earthworks and related structures are to be properly drained and not direct surface water onto adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.
	Structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed.
	Appropriate construction techniques, including minimising removal of vegetation where possible, are to be implemented to assist in erosion and sediment control during and post construction. An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	Construction of earthworks and related structures does not adversely impact stormwater flows and the environment.

Division E cl. 2 Dual occupancies & semi-detached dwellings		
Design elements	**Guidelines**	**Performance criteria**
iv. Max. floor height above existing ground level of decks, patios and the like.	0.5m with < 2m setback. 2m with 2m – 3m setback. 3m with 3m – 6m setback.	Maintains acceptable built form and amenity relationships with neighbouring development.
c. Setbacks.		
i. Min. primary street setback. Refer to Figure 16 in the Schedule.	Average setback of the two dwellings closest to the site, in the same street and on the same side of the street. 4m when averaging as set out above is impractical.	Setbacks are compatible with the setback of neighbouring buildings. Setbacks contribute to a consistent streetscape and character in the locality.
ii. Min. secondary street setback on a corner lot.	50% of the primary road setback.	
iii. Min. setback for a garage when facing any road, except a lane.	0.5m behind the primary street setback of the dwelling house.	Garage doors and openings do not dominate the streetscape. Adequate area is available for ingress and egress of private vehicles.
iv. Min. side setback.	0.9m, when building height closest to the boundary does not exceed 4.5m. 1.5m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at side boundaries, for amenity, boundary fencing, access, safety, and maintenance.
v. Min. garage setback from a rear lane.	0m, provided there is adequate area for access into and egress from a garage. Entry to and exit from a garage is to be demonstrated by plans of swept paths of vehicles, if required.	Safe and practical entry to and exit from a garage off a rear lane is provided.
vi. Build-to Boundary/Zero setbacks (0mm-900mm).	Not permitted on a lot > 20m wide at the primary street setback. 0 – 900mm setback is permitted to one side boundary only. Walls setback < 900mm must be of masonry construction and have no openings. 3m max. wall height. Unbroken length cannot be greater than 10m, or one third of the boundary length, whichever is less. Max. length of 15m provided that the wall contains at least one break of at least 3m.	Appropriate flexibility for building siting and design is enabled on lots < 20m in width. Access between the front and rear of a lot is available on at least one side of a dwelling. Adequate area is provided for building maintenance. Amenity of occupants of neighbouring development is maintained or created. A harmonious streetscape is maintained or created.

Division E cl. 2 Dual occupancies & semi-detached dwellings		
Design elements	**Guidelines**	**Performance criteria**
	A building adjacent to a wall with a zero setback is to be set back 1.5 metres from the common boundary, despite any other provision of this DCP.	
vii. Min. rear setback.	2m, when building height closest to the boundary does not exceed 4.5m. 6m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at rear boundaries, for access, safety, private open space, privacy and sunlight access.
viii. Exceptions to the primary street setback.	In areas undergoing change in their character due to various circumstances (e.g. a change in zoning or land economics), a site and context analysis is to be carried out to establish an appropriate setback to the street, when an exception is sought to the primary street setback. Applicants are to consult with Council regarding the appropriate application of this guideline when preparing a development application.	The primary street setback is established in accordance with a site and context analysis, that has considered the area's character and specific circumstances related to the site and its development.
ix. Other exceptions to setbacks.	450mm is the min. side setback for any aerial, antenna, awning, eave, flue, chimney, pipe, cooling or heating appliance, any rainwater tank greater than 1.8m in height, or any other structure, installation or appliance associated with the provision of a utility service. Side or rear setbacks do not apply to fences, fascias, gutters, downpipes, light fittings, electricity or gas meters, driveways, open carports, paths or paving. Setbacks from streets and lanes do not apply to driveways, fences, paths, or retaining walls.	Services and utilities are able to be located within side and rear setbacks, without unreasonable adverse impacts on resident-amenity. Adequate access is maintained to side and rear boundaries and for access between the front and rear of the lot. Siting is enabled, of ancillary works that must be located on, over or between lot boundaries and buildings.
d. Character & the public domain.		
i. Character.	The building is designed to be compatible with the streetscape and character of the locality.	Development is of high architectural quality and contributes positively to local character and a safe public domain.
ii. Design, massing & articulation. Refer to Figure 17 in the Schedule.	Massing and articulation are to reduce apparent scale and bulk and provide visually interesting buildings.	Design and choice of materials and colours are compatible with surrounding development and contribute to a pleasant and attractive public domain.

Division E cl. 2 Dual occupancies & semi-detached dwellings		
Design elements	**Guidelines**	**Performance criteria**
	Materials, textures and colours are to complement the massing and design of the building. Buildings are to be suitably articulated using harmonious architectural elements in the design, such as verandahs, porticos, awnings, bay windows, balconies or terraces. Elements such as these may be forward of the primary street setback. Simple roof forms are to be designed to complement other building elements and minimise bulk and scale of the building. Roof forms are to be compatible with those of nearby buildings. Infrastructure and services are to be integrated into to the development's design or screened.	The mass and form of development integrates with and promotes diversity in the locality through quality urban design.
iii. Community safety & surveillance.	Principal pedestrian entries are to address, be readily identifiable and directly accessible from the street. Principal pedestrian entries are not to be from a lane. When a building façade faces a reserve or other element of the public domain, that façade is to include windows and/or doors to address that reserve or other element of the public domain. Fencing and landscaping are not to unacceptably diminish informal surveillance of the public domain.	A safe method of access to and egress from development is provided. Development contributes to community safety and informal surveillance of the public domain.
e. Resident-amenity.		
i. Sunlight access. Refer to Figures 21 & 22 in the Schedule.	Windows and doors of habitable rooms (except bedrooms) and private open space of all dwellings are to be sited and oriented to receive at least 3 hours direct sunlight between 9am and 3pm on the winter solstice.	Sunlight access to primary indoor living areas and private open space is optimised. Sunlight access enables passive solar heating in winter and provides a pleasant and healthy indoor environment.

Division E cl. 2 Dual occupancies & semi-detached dwellings		
Design elements	**Guidelines**	**Performance criteria**
ii. Overshadowing.	Proposed development must retain at least 3 hours of sunlight between 9am and 3pm on the winter solstice for existing neighbouring residential accommodation's: • Windows and doors of habitable rooms except bedrooms, • At least 50% of private open space, • Photovoltaic and solar hot water systems, and • Outdoor clothes drying facilities. If areas or utilities specified in the above paragraph of existing neighbouring residential accommodation receive less than 3 hours sunlight at the time a development application is lodged for adjoining land, the amount of sunlight received is not be reduced as a result of proposed development. When existing neighbouring residential accommodation may have its sunlight access impacted by proposed development, a shadow diagram is to be submitted with the application for the proposed development, based on the winter solstice, in hourly intervals from 9am to 3pm.	Sunlight access to existing neighbouring residential accommodation is reasonably maintained.
iii. Climate management for west-facing residential accommodation. Refer to Figure 18 in the Schedule.	Where habitable rooms face west (between north-west and south-west), architectural elements are to be used, such as: • Extended eaves, • Verandahs, • Shutters, or • Awnings. Architectural design elements may be complemented by landscaping.	Heat-gain is reduced to improve thermal performance and comfort for occupants of residential accommodation.
iv. Privacy. Refer to Figure 23 in the Schedule.	When privacy of occupants of proposed development or neighbours is likely to be affected, siting and design of the proposed development is to maintain reasonable levels of privacy. Principal siting and design techniques to consider and use, include: • Building orientation, • Position of habitable rooms, • Window size and location, • Building separation and setbacks, • Avoiding or minimising direct lines of sight, and	Privacy between residents of proposed development and neighbours is reasonably protected.

Division E cl. 2 Dual occupancies & semi-detached dwellings		
Design elements	**Guidelines**	**Performance criteria**
	• Location of balconies and terraces adjacent indoor living areas. When principal techniques may not maintain reasonable levels of privacy, supplementary techniques to consider and use include: • Recessed balconies or vertical fins, • Solid or partially solid balustrades, • Bay or pop-out windows, • Planter boxes, • Privacy screens, • Sill heights, or • Opaque window glazing.	
v. Private open space. Min. area. Min. length and width. Max. grade. When provided above ground, min. length and width to count towards min. private open space area. Refer to Figure 19 in the Schedule.	 24m^2. 4m. 1:20. 2m.	Private open space is sited and designed to accommodate various functions such as outdoor leisure and dining, gardening and landscaping, clothes drying, and bin storage.
vi. Principal private open space. Min. area. Min. length and width. Max. grade. Refer to Figure 19 in the Schedule.	Principal private open space is located adjacent to and directly accessible from a habitable room in a dwelling, other than a bedroom. 16m^2. 4m. 1:50.	Principal private open space is located and designed to provide high amenity for dwelling occupants.
vii. Noise & air quality.	Development is to be sited and designed to acceptably reduce the impact of noise in the locality. When there is a risk development will be impacted by a nearby source of noise or offensive or hazardous emissions to the atmosphere, the development is to be designed and sited to acceptably reduce that risk.	Impacts of noise and air-emissions are avoided or effectively mitigated and minimised.

Division E cl. 2 Dual occupancies & semi-detached dwellings		
Design elements	**Guidelines**	**Performance criteria**
	When deemed necessary by Council, a noise impact assessment is to be submitted with a development application and the development's design is to adopt the recommendations of that assessment.	
viii. Waste Management.	Provide bin storage in accordance with Council's kerbside requirements, in a readily accessible location for residents. Bins are not to be stored forward of the primary street setback, or in a location visible from the public domain. Construction and demolition waste is to be managed and disposed of in accordance with the requirements of Council or another authority, when applicable.	Waste storage meets residents' requirements, reasonably maintains resident-amenity and the qualities of the streetscape and the character of the locality. Waste from the development is effectively managed in accordance with applicable requirements.
ix. Building materials.	Reflective building materials are not to be used.	Building materials do not unreasonably diminish neighbours' amenity.
f. Boundary treatments (fences & walls).		
i. Max. height of a boundary treatment forward of the primary street setback. Refer to Figure 24 in the Schedule.	1.2m, or 1.8m, with at least 50% being see-through.	Amenity is protected for residents without adverse impact on the streetscape. Informal surveillance is enabled, and the boundary treatment contributes positively to the streetscape.
ii. Max. height of a gate, forward of the primary street setback.	As above.	Gates are of the same height as and compatible in appearance with the remainder of front boundary treatments and maintain safety on the public road.
iii. Max. height of side and rear boundary treatment behind the primary street setback.	1.8m.	Side and rear fencing enables privacy and security without being visually intrusive or dominant.
iv. Boundary treatment materials and colours.	To be consistent with the materials and colours of the development on the lot and compatible with the streetscape. On a lot adjoining semi-rural or rural land, or land in an Environmental zone,	Boundary treatments contribute positively to the streetscape and are compatible with the character of the locality.

<table>
<tr><th colspan="3">Division E cl. 2 Dual occupancies & semi-detached dwellings</th></tr>
<tr><th>Design elements</th><th>Guidelines</th><th>Performance criteria</th></tr>
<tr><td></td><td>boundary treatments on that lot are to be compatible with the character of the land adjoining the lot. Post and rail or post and wire fencing are examples of suitable fencing. Solid metal or timber fencing, or masonry walls are discouraged.</td><td></td></tr>
<tr><td colspan="3">g. Access & parking.</td></tr>
<tr><td>i. Pedestrian access.</td><td>Pedestrian entries are to be clearly identifiable and visible from the street.

Entries are to provide direct access to letter boxes.

Entries and paths from the street are to be suitably lit at night.</td><td>Pedestrian entries to development are safe and provide amenity for and informal surveillance of the street.</td></tr>
<tr><td>ii. Min. no. of parking spaces.</td><td>Specified by Part 17.</td><td>The number of on-site parking spaces is adequate.</td></tr>
<tr><td>iii. Max. garage width when facing any road, except a lane.

Refer to Figure 20 in the Schedule.</td><td><table><tr><th>Lot Width</th><th>Max. width of garage door</th></tr><tr><td>7m – 12m</td><td>3.2m</td></tr><tr><td>>12m – 24m</td><td>6m</td></tr><tr><td>>24m*</td><td>9.2m*</td></tr></table>
*An additional single garage may be erected adjacent to a double garage if:
• The entry to the additional garage is set back at least 1m behind the entry to the other garage, and
• The width of the driveway at the garage openings tapers gradually to a max. width of 6m at the property boundary.</td><td>Adequate area is available for ingress and egress of private vehicles.

Garage doors and openings do not dominate the streetscape.</td></tr>
</table>

Division E cl. 2 Dual occupancies & semi-detached dwellings		
Design elements	**Guidelines**	**Performance criteria**
iv. Internal access design. Refer to Figure 25 in the Schedule.	Internal access design is to consider and be based on a combination of these principles: • Varying the alignment of driveways to avoid a 'gun-barrel' effect'. • Setting-back garages behind the predominant primary street setback to reduce their visibility from the street. • Avoiding driveways running the length of the site. • Terminating vistas with trees, vegetation, open space or a dwelling, not garages or parking. • Using planting to soften driveway edges. • Varying the driveway surface material to break it up into series of smaller spaces. • Limiting driveway widths on narrow sites to single vehicle width with passing bays when required.	Internal access design is safe, functional, visually appealing and contributes positively to the streetscape.
v. Carports forward of the primary street setback.	A carport erected forward of the primary street setback is to: • Have max. dimensions of 6m x 3m, • Be setback at least 1m from the front boundary, • Not exceed 4.5m in height, • Only be enclosed one side, either at the rear of the carport or on the side closest to a side lot boundary, and • Be designed and built of materials and colours compatible with the main building(s) on the lot.	Carports forward of the primary street setback do not unreasonably affect the amenity of neighbours and are compatible with other buildings on the lot and the streetscape.
h. Utility infrastructure.		
i. Access to the development and associated road works.		Access to the development and associated road works are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, access is provided in accordance with RFS guidelines.

Division E cl. 2 Dual occupancies & semi-detached dwellings		
Design elements	**Guidelines**	**Performance criteria**
ii. Water and sewer supply.		If required, arrangements are made with Council, the water and sewer authority, for provision of water and sewer services. Such arrangements are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, water supply is provided in accordance with RFS guidelines.
iii. Stormwater management.	A stormwater management concept plan is to be submitted with a development application.	Stormwater management is consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.
iv. Electricity, gas and telecommunications services.		Evidence is provided to Council, that these services are available or can be made available before issue of an occupation certificate.

3. Multi dwelling housing (except terraces)

a. This clause applies to new multi dwelling housing (except terraces), adaptation of and alterations and additions to existing buildings to create multi dwelling housing (except terraces).

b. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

c. Where there is no guideline for a design element, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

Development Guidelines Table

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
a. Site planning.		
i. Location of multi dwelling housing (except terraces) in the R1 zone.	Multi dwelling housing and/or residential flat building sites are to be located: • In greenfield areas, at least 50m or 3 lots apart, whichever is the greater. The separation distance is measured between the closest point of each site along the street network. • In existing urban areas, at least 1 lot apart. Variation of this guideline may be considered when the proposed development is within 400m of a B1, B2, B3 or a B4 zone, measured along a street or streets, from the site to the closest point of the B1, B2, B3 or B4 zone.	A variety of housing stock is maintained in residential localities. Distribution of multi-dwelling housing and residential flat buildings is compatible with the streetscape and the character of the locality. Concentration of multi-dwelling housing is able to occur within a 400m walk of a B1, B2, B3 or a B4 zone.
ii. Min. landscaped area. Min. width of landscaped areas (to count as part of min. landscaped area). Min. proportion of the primary street setback to be landscaped area. Refer to Figure 13 in the Schedule.	30% in R1 zone. 20% in R3 and B4 zones. 1m. 25%.	Adequate landscaped area is provided, to ensure: • Space for growing plants, including trees, • Absorption of rainwater into the ground, • Reasonable amenity for residents, • Lots are not over-developed with buildings, structures and paving, and • Paving and buildings do not dominate the streetscape.
iii. Development on a battle-axe lot.	Development guided by this clause is not favoured on a battle-axe lot, unless: • The lot adjoins or has an outlook to public open space or another type of public reserve, or land in an environmental protection zone, and, • Access to the lot is suitable for the development.	Development on a battle-axe lot: • Provides reasonable amenity for occupants and neighbours, • Is compatible with the public domain and the character of the locality, • Addresses public open space or another type of public reserve, or land in an environmental protection zone, and • Is provided suitable access.

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
iv. Max. basement area.	Within applicable building setbacks.	Basements do not impact the ability to maintain or plant vegetation on the lot.
b. Building height.		
i. Max no. of storeys.	2. Does not apply in R3 and B4 zones.	Number of storeys is compatible with the streetscape and the character of the locality. Number of storeys reasonably maintains acceptable relationships with adjoining development, in terms of bulk and scale, and resident-amenity.
ii. Max. no. of storeys in the rear 40% of a lot, measured as a percentage of the average length of the two side boundaries.	1. Does not apply in the R3 and B4 zones (except when the lot adjoins land in the R1 or R2 zones), or when the lot adjoins a rear lane, or is a corner lot, or is in a heritage conservation area.	Development in the rear of a lot maintains resident amenity and is compatible with local character.
iii. Earthworks, retaining walls & related structures. Refer to Figures 14 & 15 in the Schedule.	Development is to be stepped to align as closely as possible with the slope of the lot. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with adjoining land. If the lot was benched when the land was subdivided, earthworks and related structures are not to further increase or decrease finished ground levels at any boundary with adjoining land. All earthworks and related structures are to be properly drained and not direct surface water onto adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.
	Structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed.
	Appropriate construction techniques, including minimising removal of vegetation where possible, are to be implemented to assist in erosion and sediment control during and post construction.	Construction of earthworks and related structures does not adversely impact stormwater flows and the environment.

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
	An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	
iv. Max. floor height above existing ground level of decks, patios and the like.	0.5m with < 2m setback. 2m with 2m – 3m setback. 3m with 3m – 6m setback.	Maintains acceptable built form and amenity relationships with neighbouring development.
c. Setbacks.		
i. Min. primary street setback. Refer to Figure 16 in the Schedule.	Average setback of the two dwellings closest to the site, in the same street and on the same side of the street. 4m when averaging as set out above is impractical.	Setbacks are compatible with the setback of neighbouring buildings. Setbacks contribute to a consistent streetscape and character in the locality.
ii. Min. secondary street setback on a corner lot (does not apply to detached dwellings which face the second frontage).	50% of the primary street setback.	
iii. Min. garage setback from a rear lane.	0m, provided there is adequate area for access into and egress from a garage. Entry to and exit from a garage is to be demonstrated by plans of swept paths of vehicles, if required.	Safe and practical entry to and exit from a garage off a rear lane is provided.
iv. Min. side setback.	0.9m, when building height closest to the boundary does not exceed 4.5m. 1.5m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at side boundaries, for amenity, boundary fencing, access, safety, and maintenance.
v. Min. rear setback.	3m, when building height closest to the boundary does not exceed 4.5m. 6m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at rear boundaries, for access, safety, private open space, privacy and sunlight access.
vi. Min. setback from the driveway.	1m.	Adequate separation is provided between the driveway and dwellings to protect resident-amenity.
vii. Min. setback between the main entrance of a dwelling and the main entrance of another dwelling which is visible via a direct line of sight.	8m.	Adequate separation is provided between the main entrance of a dwelling and another.

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
viii. Exceptions to the primary street setback.	In areas undergoing change in their character due to various circumstances (e.g. a change in zoning or land economics), a site and context analysis is to be carried out to establish an appropriate setback to the street, when an exception is sought to the primary street setback. Applicants are to consult with Council regarding the appropriate application of this guideline when preparing a development application.	The primary street setback is established in accordance with a site and context analysis, that has considered the area's character and specific circumstances related to the site and its development.
ix. Other exceptions to setbacks.	450mm is the minimum side or rear setback for any aerial, antenna, awning, eave, flue, chimney, pipe, cooling or heating appliance, any rainwater tank greater than 1.8m in height, or any other structure, installation or appliance associated with the provision of a utility service. Side or rear setbacks do not apply to fences, fascias, gutters, downpipes, light fittings, electricity or gas meters, driveways, open carports, paths or paving. Setbacks from streets and lanes do not apply to driveways, fences, paths, or retaining walls.	Services and utilities are able to be located within side and rear setbacks, without unreasonable adverse impacts on neighbours' amenity or access between the front and rear of the lot. Enables siting of ancillary works that must be located on, over or between lot boundaries and buildings.
d. Character & the public domain.		
i. Character.	The building is designed to be compatible with the streetscape and character of the locality.	Development is of high architectural quality and contributes positively to local character and a safe public domain. Design and choice of materials and colours are compatible with surrounding development and contribute to a pleasant and attractive public domain. The mass and form of development integrates with and promotes diversity in the locality through quality urban design.
ii. Design, massing & articulation. Refer to Figure 17 in the Schedule.	Massing and articulation are to reduce apparent scale and bulk and create visually interesting buildings. Materials, textures and colours are to complement the massing and design of the building. Buildings are to be suitably articulated using harmonious architectural elements in the design, such as verandahs, porticos, awnings, bay windows, balconies or terraces. Elements such as these may be forward of the primary street setback. Simple roof forms are to be designed to complement other building elements and minimise bulk and scale of the building. Roof	

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
	forms are to be compatible with those of nearby buildings. Infrastructure and services are to be integrated into to the development's design or screened.	
iii. Community safety & surveillance.	Principal pedestrian entries are to address, be readily identifiable and directly accessible from the street. Principal pedestrian entries are not to be from a lane. When a building façade faces a reserve or other element of the public domain, that façade is to include windows and/or doors to address that reserve or other element of the public domain. Fencing and landscaping are not to unacceptably diminish informal surveillance of the public domain.	A safe method of access to and egress from development is provided. Development contributes to community safety and informal surveillance of the public domain.
e. Resident-amenity.		
i. Sunlight access. Refer to Figures 19 & 20 in the Schedule.	Windows and doors of habitable rooms (except bedrooms) and private open space of all dwellings are to be sited and oriented to receive at least 3 hours direct sunlight between 9am and 3pm on the winter solstice.	Sunlight access to primary indoor living areas and private open space is optimised. Sunlight access enables passive solar heating in winter and provides a pleasant and healthy indoor environment.
ii. Overshadowing.	Proposed development must retain at least 3 hours of sunlight between 9am and 3pm on the winter solstice for existing neighbouring residential accommodation's: • Windows and doors of habitable rooms except bedrooms, • At least 50% of private open space, • Photovoltaic and solar hot water systems, and • Outdoor clothes drying facilities. If areas or utilities specified in the above paragraph of existing neighbouring residential accommodation receive less than 3 hours sunlight at the time a development application is lodged for adjoining land, the amount of sunlight received is not be reduced as a result of proposed development.	Sunlight access to existing neighbouring residential accommodation is reasonably maintained.

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
	When existing neighbouring residential accommodation may have its sunlight access impacted by proposed development, a shadow diagram is to be submitted with the application for the proposed development, based on the winter solstice, in hourly intervals from 9am to 3pm.	
iii. Climate management for west-facing residential accommodation. Refer to Figure 18 in the Schedule.	Where habitable rooms face west. (between north-west and south-west), architectural elements are to be used, such as: • Extended eaves, • Verandahs, • Shutters, or • Awnings. Architectural design elements may be complemented by landscaping.	Heat-gain is reduced to improve thermal performance and comfort for occupants of residential accommodation.
iv. Privacy. Refer to Figure 23 in the Schedule.	When privacy of occupants of proposed development or neighbours is likely to be affected, siting and design of proposed development is to maintain reasonable levels of privacy. Principal siting and design techniques to consider and use, include: • Building orientation, • Position of habitable rooms, • Window size and location, • Building separation and setbacks, • Avoiding or minimising direct lines of sight, and • Location of balconies and terraces adjacent indoor living areas. When principal techniques may not maintain reasonable levels of privacy, supplementary techniques to consider and use include: • Recessed balconies or vertical fins, • Solid or partially solid balustrades, • Bay or pop-out windows, • Planter boxes, • Privacy screens, • Sill heights, or • Opaque window glazing.	Reasonable privacy is maintained between occupants of the dwelling house and its outbuildings, with occupants of neighbouring dwellings.

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
v. Private open space. Min. area. Min. length and width. Max. grade. When provided above ground, min. length and width to count towards min. private open space area. Refer to Figure 19 in the Schedule.	 24m^2. 4m. 1:20. 2m.	Private open space is sited and designed to accommodate various functions such as outdoor leisure and dining, gardening and landscaping, clothes drying, and bin storage.
vi. Principal private open space. Min. area. Min. length and width. Max. grade. Refer to Figure 19 in the Schedule.	Principal private open space is located adjacent to and directly accessible from a habitable room in a dwelling, other than a bedroom. 16m^2. 4m. 1:50.	Principal private open space is located and designed to provide high amenity for dwelling occupants.
vii. Communal open space. Min. number of dwellings that requires communal open space. Location. Min. area. Min. dimension. Orientation. Facilities. Amenity. Informal surveillance.	 6. Central to the development, or reasonably accessible to all dwellings' occupants. 100m^2 for 6 to 10 dwellings, plus 10m^2 for each additional dwelling. 8m. 15 degrees either side of north. Facilities may include seating, BBQ facilities or children's play equipment, when 50% of dwellings have two or more bedrooms. Landscaping and screening are to be provided for the benefit of users and to reasonably protect resident-amenity. Informal surveillance is to be provided from dwellings' windows and/or doors being visible to and from the communal open space.	A useable and attractive communal open space is provided and sited to be easily accessible to each of the dwellings.

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
viii. Landscape design.	A landscape concept plan is to be provided, prepared in accordance with Council's *Engineering Guidelines Subdivisions and Development Standards.*	Landscape planning and design is properly conducted for development.
ix. Safer by design.	Development applications for multi dwelling housing (except terraces) of 6 or more dwellings are to be accompanied by a safer by design (crime prevention through environmental design) assessment.	The risk of anti-social behaviour, criminal activity and reduced public safety is avoided, minimised or mitigated. Development is liveable and safe for its occupants.
x. Noise & air quality.	Development is to be sited and designed to acceptably reduce the impact of noise in the locality. When there is a risk development will be impacted by a nearby source of noise or offensive or hazardous emissions to the atmosphere, the development is to be designed and sited to acceptably reduce that risk. When deemed necessary by Council, a noise impact assessment is to be submitted with a development application and the development's design is to adopt the recommendations of that assessment.	Impacts of noise and air-emissions are avoided or effectively mitigated and minimised.
xi. Waste Management.	Provide bin storage in accordance with Council's kerbside requirements, in a readily accessible location for residents. Bins are not to be stored forward of the primary street setback, or in a location visible from the public domain. Construction and demolition waste are to be managed and disposed of in accordance with the requirements of Council or another authority, when applicable.	Waste storage meets residents' requirements, reasonably maintains resident-amenity and the qualities of the streetscape and the character of the locality. Waste from the development is effectively managed in accordance with applicable requirements.
xii. Building materials.	Reflective building materials are not to be used.	Building materials do not unreasonably diminish neighbours' amenity.
f. Boundary treatments (fences & walls).		
i. Max. height of a boundary treatment forward of the primary street setback. Refer to Figure 24 in the Schedule.	1.2m, or 1.8m, with at least 50% being see-through.	Amenity is protected for residents without adverse impact on the streetscape. Informal surveillance is enabled, and the boundary treatment contributes positively to the streetscape.

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
ii. Max. height of a gate, forward of the primary street setback.	As above.	Gates are of the same height as and compatible in appearance with the remainder of front boundary treatments and maintain safety on the public road.
iii. Max. height of side and rear boundary treatment behind the primary street setback.	1.8m.	Side and rear fencing enables privacy and security without being visually intrusive or dominant.
iv. Boundary treatment materials and colours.	To be consistent with the materials and colours of the development on the lot and compatible with the streetscape. On a lot adjoining semi-rural or rural land, or land in an Environmental zone, boundary treatments on that lot are to be compatible with the character of the land adjoining the lot. Post and rail or post and wire fencing are examples of suitable fencing. Solid metal or timber fencing, or masonry walls are discouraged.	Boundary treatments contribute positively to the streetscape and are compatible with the character of the locality.
g. Access & parking.		
i. Pedestrian access.	Pedestrian entries are to be clearly identifiable and visible from the street. Entries are to provide direct access to letter boxes. Entries and paths from the street are to be suitably lit at night. Pedestrian paths are to be separate from driveways, when possible, or shared ways design to minimise vehicle speed to walking speed (5 km/h).	Pedestrian entries to development are safe and provide amenity for and informal surveillance of the street.
ii. Min. no. parking spaces.	Specified by Part 17.	The number of on-site parking spaces is adequate and acceptably impacts parking supply on local streets.

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
iii. Internal access design. Refer to Figure 25 in the Schedule.	Internal access design is to consider and be based on a combination of these principles: • Varying the alignment of driveways to avoid a 'gun-barrel' effect'. • Setting back garages behind the predominant primary street setback to reduce their visibility from the street • Avoiding driveways running the length of the site. • Minimising the impact of driveways on streetscape. • Terminating vistas with trees, vegetation, open space or a dwelling, not garages or parking. • Using planting to soften driveway edges • Varying the driveway surface material to break it up into series of smaller spaces. • Limiting driveway widths on narrow sites to single vehicle width with passing bays when required.	Internal access design is safe, functional, visually appealing and contributes positively to the streetscape.
iv. Access standards.	Refer to Part 17 of this DCP.	Access to lots and associated road works are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.
h. Utility Infrastructure.		
i. Access to the development and associated road works.		Access to the development and associated road works are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, access is provided in accordance with RFS guidelines.
ii. Water and sewer supply.		If required, arrangements are made with Council, the water and sewer authority, for provision of water and sewer services. Such arrangements are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, water supply is provided in

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
		accordance with RFS guidelines.
iii. Stormwater management.	A stormwater management concept plan is to be submitted with a development application.	Stormwater management is consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.
iv. Electricity, gas and telecommunications services.		Evidence is provided to Council, that these services are available, before issue of an occupation certificate.
i. Master plans & concept development applications.		
i. Min. number of dwellings when a master plan is required.	20 dwellings.	Large developments are planned, designed and developed to make a positive and compatible contribution to Albury's urban environment.
ii. Guidelines to be considered in preparing a master plan. Refer to Figures 8, 9, 10 & 11 in the Schedule.	Matters relevant to the development of a site are to be considered, including: • An analysis of the site and locality's accessibility, functions, character and environmental conditions. • Means to improve accessibility of the site and the locality. • Integration with the existing street network and hierarchy, including consideration of street network design principles in cl. 2. e. i. • Potential to connect new streets, footpaths, shared paths or cycleways with planned, approved or constructed streets on adjoining land, with reference to the Thurgoona Wirlinga Precinct Structure Plan or other strategic document, when applicable. • Potential to extend and complement existing street, footpath and bicycle/shared path networks, in areas other than where the Thurgoona Wirlinga Precinct Structure Plan or other strategic document applies. • Preferred uses and built form based on the site and locality analysis. • Higher density lots and housing when the site is within an 'accessible area' in relation to a B1, B2, B3 or B4 zone. • The pattern of subdivision and built form, development complementing the character and functions of the locality. • Provision of public open space identified in a Council-adopted structure plan or strategy.	Master plans are prepared having considered all relevant environmental conditions and Albury's planning framework.

Division E cl. 3 Multi dwelling housing (except terraces)		
Design elements	**Guidelines**	**Performance criteria**
	• Provision of public open space may also be supported through analysis of land proposed as open space, considering matters such as: - an analysis of existing supply and likely demand for open space in the locality, - accessibility – i.e. the open space is within a 400m walk for potential users, not restricted by barriers such as a major road (e.g. roads specified by Div. B cl. 2. e. iii.), a creek line, and the like. - area and dimensions of the land, - the site's characteristics, including constraints such as flooding or steep slopes, and - addition to or integration with other open space (e.g. linear networks). • Where there is potential to dedicate land for environmental conservation, whether the land could also support recreational values and accessibility in the locality are to be considered. When deemed appropriate, low-impact public access is to be provided, that is sensitive to the conservation values of the land. • Potential to retain any significant trees and other vegetation in the public domain, such as in street reserves and public open space. • Potential of the site to be impacted by any hazard, such as contamination, bush fire or flooding, and means of eliminating or reducing the risk posed by the hazard. • Stormwater management, including consistency with any Council drainage strategy. • The potential traffic impact of the site's development and means to avoid, minimise or mitigate those impacts.	

4. Multi dwelling housing (terraces)

a. This clause applies to multi dwelling housing (terraces), whether a new building or buildings or adaptation of, or alterations and additions to existing buildings to create multi dwelling housing (terraces).

b. This clause applies to ancillary development, as defined by the Codes SEPP, that is not exempt or complying development under that policy or any other environmental planning instrument.

c. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

d. Where there is no guideline for a design element, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

Development Guidelines Table

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
a. Site planning.		
i. Location of multi dwelling housing (terraces) in the R1 zone.	Multi dwelling housing and/or residential flat building sites are to be located: • In greenfield areas, at least 50m or 3 lots apart, whichever is the greater. The separation distance is measured between the closest point of each site along the street network. • In existing urban areas, at least 1 lot apart. Variation of this guideline may be considered when the proposed development is within 400m of a B1, B2, B3 or a B4 zone, measured along a street or streets, from the site to the closest point of the B1, B2, B3 or B4 zone.	A variety of housing stock is maintained in residential localities. Distribution of multi-dwelling housing and residential flat buildings is compatible with the streetscape and the character of the locality. Concentration of multi-dwelling housing is able to occur within a 400m walk of a B1, B2, B3 or a B4 zone.
ii. Min. landscaped area: Min. width of landscaped areas (to count as part of min. landscaped area). Min. proportion of the primary street setback to be landscaped area. Refer to Figure 13 in the Schedule.	30% in R1 zone 20% in R3 and B4 zones 1m. 25%	Adequate landscaped area is provided, to ensure: • Space for growing plants, including trees, • Absorption of rainwater into the ground, • Reasonable amenity for residents, • Lots are not over-developed with buildings, structures and paving, and • Paving and buildings do not dominate the streetscape.

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
iii. Development on a battle-axe lot.	Development guided by this clause is not favoured on a battle-axe lot, unless: • The lot adjoins or has an outlook to public open space or another type of public reserve, or land in an environmental protection zone, and, • Access to the lot is suitable for the development.	Development on a battle-axe lot: • Provides reasonable amenity for occupants and neighbours, • Is compatible with the public domain and the character of the locality, • Addresses public open space or another type of public reserve, or land in an environmental protection zone, and • Is provided suitable access.
iv. Max. basement area.	Within applicable building setbacks.	Basements do not impact the ability to maintain or plant vegetation on the lot.
b. Building height.		
i. Max no. of storeys.	2. Does not apply in R3 and B4 zones.	Number of storeys is compatible with the streetscape and the character of the locality. Number of storeys reasonably maintains acceptable relationships with adjoining development, in terms of bulk and scale, and resident-amenity.
ii. Max. no. of storeys in the rear 40% of a lot, measured as a percentage of the average length of the two side boundaries.	1. Does not apply in the R3 and B4 zones (except when the lot adjoins land in the R1 or R2 zones), or when the lot adjoins a rear lane, or is a corner lot, or is in a heritage conservation area.	Development in the rear of a lot maintains resident amenity and is compatible with local character.
iii. Earthworks, retaining walls & related structures. Refer to Figures 14 & 15 in the Schedule.	Development is to be stepped to align as closely as possible with the slope of the lot. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with adjoining land. If the lot was benched when the land was subdivided, earthworks and related structures are not to further increase or decrease finished ground levels at any boundary with adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
	All earthworks and related structures are to be properly drained and not direct surface water onto adjoining land.	
	Structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed.
	Appropriate construction techniques, including minimising removal of vegetation where possible, are to be implemented to assist in erosion and sediment control during and post construction. An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	Construction of earthworks and related structures does not adversely impact stormwater flows and the environment.
iv. Max. floor height above existing ground level of decks, patios and the like.	0.5m with < 2m setback. 2m with 2m - 3m setback. 3m with 3m – 6m setback.	Maintains acceptable built form and amenity relationships with neighbouring development.
c. Setbacks.		
i. Min. primary street setback. Refer to Figure 16 in the Schedule.	Average setback of the two buildings closest to the lot, in the same street and on the same side of the street. 4m when averaging as set out above is impractical.	Setbacks are compatible with the setback of neighbouring buildings. Setbacks contribute to a consistent streetscape and character in the locality.
ii. Min. secondary street setback on a corner lot.	Average setback of the two buildings closest to the lot, in the same street and on the same side of the street. 4m when averaging as set out above is impractical.	
iii. Min. side setback, at the end of a row of terrace dwellings.	0.9m, when building height closest to the boundary does not exceed 4.5m. 1.5m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at side boundaries, for amenity, boundary fencing, access, safety, and maintenance.
iv. Min. rear setback.	3m, when building height closest to the boundary does not exceed 4.5m. 6m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at rear boundaries, for access, safety, private open space, privacy and sunlight access.

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
v. Min. garage setback from a rear lane.	0m, provided there is adequate area for access into and egress from a garage. Entry to and exit from a garage is to be demonstrated by plans of swept paths of vehicles, if required.	Safe and practical entry to and exit from a garage off a rear lane is provided.
vi. Exceptions to the primary street setback.	In areas undergoing change in their character due to various circumstances (e.g. a change in zoning or land economics), a site and context analysis is to be carried out to establish an appropriate setback to the street, when an exception is sought to the primary street setback. Applicants are to consult with Council regarding the appropriate application of this guideline when preparing a development application.	The primary street setback is established in accordance with a site and context analysis, that has considered the area's character and specific circumstances related to the site and its development.
vii. Other exceptions to setbacks.	450mm is the minimum side or rear setback for any aerial, antenna, awning, eave, flue, chimney, pipe, cooling or heating appliance, any rainwater tank greater than 1.8m in height, or any other structure, installation or appliance associated with the provision of a utility service. Side or rear setbacks do not apply to fences, fascias, gutters, downpipes, light fittings, electricity or gas meters, driveways, open carports, paths or paving. Setbacks from streets and lanes do not apply to driveways, fences, paths, or retaining walls.	Services and utilities are able to be located within side and rear setbacks, without unreasonable adverse impacts on neighbours' amenity or access between the front and rear of the lot. Enables siting of ancillary works that must be located on, over or between lot boundaries and buildings.
d. Character & the public domain.		
i. Character.	The building is designed to be compatible with the streetscape and character of the locality.	Development is of high architectural quality and contributes positively to local character and a safe public domain. Design and choice of materials and colours are compatible with surrounding development and contribute to a pleasant and attractive public domain. The mass and form of development integrates with and promotes diversity in the locality through quality urban design.
ii. Design, massing & articulation. Refer to Figure 17 in the Schedule.	Massing and articulation are to reduce apparent scale and bulk and create visually interesting buildings. Materials, textures and colours are to complement the massing and design of the building. Buildings are to be suitably articulated using harmonious architectural elements in the design, such as verandahs, porticos, awnings, bay windows, balconies or terraces. Elements such as these may be forward of the primary street setback.	

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
	Simple roof forms are to be designed to complement other building elements and minimise bulk and scale of the building. Roof forms are to be compatible with those of nearby buildings. Infrastructure and services are to be integrated into to the development's design or screened.	
iii. Community safety & surveillance.	Principal pedestrian entries are to address, be readily identifiable and directly accessible from the street. Principal pedestrian entries are not to be from a lane. When a building façade faces a reserve or other element of the public domain, that façade is to include windows and/or doors to address that reserve or other element of the public domain. Fencing and landscaping are not to unacceptably diminish informal surveillance of the public domain.	A safe method of access to and egress from development is provided. Development contributes to community safety and informal surveillance of the public domain.
e. Resident-amenity.		
i. Sunlight access. Refer to Figures 21 & 22 in the Schedule.	Windows and doors of habitable rooms (except bedrooms) and private open space of all dwellings are to be sited and oriented to receive at least 3 hours direct sunlight between 9am and 3pm on the winter solstice.	Sunlight access to primary indoor living areas and private open space is optimised. Sunlight access enables passive solar heating in winter and provides a pleasant and healthy indoor environment.
ii. Overshadowing.	Proposed development must retain at least 3 hours of sunlight between 9am and 3pm on the winter solstice for existing neighbouring residential accommodation's: • Windows and doors of habitable rooms except bedrooms, • At least 50% of private open space, • Photovoltaic and solar hot water systems, and • Outdoor clothes drying facilities. If areas or utilities specified in the above paragraph of existing neighbouring residential accommodation receive less than 3 hours sunlight at the time a development application is lodged for adjoining land, the amount of sunlight received is not be reduced as a result of proposed development.	Sunlight access to existing neighbouring residential accommodation is reasonably maintained.

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
	When existing neighbouring residential accommodation may have its sunlight access impacted by proposed development, a shadow diagram is to be submitted with the application for the proposed development, based on the winter solstice, in hourly intervals from 9am to 3pm.	
iii. Climate management for west-facing residential accommodation. Refer to Figure 18 in the Schedule.	Where habitable rooms face west (between north-west and south-west), architectural elements are to be used, such as: • Extended eaves, • Verandahs, • Shutters, or • Awnings. Architectural design elements may be complemented by landscaping.	Heat-gain is reduced to improve thermal performance and comfort for occupants of residential accommodation.
iv. Privacy. Refer to Figure 23 in the Schedule.	When privacy of occupants of proposed development or neighbours is likely to be affected, siting and design of the proposed development is to maintain reasonable levels of privacy. Principal siting and design techniques to consider and use, include: • Building orientation, • Position of habitable rooms, • Window size and location, • Building separation and setbacks, • Avoiding or minimising direct lines of sight, and • Location of balconies and terraces adjacent indoor living areas. When principal techniques may not maintain reasonable levels of privacy, supplementary techniques to consider and use include: • Recessed balconies or vertical fins, • Solid or partially solid balustrades, • Bay or pop-out windows, • Planter boxes, • Privacy screens, • Sill heights, or • Opaque window glazing.	Reasonable privacy is maintained between occupants of the dwelling house and its outbuildings, with occupants of neighbouring dwellings.
v. Private open space. Min. area. Min. length and width. Max. grade. When provided above ground, min. length and width to count	 24m^2. 4m. 1:10. 2m.	Private open space is sited and designed to accommodate various functions such as outdoor leisure and dining, gardening and landscaping, clothes drying, and bin storage.

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
towards min. private open space area. Refer to Figure 19 in the Schedule.		
vi. Principal private open space. Min. area. Min. length and width. Max. grade. Refer to Figure 19 in the Schedule.	Principal private open space is located adjacent to and directly accessible from a habitable room in a dwelling, other than a bedroom. 16m^2. 4m. 1:50.	Principal private open space is located and designed to provide high amenity for dwelling occupants.
vii. Landscape design.	A landscape concept plan is to be provided, prepared in accordance with Council's *Engineering Guidelines Subdivisions and Development Standards.*	Landscape planning and design is properly conducted for development.
viii. Safer by design.	Development applications for multi dwelling housing (terraces) of 6 or more dwellings are to be accompanied by a safer by design (crime prevention through environmental design) assessment.	The risk of anti-social behaviour, criminal activity and reduced public safety is avoided, minimised or mitigated. Development is liveable and safe for its occupants.
ix. Noise & air quality.	Development is to be sited and designed to acceptably reduce the impact of noise in the locality. When there is a risk development will be impacted by a nearby source of noise or offensive or hazardous emissions to the atmosphere, the development is to be designed and sited to acceptably reduce that risk. When deemed necessary by Council, a noise impact assessment is to be submitted with a development application and the development's design is to adopt the recommendations of that assessment.	Impacts of noise and air-emissions are avoided or effectively mitigated and minimised.

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
x. Waste Management.	Provide bin storage in accordance with Council's kerbside requirements, in a readily accessible location for residents. Bins are not to be stored forward of the primary street setback, or in a location visible from the public domain. Construction and demolition waste is to be managed and disposed of in accordance with the requirements of Council or another authority, when applicable.	Waste storage meets residents' requirements, reasonably maintains resident-amenity and the qualities of the streetscape and the character of the locality. Waste from the development is effectively managed in accordance with applicable requirements.
xi. Building materials.	Reflective building materials are not to be used.	Building materials do not unreasonably diminish neighbours' amenity.
f. Boundary treatments (fences & walls).		
i. Max. height of a boundary treatment forward of the primary street setback. Refer to Figure 24 in the Schedule.	1.2m, or 1.8m, with at least 50% being see-through.	Amenity is protected for residents without adverse impact on the streetscape. Informal surveillance is enabled, and the boundary treatment contributes positively to the streetscape.
ii. Max. height of a gate, forward of the primary street setback.	As above.	Gates are of the same height as and compatible in appearance with the remainder of front boundary treatments and maintain safety on the public road.
iii. Max. height of side and rear boundary treatment behind the primary street setback.	1.8m.	Side and rear fencing enables privacy and security without being visually intrusive or dominant.
iv. Boundary treatment materials and colours.	To be consistent with the materials and colours of the development on the lot and compatible with the streetscape. On a lot adjoining semi-rural or rural land, or land in an Environmental zone, boundary treatments on that lot are to be compatible with the character of the land adjoining the lot. Post and rail or post and wire fencing are examples of suitable fencing. Solid metal or timber fencing, or masonry walls are discouraged.	Boundary treatments contribute positively to the streetscape and are compatible with the character of the locality.

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
g. Access & parking.		
i. Access.	Access to the development is to be consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.	Access and associated road works are adequate and in accordance with Council's requirements.
ii. Pedestrian access.	Pedestrian entries are to be clearly identifiable and visible from the street. Entries are to provide direct access to letter boxes. Entries and paths from the street are to be suitably lit at night.	Pedestrian entries to development are safe and provide amenity for and informal surveillance of the street.
iii. Min. no. parking spaces.	Specified by Part 17.	The number of on-site parking spaces is adequate and acceptably impacts parking supply on local streets.
iv. Access standards.	Specified by Part 17.	Access to lots and associated road works are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.
h. Utility infrastructure.		
i. Access to the development and associated road works.		Access to the development and associated road works are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, access is provided in accordance with RFS guidelines.
ii. Water and sewer supply.		If required, arrangements are made with Council, the water and sewer authority, for provision of water and sewer services. Such arrangements are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, water supply is provided in accordance with RFS guidelines.

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
iii. Stormwater management.	A stormwater management concept plan is to be submitted with a development application.	Stormwater management is consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.
iv. Electricity, gas and telecommunications services.		Evidence is provided to Council, that these services are available, before issue of an occupation certificate.
i. Master plans & concept development applications.		
i. Min. number of dwellings when a master plan is required.	20 dwellings.	Large developments are planned, designed and developed to make a positive and compatible contribution to Albury's urban environment.
ii. Guidelines to be considered in preparing a master plan. Refer to Figures 8, 9, 10 & 11 in the Schedule.	Matters relevant to the development of a site are to be considered, including: • An analysis of the site and locality's accessibility, functions, character and environmental conditions. • Means to improve accessibility of the site and the locality. • Integration with the existing street network and hierarchy, including consideration of street network design principles in cl. 2. e. i. • Potential to connect new streets, footpaths, shared paths or cycleways with planned, approved or constructed streets on adjoining land, with reference to the Thurgoona Wirlinga Precinct Structure Plan or other strategic document, when applicable. • Potential to extend and complement existing street, footpath and bicycle/shared path networks, in areas other than where the Thurgoona Wirlinga Precinct Structure Plan or other strategic document applies. • Preferred uses and built form based on the site and locality analysis. • Higher density lots and housing when the site is within an 'accessible area' in relation to a B1, B2, B3 or B4 zone. • The pattern of subdivision and built form, development complementing the character and functions of the locality. • Provision of public open space identified in a Council-adopted structure plan or strategy.	Master plans are prepared having considered all relevant environmental conditions and Albury's planning framework.

Division E cl. 4 Multi dwelling housing (terraces)		
Design elements	**Guidelines**	**Performance criteria**
	• Provision of public open space may also be supported through analysis of land proposed as open space, considering matters such as: - an analysis of existing supply and likely demand for open space in the locality, - accessibility – i.e. the open space is within a 400m walk for potential users, not restricted by barriers such as a major road (e.g. roads specified by Div. B cl. 2. e. iii.), a creek line, and the like. - area and dimensions of the land, - the site's characteristics, including constraints such as flooding or steep slopes, and - addition to or integration with other open space (e.g. linear networks). • Where there is potential to dedicate land for environmental conservation, whether the land could also support recreational values and accessibility in the locality are to be considered. When deemed appropriate, low-impact public access is to be provided, that is sensitive to the conservation values of the land. • Potential to retain any significant trees and other vegetation in the public domain, such as in street reserves and public open space. • Potential of the site to be impacted by any hazard, such as contamination, bush fire or flooding, and means of eliminating or reducing the risk posed by the hazard. • Stormwater management, including consistency with any Council drainage strategy. • The potential traffic impact of the site's development and means to avoid, minimise or mitigate those impacts.	

5. Ancillary development, including sheds, garages & other outbuildings

a. This clause applies to ancillary development, including sheds, garages and other outbuildings as defined by the Codes SEPP, that is not exempt or complying development under that policy or any other environmental planning instrument.

b. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

Development Guidelines Table

Division E cl. 5 Ancillary development, including sheds, garages & other outbuildings		
Design elements	**Guidelines**	**Performance criteria**
i. Max. gross floor area of a shed or a garage (when not part of a dwelling house), or both.	60% of the gross floor area of the dwelling house. The gross floor area of other ancillary development will be considered on merit.	Ancillary development, including sheds, garages and other outbuildings, are compatible with buildings on the lot, on neighbouring land and the streetscape or landscape qualities of the locality, as they are: • Suitably sized as a proportion of the lot size and in relation to all buildings on the lot, • Sited and designed to ensure the impact of their siting, bulk, height and scale is minimised, • Sited and designed to reasonably maintain sunlight access of neighbouring dwellings and private open space, • Constructed of compatible building materials and colours, and • Landscaped to maintain reasonable amenity.
ii. Min. landscaped area and private open space.	Ancillary development does not reduce the min. landscaped area or private open space to an amount less than that required.	
iii. Max. building wall height, measured from existing ground level to the eaves.	3.3m with a minimum side and rear setback of 900mm 3.6m with a minimum side and rear setback of 1.5m.	
iv. Min. front setback.	3m behind the primary street setback of the dwelling house.	
v. Min. side setback.	900mm.	
vi. Min. rear setback.	900mm.	
vii. Build to boundary/zero setbacks (0-900mm).	Not permitted on a lot >20m wide at the primary street setback. 0-900mm setback permitted to one boundary only. 3.3m max. wall height. An unbroken wall length is not to exceed 10m, or one third of the boundary length, whichever is less.	
viii. Materials & colours.	Sheds and other outbuildings are to be constructed of non-reflective materials and colours that are compatible with other buildings on the lot.	
ix. Earthworks, retaining walls & other related structures.	Cl. 2. b. iii or Cl 2. b. iii. or Cl 4. b. iii. applies.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are

Division E cl. 5 Ancillary development, including sheds, garages & other outbuildings		
Design elements	**Guidelines**	**Performance criteria**
		avoided, or acceptably minimised or mitigated.

Division F – Residential flat buildings

Advice

Interpretation & the LEP

- *For the meaning of words and terms refer to clause 4 of Division A – Introduction, for more information.*
- *Residential flat buildings are permitted with consent by the LEP in R1 General Residential, R3 Medium Density Residential, B1 Neighbourhood Centre, B2 Local Centre and B4 Mixed Use zones.*
- *This division also applies to residential components of mixed use development, such as shop top housing.*
- *Strata subdivision of residential flat buildings, including manor houses, and dual occupancies (one dwelling above another), is permitted with consent by cl. 4.1 of the LEP.*
- *For the provision of public utilities and infrastructure to development, cl.7.6 of the LEP applies.*
- *Ancillary development, including sheds, garages and other outbuildings, require development consent, when they do not satisfy requirements to be exempt or complying development under the Codes SEPP.*
- *Most fencing within Residential zones does not require Council's approval, being classified as exempt development. Development standards for exempt development are contained in the Codes SEPP.*
- *Diagrams and illustrations are located in the Schedule at the end of this part, to assist interpretation of guidelines in the Development Guidelines Tables.*

Types of residential flat buildings

- *This division provides design guidance for four different types of residential flat buildings, as defined by the LEP, the Codes SEPP and SEPP 65:*
  - *Dual occupancies (one dwelling above another), when each dwelling shares a common access from ground level, such as an internal foyer and stairway,*
  - *Manor houses,*
  - *Residential flat buildings that SEPP 65 does not apply to, and*
  - *Residential flat buildings that SEPP 65 applies to.*
- *Manor houses (three or four dwellings in a 2 storey building) are included in this division as they are defined by the Codes SEPP as types of residential flat buildings. Under this SEPP, they are permitted in any zone where multi dwelling housing and residential flat buildings are permitted with consent.*
- *Dual occupancies (one dwelling above another), are provided design guidance by this division, as their guidelines, adapted from the Low Rise Medium Density Design Guide, are shared with those for Manor houses.*
- *Clause 2 provides design guidelines for dual occupancies (one dwelling above another) and manor houses.*
- *Design guidelines for other types of residential flat buildings have been divided to account for SEPP 65 only applying to development of three or more storeys and four or more dwellings.*
- *Clause 3 provides design guidelines for residential flat buildings to which SEPP No 65 does not apply – i.e. they are less than three storeys and have more than four dwellings. This is due to 'manor houses' being defined as outlined above.*
- *Clause 4 provides design guidelines for development to which SEPP 65 applies. Guidelines are only included for design elements not addressed by the Apartment Design Guide. This is due to cl. 6 of SEPP 65 making certain provisions regarding other aspects of residential flat development of no effect, when they are included in a development control plan.*

Further information regarding residential flat building design

- *The Apartment Design Guide has been referenced in preparing the Design Guidelines Tables for residential flat buildings. Users of this DCP may refer to this publication for further information.*
- *The Codes SEPP and the companion Low Rise Medium Density Design Guide have been referenced in preparing the Design Guidelines for dual occupancies (one dwelling above another) and manor houses. Users of this DCP may refer to them for further information.*

Master plans & concept development applications

- *A 'master plan' is a plan prepared to conceptually illustrate how a site is to be subdivided and developed.*
- *'Concept development application' has the same meaning as in s.4.22 (1) of the Act.*
- *'Accessible area' is land wherein a safe pedestrian access path is available between a development site and land in either a B1, B2, B3 or B4 zone; and the distance of that access path (or paths) is 400 metres or less, when measured along the street or streets.*

Utility installations

- *When preparing a development application, applicants should contact:*
  - *Council regarding stormwater drainage, water and sewer services, and*
  - *Providers of gas, electricity and telecommunications services,*

  to determine service availability, approval requirements or restrictions for servicing (if any).
- *When necessary, development is to be designed to accommodate any on-site infrastructure in accordance with standards and approvals of relevant agencies.*
- *Development applications shall include details of all existing and proposed services.*
- *Location of any proposed water or sewer mains are to be supplied with the development application.*
- *Servicing through areas with significant vegetation is to be avoided when practical.*
- *On bush fire prone land, proposed development is to provide for access and a water supply for fire-fighting in accordance with the NSW Rural Fire Service guidelines.*

Tree & vegetation management

- *Trees and vegetation should be retained where possible. Refer to Part 5 of this DCP for further information.*

Consultation & collaboration

- *When preparing a development application, applicants are encouraged to discuss proposed development with Council's planning/assessment officers.*

1. Objectives

Objectives for development to which Division F applies are to be considered by Council when a development application is determined. The objectives are, to:

a. Ensure residential flat buildings respond to the environmental conditions of the site and the locality.

b. Enable residential flat buildings to be compatible with the streetscape and to contribute positively to the character of the locality in which development is proposed.

c. Create reasonable amenity for occupants of residential flat buildings without causing unreasonable impacts on the amenity of neighbours.

2. Manor houses & dual occupancies (one dwelling above another)

a. This clause applies to:

i. Erection of and alterations and additions to manor houses and adaptation of existing buildings to create manor houses, and

ii. Erection of and alterations and additions to new dual occupancies (one dwelling above another) and adaptation of existing buildings to create dual occupancies (one dwelling above another).

b. This clause applies to ancillary development, as defined by the Codes SEPP, that is not exempt or complying development under that policy or any other environmental planning instrument.

c. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

d. Where there is no guideline for a design element, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

Development Guidelines Table

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)			
Design elements		**Guidelines**	**Performance criteria**
a.	**Site planning.**		
i.	Location of manor houses in the R1 zone.	Multi dwelling housing and/or residential flat building sites (including manor houses) are to be located: • In greenfield areas, at least 50m or 3 lots apart, whichever is the greater. The separation distance is measured between the closest point of each site along the street network. • In existing urban areas, at least 1 lot apart. Variation of this guideline may be considered when the proposed development is within 400m of a B1, B2, B3 or a B4 zone, measured along a street or streets, from the site to the closest point of the B1, B2, B3 or B4 zone.	A variety of housing stock is maintained in residential localities. Distribution of multi-dwelling housing and residential flat buildings is compatible with the streetscape and the character of the locality. Concentration of multi-dwelling housing is able to occur within a 400m walk of a B1, B2, B3 or a B4 zone.

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)		
Design elements	**Guidelines**	**Performance criteria**
ii. Min. landscaped area. Min. width of landscaped areas (to count as part of min. landscaped area). Min. proportion of the primary street setback to be landscaped area. Refer to Figure 13 in the Schedule.	30% in the R1 zone. 20% in the R3 and B4 zones. 1m. 25% Erection of ancillary development is not to reduce the min. landscaped area and private open space to an amount less than that required.	Adequate landscaped area is provided, to ensure: • Space for growing plants, including trees, • Absorption of rainwater into the ground, • Reasonable amenity for residents, • Lots are not over-developed with buildings, structures and paving, and • Paving and buildings do not dominate the streetscape.
iii. Development on a battle-axe lot.	Development guided by this clause is not favoured on a battle-axe lot, unless: • The lot adjoins or has an outlook to public open space or another type of public reserve, or land in an environmental protection zone, and, • Access to the lot is suitable for the development.	Development on a battle-axe lot: • Provides reasonable amenity for occupants and neighbours, • Is compatible with the public domain and the character of the locality, • Addresses public open space or another type of public reserve, or land in an environmental protection zone, and • Is provided suitable access.
iv. Basement setbacks.	Within applicable building setbacks.	Basements do not impact the ability to maintain or plant vegetation on the lot.
b. Building height.		
i. Max. no. storeys.	2.	Number of storeys is compatible with the streetscape and the character of the locality. Number of storeys reasonably maintains acceptable relationships with adjoining development, in terms of bulk and scale, and resident-amenity.
ii. Max. no. of storeys in the rear 40% of a lot, measured as a percentage of the average length of the two side boundaries.	1. Does not apply in the R3 and B4 zones (except when the lot adjoins land in the R1 or R2 zones), or when the lot adjoins a rear lane, or is a corner lot, or is in a heritage conservation area.	Development in the rear of a lot maintains resident amenity and is compatible with local character.

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)		
Design elements	**Guidelines**	**Performance criteria**
iii. Earthworks, retaining walls & related structures. Refer to Figures 14 & 15 in the Schedule.	Development is to be stepped to align as closely as possible with the slope of the lot. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with adjoining land. If the lot was benched when the land was subdivided, earthworks and related structures are not to further increase or decrease finished ground levels at any boundary with adjoining land. All earthworks and related structures are to be properly drained and not direct surface water onto adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.
	Structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed.
	Appropriate construction techniques, including minimising removal of vegetation where possible, are to be implemented to assist in erosion and sediment control during and post construction. An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	Construction of earthworks and related structures does not adversely impact stormwater flows and the environment.
iv. Max. floor height above existing ground level of decks, patios and the like.	0.5m with < 2m setback. 2m with 2m - 3m setback. 3m with 3m – 6m setback.	Maintains acceptable built form and amenity relationships with neighbouring development.
c. **Setbacks.**		
i. Min. primary street setback. Refer to Figure 16 in the Schedule.	Average setback of the two houses closest to the site, in the same street and on the same side of the street. 4m, when averaging as set out above is impractical.	Setbacks are compatible with the setback of neighbouring buildings.
ii. Min. secondary street setback on a corner lot.	50% of the primary street setback.	Setbacks contribute to a consistent streetscape and character in the locality.

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)			
Design elements		**Guidelines**	**Performance criteria**
iii.	Min. garage setback from a rear lane.	0m, provided there is adequate area for access into and egress from a garage. Entry to and exit from a garage is to be demonstrated by plans of swept paths of vehicles, if required.	Safe and practical entry to and exit from a garage off a rear lane is provided.
iv.	Min. side setback.	0.9m, when building height closest to the boundary does not exceed 4.5m. 1.5m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at side boundaries, for amenity, boundary fencing, access, safety, and maintenance.
v.	Min. rear setback.	3m, when building height closest to the boundary does not exceed 4.5m. 6m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at rear boundaries, for access, safety, private open space, privacy and sunlight access.
vi.	Exceptions to the primary street setback.	In areas undergoing change in their character due to various circumstances (e.g. a change in zoning or land economics), a site and context analysis is to be carried out to establish an appropriate setback to the street, when an exception is sought to the primary street setback. Applicants are to consult with Council regarding the appropriate application of this guideline when preparing a development application.	The primary street setback is established in accordance with a site and context analysis, that has considered the area's character and specific circumstances related to the site and its development.
vii.	Other exceptions to setbacks.	450mm is the min. side or rear setback for any aerial, antenna, awning, eave, flue, chimney, pipe, cooling or heating appliance, any rainwater tank greater than 1.8m in height, or any other structure, installation or appliance associated with the provision of a utility service. Side or rear setbacks do not apply to fences, fascias, gutters, downpipes, light fittings, electricity or gas meters, driveways, open carports, paths or paving. Setbacks from streets and lanes do not apply to driveways, fences, paths, or retaining walls. Setbacks do not apply to alterations to existing dwelling houses and outbuildings.	Services and utilities are able to be located within side and rear setbacks, without unreasonable adverse impacts on neighbours' amenity. Adequate access is maintained to side and rear boundaries and for access between the front and rear of the lot. Enables siting of ancillary works that must be located on, over or between lot boundaries and buildings.

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)		
Design elements	**Guidelines**	**Performance criteria**
d. **Character & the public domain.**		
i. Character.	The building is designed to be compatible with the streetscape and character of the locality.	Development is of high architectural quality and contributes positively to local character and a safe public domain. Design and choice of materials and colours are compatible with surrounding development and contribute to a pleasant and attractive public domain. The mass and form of development integrates with and promotes diversity in the locality through quality urban design.
ii. Design, massing & articulation. Refer to Figure 17 in the Schedule.	Massing and articulation are to reduce apparent scale and bulk and create visually interesting buildings. Materials, textures and colours are to complement the massing and design of the building. Buildings are to be suitably articulated using harmonious architectural elements in the design, such as verandahs, porticos, awnings, bay windows, balconies or terraces. Elements such as these may be forward of the primary street setback. Simple roof forms are to be designed to complement other building elements and minimise bulk and scale of the building. Roof forms are to be compatible with those of nearby buildings. Infrastructure and services are to be integrated into to the development's design or screened.	
iii. Community safety & surveillance.	Principal pedestrian entries are to address, be readily identifiable and directly accessible from the street. Principal pedestrian entries are not to be from a lane. When a building façade faces a reserve or other element of the public domain, that façade is to include windows and/or doors to address that reserve or other element of the public domain. Fencing and landscaping are not to unacceptably diminish informal surveillance of the public domain.	A safe method of access to and egress from development is provided. Development contributes to community safety and informal surveillance of the public domain.

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)		
Design elements	**Guidelines**	**Performance criteria**
e. Resident-amenity.		
i. Sunlight access. Refer to Figures 19 & 20 in the Schedule.	Windows and doors of habitable rooms (except bedrooms) and private open space of all dwellings are to be sited and oriented to receive at least 3 hours direct sunlight between 9am and 3pm on the winter solstice.	Sunlight access to primary indoor living areas and private open space is optimised. Sunlight access enables passive solar heating in winter and provides a pleasant and healthy indoor environment.
ii. Overshadowing.	Proposed development must retain at least 3 hours of sunlight between 9am and 3pm on the winter solstice for existing neighbouring residential accommodation's: • Windows and doors of habitable rooms except bedrooms, • At least 50% of private open space, • Photovoltaic and solar hot water systems, and • Outdoor clothes drying facilities. If areas or utilities specified in the above paragraph of existing neighbouring residential accommodation receive less than 3 hours sunlight at the time a development application is lodged for adjoining land, the amount of sunlight received is not be reduced as a result of proposed development. When existing neighbouring residential accommodation may have its sunlight access impacted by proposed development, a shadow diagram is to be submitted with the application for the proposed development, based on the winter solstice, in hourly intervals from 9am to 3pm.	Sunlight access to existing neighbouring residential accommodation is reasonably maintained.
iii. Climate management for west-facing residential accommodation. Refer to Figure 18 in the Schedule.	Where habitable rooms face west (between north-west and south-west), architectural elements are to be used, such as: • Extended eaves, • Verandahs, • External shutters or louvres, or • Awnings. Architectural design elements can be complemented by landscaping.	Heat-gain is reduced to improve thermal performance and comfort for occupants of residential accommodation.
iv. Privacy. Refer to Figure 23 in the Schedule.	When privacy of occupants of proposed development or neighbours is likely to be affected, siting and design of the	Reasonable privacy is maintained between occupants of the dwelling house and its

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)		
Design elements	**Guidelines**	**Performance criteria**
	proposed development is to maintain reasonable levels of privacy. Principal siting and design techniques to consider and use, include: • Building orientation, • Position of habitable rooms, • Window size and location, • Building separation and setbacks, • Avoiding or minimising direct lines of sight, and • Location of balconies and terraces adjacent indoor living areas. When principal techniques may not maintain reasonable levels of privacy, supplementary techniques to consider and use include: • Recessed balconies or vertical fins, • Solid or partially solid balustrades, • Bay or pop-out windows, • Planter boxes, • Privacy screens, • Sill heights, or • Opaque window glazing.	outbuildings, with occupants of neighbouring dwellings.
v. Private open space. Min. area. Min. length and width. Max. grade. Refer to Figure 19 in the Schedule.	 24m^2. 4m. 1:10.	Private open space is sited and designed to accommodate various functions such as outdoor leisure and dining, gardening and landscaping, clothes drying, and bin storage
vi. Principal private open space. At ground level: Min. area. Min. length and width. Max. grade. Above ground level: Min area. Min. depth. Refer to Figure 19 in the Schedule.	Principal private open space is located adjacent to and directly accessible from a habitable room in a dwelling, other than a bedroom. 16m^2. 4m. 1:50. 12m^2. 2m.	Principal private open space is located and designed to provide high amenity for dwelling occupants.

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)		
Design elements	**Guidelines**	**Performance criteria**
vii. Landscape design.	A landscape concept plan is to be provided, prepared in accordance with Council's *Engineering Guidelines Subdivisions and Development Standards.*	Landscape planning and design is properly conducted for development.
viii. Noise & air quality.	Development is to be sited and designed to acceptably reduce the impact of noise in the locality. When there is a risk development will be impacted by a nearby source of noise or offensive or hazardous emissions to the atmosphere, the development is to be designed and sited to acceptably reduce that risk. When deemed necessary by Council, a noise impact assessment is to be submitted with a development application and the development's design is to adopt the recommendations of that assessment.	Impacts of noise and air-emissions are avoided or effectively mitigated and minimised.
ix. Waste Management.	Provide bin storage in accordance with Council's kerbside requirements, in a readily accessible location for residents. Bins are not to be stored forward of the primary street setback, or in a location visible from the public domain. Construction and demolition waste is to be managed and disposed of in accordance with the requirements of Council or another authority, when applicable.	Waste storage meets residents' requirements, reasonably maintains resident-amenity and the qualities of the streetscape and the character of the locality. Waste from the development is effectively managed in accordance with applicable requirements.
x. Building materials.	Reflective building materials are not to be used.	Building materials do not unreasonably diminish neighbours' amenity.
f. Boundary treatments (fences & walls).		
i. Max. height of a boundary treatment forward of the primary street setback. Refer to Figure 24 in the Schedule.	1.2m, or 1.8m, with at least 50% being see-through.	Amenity is protected for residents without adverse impact on the streetscape. Informal surveillance is enabled, and the boundary treatment contributes positively to the streetscape.

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)		
Design elements	**Guidelines**	**Performance criteria**
ii. Max. height of a gate, forward of the primary street setback.	As above.	Gates are of the same height as and compatible in appearance with the remainder of front boundary treatment and maintain safety on the public road.
iii. Max. height of side and rear boundary treatment behind the primary street setback.	1.8m.	Side and rear fencing enables privacy and security without being visually intrusive or dominant.
iv. Boundary treatment materials and colours.	To be consistent with the materials and colours of the development on the lot and compatible with the streetscape. On a lot adjoining semi-rural or rural land, or land in an Environmental zone, boundary treatments on that lot are to be compatible with the character of the land adjoining the lot. Post and rail or post and wire fencing are examples of suitable fencing. Solid metal or timber fencing, or masonry walls are discouraged.	Boundary treatments contribute positively to the streetscape and are compatible with the character of the locality.
g. **Access & parking.**		
i. Pedestrian access.	Pedestrian entries are to be clearly identifiable and visible from the street. Entries are to provide direct access to letter boxes. Entries and paths from the street are to be suitably lit at night. Pedestrian paths are to be separate from driveways, when possible, or shared ways design to minimise vehicle speed to walking speed (5 km/h).	Pedestrian entries to development are safe and provide amenity for and informal surveillance of the street.
ii. Min. no. parking spaces.	Specified by Part 17.	The number of on-site parking spaces is adequate and acceptably impacts parking supply on local streets.

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)		
Design elements	**Guidelines**	**Performance criteria**
iii. Internal access design. Refer to Figure 25 in the Schedule.	Internal access design is to consider and be based on a combination of these principles: • Avoid unrelieved, long, straight driveways that are visually dominant. • Vary the alignment of driveways to avoid a 'gun-barrel' effect'. • Set back garages behind the predominant primary street setback to reduce their visibility from the street • Avoid driveways running the length of the site. • Minimise the impact of driveways on streetscape. • Terminating vistas with trees, vegetation, open space or a dwelling, not garages or parking. • Use planting to soften driveway edges • Varying the driveway surface material to break it up into series of smaller spaces. • Limiting driveway widths on narrow sites to single vehicle width with passing bays when required.	Internal access design is safe, functional, visually appealing and contributes positively to the streetscape.
iv. Carports forward of the primary street setback.	A carport erected forward of the primary street setback is to: • Have max. dimensions of 6m x 3m, • Be setback at least 1m from the front boundary, • Not exceed 4.5m in height, • Only be enclosed one side, either at the rear of the carport or on the side closest to a side lot boundary, and • Be designed and built of materials and colours compatible with the main building(s) on the lot.	Carports forward of the primary street setback do not unreasonably affect the amenity of neighbours and are compatible with other buildings on the lot and the streetscape.
h. **Utility infrastructure.**		
i. Access to the development and associated road works.		Access to the development and associated road works are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, access is provided in accordance with RFS guidelines.

Division F cl. 2 Manor houses & dual occupancies (one dwelling above another)		
Design elements	**Guidelines**	**Performance criteria**
ii. Water and sewer supply.		If required, arrangements are made with Council, the water and sewer authority, for provision of water and sewer services. Such arrangements are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, water supply is provided in accordance with RFS guidelines.
iii. Stormwater management.	A stormwater management concept plan is to be submitted with a development application.	Stormwater management is consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.
iv. Electricity, gas and telecommunications services.		Evidence is provided to Council, that these services are available, before issue of an occupation certificate.

3. Residential flat buildings to which SEPP 65 does not apply

a. This clause applies to erection of and alterations and additions to a residential flat building(s) and adaptation of an existing building(s) to create a residential flat building(s), to which the provisions of SEPP 65 do not apply, and which are not a manor house or a dual occupancy (one dwelling above another).

b. This clause applies to the residential component(s) of mixed use buildings, such as shop top housing.

c. This clause applies to ancillary development, as defined by the Codes SEPP, that is not exempt or complying development under that policy or any other environmental planning instrument.

d. This clause has two Development Guidelines Tables, which apply to development to which paragraph a. applies:

i. Development Guideline Table A – guidelines for:
- Site planning,
- Building height,
- Setbacks,
- Boundary treatments,
- Access & parking,
- Utility Infrastructure, and

- Master plans and concept development applications, for development of 20 or more dwellings.

ii. Development Guideline Table B – adapted from the Apartment Design Guide, which contains:

- Design objectives, and
- Design criteria & guidance.

iii. Where there is an inconsistency between the provisions of Table A and Table B, the provisions of Table A prevail to the extent of the inconsistency.

e. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table A.

f. Where there is no guideline for a design element in Development Guidelines Table A, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

g. Satisfaction of the Design objectives is to be demonstrated to vary the Design criteria in the coloured cells only, as set out in Development Guidelines Table B.

Development Guidelines Table A

Division F cl. 3 Residential flat buildings SEPP 65 does not apply		
Design elements	**Guidelines**	**Performance criteria**
a. **Site Planning.**		
i. Location of residential flat buildings. This guideline does not apply to development of land zoned R3 or B4.	Residential flat building sites are to be at least 500m apart. The separation distance is measured between the closest point of each site along the street frontage. Variation of this guideline may be considered when the proposed development is within 400m of a B1, B2, B3 or a B4 zone, measured along a street or streets, from the site to the closest point of the B1, B2, B3 or B4 zone.	A variety of housing stock is maintained in residential localities. Distribution of residential flat buildings and multi-dwelling housing is compatible with the streetscape and the character of the locality. Concentration of multi-dwelling housing is able to occur within a 400m walk of a B1, B2, B3 or a B4 zone.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply		
Design elements	**Guidelines**	**Performance criteria**
ii. Development on a battle-axe lot.	Development guided by this clause is not favoured on a battle-axe lot, unless: • The lot adjoins or has an outlook to public open space or another type of public reserve, or land in an environmental protection zone, and, • Access to the lot is suitable for the development.	Development on a battle-axe lot: • Provides reasonable amenity for occupants and neighbours, • Is compatible with the public domain and the character of the locality, • Addresses public open space or another type of public reserve, or land in an environmental protection zone, and • Is provided suitable access.
b. **Building Height.**		
iii. Max. no. storeys.	Nil.	Number of storeys is compatible with the streetscape and the character of the locality. Number of storeys reasonably maintains acceptable relationships with adjoining development, in terms of bulk and scale, and resident-amenity.
iv. Earthworks, retaining walls & related structures. Refer to Figures 14 & 15 in the Schedule.	Development is to be stepped to align as closely as possible with the slope of the lot. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with adjoining land. If the lot was benched when the land was subdivided, earthworks and related structures are not to further increase or decrease finished ground levels at any boundary with adjoining land. All earthworks and related structures are to be properly drained and not direct surface water onto adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.
	Structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply		
Design elements	**Guidelines**	**Performance criteria**
	Appropriate construction techniques, including minimising removal of vegetation where possible, are to be implemented to assist in erosion and sediment control during and post construction. An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	Construction of earthworks and related structures does not adversely impact stormwater flows and the environment.
c. **Setbacks.**		
i. Min. primary street setback. Refer to Figure 16 in the Schedule.	Average setback of the two buildings closest to the lot, in the same street and on the same side of the street. 6m when averaging as set out above is impractical.	Setbacks are compatible with the setback of neighbouring buildings. Setbacks contribute to a consistent streetscape and character in the locality.
ii. Min. secondary street setback on a corner lot.	50% of the primary street setback.	
iii. Min. garage setback from a rear lane.	0m, provided there is adequate area for access into and egress from a garage. Entry to and exit from a garage is to be demonstrated by plans of swept paths of vehicles, if required.	Safe and practical entry to and exit from a garage off a rear lane is provided.
iv. Min. side setback.	1.5m.	Adequate building separation is provided at side boundaries, for amenity, boundary fencing, access, safety, and maintenance.
v. Min. rear setback:	3m, when building height closest to the boundary does not exceed 4.5m. 6m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at rear boundaries, for access, safety, private open space, privacy and sunlight access.
vi. Exceptions to primary street setbacks.	In areas undergoing change in their character due to various circumstances (e.g. a change in zoning or land economics), a site and context analysis is to be carried out to establish an appropriate setback to the street, when an exception is sought to the primary street setback. Applicants are to consult with Council regarding the appropriate application of this guideline when preparing a development application.	The primary street setback is established in accordance with a site and context analysis, that has considered the area's character and specific circumstances related to the site and its development.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply		
Design elements	**Guidelines**	**Performance criteria**
vii. Other exceptions to setbacks.	Side or rear setbacks do not apply to fences, eaves, fascias, gutters, downpipes, light fittings, electricity or gas meters, driveways, open carports, paths or paving. Setbacks from streets and lanes do not apply to driveways, fences, paths, or retaining walls.	Services and utilities are able to be located within side and rear setbacks, without unreasonable adverse impacts on resident-amenity. Adequate access is maintained to side and rear boundaries and for access between the front and rear of the lot. Siting is enabled, of ancillary works that must be located on, over or between lot boundaries and buildings.
d. **Boundary treatments (fences & walls).**		
i. Max. height of a boundary treatment forward of the primary street setback. Refer to Figure 24 in the Schedule.	1.2m, or 1.8m, with at least 50% being see-through.	Amenity is protected for residents without adverse impact on the streetscape. Informal surveillance is enabled, and the boundary treatment contributes positively to the streetscape.
ii. Max. height of a gate, forward of the primary street setback.	As above.	Gates are of the same height as and compatible in appearance with the remainder of front boundary treatment and maintain safety on the public road.
iii. Max. height of side and rear boundary treatment behind the primary street setback.	1.8m.	Side and rear fencing enables privacy and security without being visually intrusive or dominant.
iv. Boundary treatment materials and colours.	To be consistent with the materials and colours of the development on the lot and compatible with the streetscape. On a lot adjoining semi-rural or rural land, or land in an Environmental zone, boundary treatments on that lot are to be compatible with the character of the land adjoining the lot. Post and rail or post and wire fencing are examples of suitable fencing. Solid metal or timber fencing, or masonry walls are discouraged.	Boundary treatments contribute positively to the streetscape and are compatible with the character of the locality.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply		
Design elements	**Guidelines**	**Performance criteria**
e. **Access & parking.**		
i. Pedestrian access.	Pedestrian entries are to be clearly identifiable and visible from the street. Entries are to provide direct access to letter boxes. Entries and paths from the street are to be suitably lit at night.	Pedestrian entries to development are safe and provide amenity for and informal surveillance of the street.
ii. Min. no. of parking spaces.	Specified by Part 17.	The number of on-site parking spaces is adequate and acceptably impacts parking supply on local streets.
iii. Internal access design. Refer to Figure 24 in the Schedule.	Internal access design is to consider and be based on a combination of these principles: • Avoid unrelieved, long, straight driveways that are visually dominant. • Vary the alignment of driveways to avoid a 'gun-barrel' effect'. • Set back garages behind the predominant primary street setback to reduce their visibility from the street • Avoid driveways running the length of the site. • Minimise the impact of driveways on streetscape. • Terminating vistas with trees, vegetation, open space or a dwelling, not garages or parking. • Use planting to soften driveway edges • Varying the driveway surface material to break it up into series of smaller spaces. • Limiting driveway widths on narrow sites to single vehicle width with passing bays when required.	Internal access design is safe, functional, visually appealing and contributes positively to the streetscape.
f. **Utility infrastructure.**		
i. Access to the development and associated road works.		Access to the development and associated road works are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, access is provided in accordance with RFS guidelines.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply		
Design elements	**Guidelines**	**Performance criteria**
ii. Water and sewer supply.		If required, arrangements are made with Council, the water and sewer authority, for provision of water and sewer services. Such arrangements are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, water supply is provided in accordance with RFS guidelines.
iii. Stormwater management.	A stormwater management concept plan is to be submitted with a development application.	Stormwater management is consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.
iv. Electricity, gas and telecommunications services.		Evidence is provided to Council, that these services are available, before issue of an occupation certificate.
g. **Master plans & concept development applications.**		
i. Min. number of dwellings when a master plan is required.	20.	Large developments are planned, designed and developed to make a positive and compatible contribution to Albury's urban environment.
ii. Guidelines to be considered in preparing a master plan. Refer to Figures 8, 9, 10 & 11 in the Schedule.	Matters relevant to the development of a site are to be considered, such as: • An analysis of the site and locality's accessibility, functions, character and environmental conditions. • Means to improve accessibility of the site and the locality. • Integration with the existing street network and hierarchy, including consideration of street network design principles in cl. 2. e. i. • Potential to connect new streets, footpaths, shared paths or cycleways with planned, approved or constructed streets on adjoining land, with reference to the Thurgoona Wirlinga Precinct Structure Plan or other strategic document, when applicable. • Potential to extend and complement existing street, footpath and bicycle/shared path networks, in areas	Master plans are prepared having considered all relevant environmental conditions and Albury's planning framework.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply		
Design elements	**Guidelines**	**Performance criteria**
	other than where the Thurgoona Wirlinga Precinct Structure Plan or other strategic document applies. • Preferred uses and built form, following subdivision, based on the site and locality analysis. • Higher density lots and housing when the site is within an 'accessible area' in relation to a B1, B2, B3 or B4 zone. • The pattern of subdivision and subsequent development complementing the character and functions of the locality. • Provision of public open space identified in a Council-adopted structure plan or strategy. • Provision of public open space may also be supported through analysis of land proposed as open space, considering matters such as: - an analysis of existing supply and likely demand for open space in the locality, - accessibility – i.e. the open space is within a 400m walk for potential users, not restricted by barriers such as a major road (e.g. roads specified by cl. 2. e. iii.), a creek line, and the like. - area and dimensions of the land, - the site's characteristics, including constraints such as flooding or steep slopes (> 1:8), and - addition to or integration with other open space (e.g. linear networks). • Where there is potential to dedicate land for environmental conservation, whether the land could also support recreational values and accessibility in the locality are to be considered. When deemed appropriate, low-impact public access is to be provided, that is sensitive to the conservation values of the land. • Potential to retain any significant trees and other vegetation in the public domain, such as in street reserves and public open space. • Potential of the site to be impacted by any hazard, such as contamination, bush fire or flooding, and means of eliminating or reducing the risk posed by the hazard. • Stormwater management, including consistency with any Council drainage strategy. • The potential traffic impact of the site's development and means to avoid, minimise or mitigate those impacts.	

Development Guidelines Table B

Notes to table: *The Design objective-numbering and colour-shading in the table are those used in the Apartment Design Guide (ADG), for ease of reference. Colour-shading denotes the key 'measurable criteria' to achieve the Design objective.*

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
3A-1: Site analysis The site and surrounding locality of proposed development is suitably analysed to inform the proposal's design.	• Site analysis checklist (Appendix 1, ADG) should be addressed.
3B-1: Streetscape Buildings respond to the streetscape and optimise solar access.	• Buildings: - Should define the street, - Should be oriented to the north, and - overshadowing to the south should be minimised.
3B-2: Neighbour overshadowing Overshadowing of neighbouring properties is minimised in mid-winter.	• Parts 3D Communal and public open space and 4A Solar and daylight access, should be complied with. • Solar access to neighbour's indoor living areas and private open space should be considered. • Neighbours' solar access should not be reduced by more than 20% when required sunlight is not received (pre-DA). • Building separation and/or upper level setbacks should be increased to improve neighbours' solar access. • Buildings should be oriented to minimise solar access and privacy impacts. • 3 hours min. solar access should be maintained to neighbours' solar collectors.
3C-1: Public and private domain transition Achieve a transition between public and private domain, to maintain safety and security.	• Ground floor units and private open spaces should have direct entry from the street, when practical. • A level change (1m) should be created, between the unit/private open space and the footpath/street. • Balconies/terraces/habitable room windows should overlook the public domain. • Fencing and walls should be partly see-through when facing the public domain. • The length of solid, blank walls should be limited (4m) along streets. • A degree of social interaction should be permitted, by providing seating or alcoves at the public/private interface or at building entries. • Architecture should clearly define entries to buildings. • Concealment opportunities should be minimised.
3C-2: Public domain amenity Public amenity is maintained or enhanced.	• Landscaping should be used to soften built form and be suitably scaled to achieve this. • Letter boxes should be in lobbies/foyers or integrated into walls at building entries. • Basement vents should be located and designed to minimise their visual prominence. • Garbage storage, substations and other utilities should be in basements or screened from view.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
	• The need for ramps and steps should be avoided, by building entries being at or near footpath levels. • Durable, easily cleaned building materials and finishes (graffiti-proof) should be used. • Architecture should positively address public open space, by providing low fences and planting to delineate public and private space and by minimising blank walls and parking structures facing public spaces. • Split levels should be used, to step the building with the site's slope and reduce above-ground protrusion of basements.
3D-1: Communal open space Adequate areas are provided for resident-amenity and landscaping.	• 25% min. site area is communal open space • 50% of the main communal open space is provided direct, mid-winter sunlight between 9am and 3pm.
3D-2 & 3D-3: Communal open space Communal open space enables a range of activities, responds to site conditions and is safe, attractive and inviting.	• Facilities should be provided for use of a range of age groups and may include BBQs, seating, play equipment, common rooms or sporting facilities. • Spaces should offer shade in summer and sunlight in winter and shelter from unpleasant, strong winds. • Utilities such as basement ducts and substations should be screened when in or adjacent to communal (or public) open space. • Communal spaces should be visible from habitable rooms and private open spaces, while maintaining privacy for residents. • Communal spaces should be well lit. • Spaces for children are suitably designed and contained.
3D-4: Public open space When provided, public open space responds to movement patterns and use of open space in the neighbourhood.	• At least one edge of the space should front a street. • The space should be well-connected with other public open space in the neighbourhood. • Solar access should be available, and the space protected from strong winds. • Accessible paths should be provided along desire-lines and improve permeability of the neighbourhood. • Edges of public open spaces should have active frontages, when possible. • The boundary between public and private spaces should be clearly defined.
3E-1: Deep soil zones Deep soil zones are provided to support healthy tree growth, improve water management and air quality, and increase amenity.	• Min. 7% of site area. • Min. dimensions: - Nil - on sites less than 650m^2 - 3m - on sites 650 m^2 - 1500m^2 - 6m - on sites over 1500 m^2.
3F-1: Visual privacy – building separation Reasonable visual privacy within and between neighbouring developments is achieved, by ensuring equitable sharing	• Separation between windows and balconies provides reasonable visual privacy. • Minimum separation distances measured from buildings to rear and side boundaries are: - 6m from habitable rooms and balconies, and - 3m from non-habitable rooms.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
of separation distances between buildings.	• Buildings within the same development should combine the separation distances detailed above. • Gallery circulation spaces (breezeways) should be treated as habitable space when measuring separation distances with adjoining properties. • 3m should be added to the min. separation distance, when the site is adjacent a lower density residential zone.
3F-2: Visual privacy - siting & building design Design elements create privacy while maintaining natural light and air circulation, while considering views and outlooks from habitable rooms and private open space.	• Siting and design should separate indoor and outdoor private areas, using one or a combination of techniques, including: - Setbacks, - Movable screens or louvres, - Landscaping, - Bay or pop-out windows, - Level differences, - Pergolas or other shading devices, and/or - Fixed screens or louvres, when site conditions limit use of other options. • Habitable rooms should be separated from circulation spaces. • Terraces and balconies should be located in front of living rooms to increase privacy indoors. • Windows of facing buildings should be off-set from one another. • Neighbouring balconies should be recessed and/or divided by fin walls to maintain privacy.
3G-1: Pedestrian access & entries Pedestrian entries address the public domain.	• The street should be activated by multiple entries. • Entries should be located having regard to the local street network and pedestrian travel. • Communal entries should be easily distinguishable from private entries. • On sites with narrow street frontages, clear sight-lines should be provided from the street to entries behind the primary street setback or in rear-sited buildings. • Pedestrian access throughout the development and to and from the street are to be suitably lit at night.
3G-2: Legible building entries Pedestrian entries to buildings are easy to identify.	• Lift lobbies, foyers, stairwells and halls should be clearly visible from the public domain and communal spaces. • Ground levels and basements should minimise level changes along paths and at entries. • Steps and ramps should be integrated into building and landscape design. • 'Way-finding' maps should be provided at entries to large sites. • Video/intercom systems should be used in large residential buildings/complexes to manage access.
3G-3: Through-site links Large sites provide pedestrian pathways between streets and other public places.	• Paths through large residential complexes provide access to open space, retail/commercial areas, community and cultural facilities and public transport. • Links are direct, subject to informal surveillance, are well lit and where possible, lined with active uses.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
3H-1: Vehicular access Vehicle entries are designed to be safe and contribute to a high quality streetscape.	• Car park entries should integrate with the façade's overall design. • They should be located behind the primary street setback and at the lowest point of the site's frontage. • Vehicle standing areas within the primary street setback should be avoided. • Headlight glare into habitable rooms should be avoided. • Separation distances between driveways and intersections should be adequate. • The width and number of driveways should be kept to a minimum. • The need to accommodate large vehicles entering the site and manoeuvring on-site should be avoided. • Garbage collection, loading and servicing areas should be screened. • Clear sight-lines should be provided at pedestrian path crossings. • Traffic calming devices should be used when required. • Pedestrian and vehicle paths should be separated and easily distinguishable.
3J-1: Bicycle & car parking	Refer to Design Guidelines in Table A.
3J-2: Parking for other transport modes Parking for other transport modes is suitably provided.	• Parking for motor bikes and scooters should be provided, when considered appropriate. • Bicycle parking, if provided, should be provided in secure and convenient locations, easily accessible from the public domain and common areas. • When desirable, spaces should be provided for car-share-schemes' vehicles and/or charging stations for electric vehicles. • When the amount of parking is less than required, Councils should not issue resident on-street parking permits.
3J-3: Car park design Parking areas are safe and secure.	• Access to basement facilities, such as storage, garbage and plant rooms, lifts and stairwells should not be obstructed by parking spaces or structures. • Visible, direct and well-lit pedestrian access is provided in car parks. • Lobbies or waiting areas to basement lifts and stairwells should be clearly defined and safe. • In larger car parks, pedestrian paths should be clearly marked, visible and protected.
3J-4: Basement parking Underground parking's impacts are minimised.	• Car park design should minimise excavation by using ramps between different levels when apt. • Parking should be laid out logically in double loaded aisles. • Parking basements should not protrude 1.0m above ground level. • Basements and sub-basements should be naturally ventilated when possible. • Ventilation grilles and screens should integrate with building design and landscaping.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
3J-5: At-grade parking At-grade parking's impacts are minimised.	• When unavoidable or desirable (for visitors), at-grade parking should: - Be located away from the street frontage, - Be screened from view, - Be provided direct, safe pedestrian access to building entries, - Be integrated into site landscaping, - Be suitably drained, incorporating swales and detention storage, when apt, and - Be paved in light colours or semi-permeable materials, when apt.
3J-6: Garages Impacts of garages and other forms of enclosed at-grade parking are minimised.	• Exposed parking at street frontages should be avoided. • Parking should be integrated with façade design or associated with other uses such as home workspaces. • Active frontages (entries to units, their open space, or home work spaces) should dominate the ground level of buildings, not open parking spaces, car ports or garages.
4A-1: Solar & daylight access The number of units receiving direct, mid-winter sunlight is optimised.	• Living rooms and private open spaces of at least 70% of units receive mid-winter sun, for at least three hours between 9.00am and 3.00pm. • A maximum 15% of the total number of units in a building receives no direct, mid-winter sunlight between 9.00am and 3.00pm.
4A-2: Daylight access Maximise daylight when direct sunlight is limited.	• Courtyards, skylights and high-sill windows should only be used as secondary light sources. • Use of courtyards and light wells should be restricted to: - Kitchens, bathrooms and services areas, - When fully open to the sky, - When accessible for maintenance and servicing ducts/pipes are concealed, and - When visual and acoustic privacy is not compromised. • When apt, light can be reflected into units, by: - Using reflective surfaces opposite south-facing windows, - Positioning windows to reflect light when facing other buildings, - Integrating light shelves into the design, and - Using light colours for internal finishes.
4A-3: Shading & glare control Shading and glare control is provided for warmer seasons.	• The following design features should be considered: - Balconies are dimensioned to provide summer shade and winter sunlight, - Architectural devices and plants, - Horizontal shading of north-facing windows, - Vertical shading of east and west facing windows, - Operable shading devices (can double as a privacy screen), and - Glare-minimising glazing - tinted or with a 20% or less reflectance level.
4B-1: Natural ventilation All habitable rooms are naturally ventilated.	• Prevailing breezes should be captured. • Room-depths enable natural ventilation. • Unobstructed openings should be at least 5% of the floor area ventilated.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
	• Light wells should not be used to ventilate indoor spaces. • Windows should be adjustable to allow large openings. • Use of windows, doors, fixed and movable structures (awnings, louvres) should be used to permit climate control.
4B-2: Ventilation of single-aspect units. Natural ventilation is optimised by layout and design.	• Unit-depth should be minimised to optimise ventilation. • Other design solutions for consideration include: - Light wells and plenums, - Stack effect ventilation and solar chimneys, - Courtyards or building indentations with a width to depth ratio of 2:1 or 3:1.
4B-3: Units are naturally cross-ventilated The number of naturally cross-ventilated units is optimised.	• No fewer than 60% of units are to be naturally cross-ventilated in the first 9 storeys of a building. • At 10 storeys or higher, units are only deemed to be cross-ventilated when balconies allow ventilation and are not fully enclosed. • 18m is the maximum unit depth, when measured from glass-line to glass-line, for units to achieve natural cross-ventilation.
4C-1: Ceiling heights Ceiling heights are sufficient to permit natural ventilation and light penetration.	• Minimum ceiling heights, measured from finished floor to finished ceiling level, are: - 2.7m – habitable rooms, - 2.4m – non-habitable rooms, - 2.7m – main living area in a 2-storey unit, - 2.4m – second storey when nor more than 50% of the unit's floor area, in a 2-storey unit, and - 1.8m – in an attic with a 30 degree min. wall-slope, - 3.3m – for ground and first floors to promote adaptation to other uses, in mixed use areas.
4C-2: Ceiling heights Ceiling height contributes to well-proportioned rooms.	• Possible design solutions for creating well-proportioned rooms include: - Ceiling height to help determine a hierarchy of rooms in the unit, - High ceilings make a smaller room feel larger, and - Service bulkheads not intruding into habitable rooms.
4C-3: Ceiling heights High ceilings enable building adaptability.	• In centres especially (i.e. business zones), ground and lower level floors should have taller floor to ceiling heights (3.3m min.) to allow premises on these floors to change from residential to other uses.
4D-1: Apartment size & layout Unit sizes and layouts offer high amenity and are efficient.	• Min. internal unit sizes are: - 35m^2 – studio units, - 50m^2 – 1 bedroom units, - 70m^2 – 2 bedroom units, - 90m^2 – 3 bedroom units, with - 5m^2 – added for each extra bathroom, and - 12m^2 – added for each extra bedroom. • All habitable rooms have windows which are at least 10% of the room's floor area. • Day light and air shall not be borrowed from other rooms.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
4D-2: Environmental performance is maximised	• The maximum habitable room depth is 2.5 times the ceiling height. • 8m is the maximum habitable room depth in open-plan unit layouts.
4D-3: Unit layouts allow a variety of activities & needs	• Minimum bedroom areas: - 10m^2 - main bedroom, - 9m^2 - other bedrooms, and - 3m - minimum bedroom dimension. • Living room, living/dining room minimum widths: - 3.6m – studio & 1 bedroom units, - 4.0m – 2 & 3+ bedroom units, and - 4.0m minimum internal width, for all cross-over or cross-through units. (See ADG glossary for definitions).
4E-1: Private open space & balconies Residential amenity is optimised with suitably sized private open space.	• Primary balconies/private open spaces have these minimum areas and depths: - 4m^2 – studio units (no min. dimension), - 8m^2 & 2m – 1 bedroom units, - 10m^2 & 2m – 2 bedroom units, - 12m^2 & 2.4m – 3+ bedroom units, and - 15m^2 & 3m - for ground or podium level units.
4E-2: Private open space & balconies Private open spaces are located to enhance liveability.	• Private open spaces and balconies should be located adjacent to living rooms, dining rooms or kitchens, to extend the unit's living space. • They should mainly face north, east or west. • Their longer side should face outwards or be open to the sky to optimise daylight in adjacent rooms.
4E-3: Private open space & balconies Balconies and other forms of private open space integrate with the building's architecture.	• Balustrade and fence design should achieve a balance between surveillance of the public domain and residents' need for privacy. • Full-width and full-height glass balustrades are undesirable. • Projecting balconies should integrate with the façade. The design of soffits should be considered. • Operable louvres, awnings and the like should be considered, for climate control. • Balustrades should be set back from the main wall/primary street setback to avoid overlooking or maintain safety, if required. • Drainage of balconies/terraces should be integrated into the building's fabric. • Air-conditioning and other plant when present is integrated or placed on the roof, or in the basement. • Mechanical plant and clothes lines should be screened when on a balcony. • Ceilings below terraces/balconies should be insulated. • Water and gas taps should be provided on balconies.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
4E-4: Private open space & balconies Private open spaces are designed to be safe.	• Ground level changes should be avoided or minimised between rooms and private open spaces. • Design should prevent or minimise the risk of climbing and falls.
4F-1: Common circulation & spaces Circulation spaces have good amenity and service a proper number of units.	No more than 8 units are provided access by a circulation core on a single level of the building. No more than 40 units shall be serviced by one lift in buildings of more than 10 storeys.
4F-2: Common circulation & spaces Common spaces are safe and provide for social interaction.	• Corridor and gallery (breezeway) lengths should be minimised and offer short, straight and clear sight-lines between lifts/stairs and unit entry doors. • Tight corners and spaces should be avoided. • Circulation spaces should be well lit. • Way-finding signage should be provided when apt in larger residential buildings and complexes. • Seating should be installed in lobbies, foyers, corridors and near stair landings, for instance. • Common rooms should be provided for resident-meetings, informal use or social functions and are ideally co-located with communal open space. • Galleries (or breezeways) should be kept open above balustrade height.
4G-1: Storage Adequate, well-designed storage is provided for each unit.	• In addition to storage in kitchens, bathrooms and bedrooms the following storage is required, with at least 50% provided in the unit: - $4m^3$ – studio units - $6m^3$ – 1 bedroom units - $8m^3$ – 2 bedroom units - $10m^3$ – 3+ bedroom units
4G-2: Storage Storage is conveniently located, accessible & secure	• Storage (not in units) should be specifically allocated to each unit and be lockable. • Storage areas (not in units) should be large enough to accommodate large and bulky items. • Basement storage should be provided at the end or side of the parking spaces allocated to the same unit as the storage. • Common storage areas should be accessible from common circulation spaces. • Storage (not in units) should be integrated into the building and not visible from the public domain.
4H-1 & 4H-2: Acoustic privacy Noise transfer is minimised and mitigated	• Adequate building separation (Objective 3F-1) should be provided. • Windows and doors should be oriented away from noise sources. • Noisier areas (bathrooms, kitchens) and quieter areas (bedrooms) should be grouped together, both vertically and horizontally, in the layout of each floor. • Storage, service and circulation areas should be located to buffer quieter areas.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
	• The number of party walls should be minimised and party walls insulated. • Garage doors, driveways, mechanical plant, sub-stations and so on, should be at least 3m away from bedrooms. • Noisy spaces and quiet spaces should be separated by internal layout, by grouping rooms with similar noise requirements, separating these groups with doors, and built-in storage (wardrobes) reducing noise transmission. • Other design approaches include double glazing, acoustic seals, low noise-conducting or noise-absorbing materials, continuous walls around terraces or courtyards, when streetscape and other amenity objectives are not compromised. • Hard surface flooring is not to be used in primary living rooms and bedrooms unless appropriately treated to prevent noise nuisance to neighbours; except on the lowest habitable level of the building.
4J-1: Noise & pollution Siting and design minimise noise and other pollution in hostile environments	• Impacts may be minimised by adopting the following design techniques: - Physical separation between units and pollution-source, - Residential uses buffered by other uses within a building, - Non-residential buildings shield residential buildings, - Use non-habitable rooms as a buffer, when solar access, privacy or outlook is not compromised, - Use dual-aspect units when solar access and pollution are from the same direction, and - Use landscaping to reduce the perception of pollution impacts. • It may not be possible to apply these techniques and achieve design criteria for: - Solar & daylight access (Objective 4A-1), - Private open space & balconies (Objective 4E-1), and - Natural cross-ventilation (Objective 4B-3). • In these circumstances, alternatives can be considered with regard to these objectives.
4J-2: Noise & pollution Noise shielding or attenuation is used when appropriate.	• Design solutions include: - Limiting the size and number of openings facing noise sources, - Sealing gaps, - Using acoustically designed fenestration, louvres or wintergardens, and - Using materials that reflect and/or absorb noise.
4K-1 & 4K-2: Unit mix Unit sizes are varied to suit different households and unit mix is suitably located in the building.	• The following are considered in determining the unit mix: - Distance to public transport, employment and education, - Market demand and demographic trends, - Demand for social and affordable housing, and - Socio-economic and cultural needs of groups in the community. • Unit layout should be flexible, to respond to varying household needs and peoples' changing circumstances. • Different apartment types may be used to complement façade design and optimise solar access. • Larger units should be located on ground and topmost levels, with access to larger areas of private open space.

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
4M-1: Façades Facades create visual interest while respecting and positively contributing to the streetscape and local character.	• Façade design: - May be composed of varied horizontal and vertical elements, - Should define the base, middle and top of a building, - May reveal or conceal certain elements, - May change the texture, colour or detail, to emphasise or diminish dominance of certain elements, - Should conceal or integrate utility services, - May vary floor heights to provide human scale, - May incorporate public art or vegetation, especially on or in blank walls, - May group floors or elements (balconies & windows), especially in taller buildings, - Should relate to levels, articulation and detailing of other buildings in the street, or - May create contrast via a light and shade, by varying the inward or outward projection of façade elements.
4M-2: Façades The façade expresses building functions.	• The façade should clearly define building entries. • Façades are used to give street-corners prominence or to terminate axial vistas. • Apartment layouts should be expressed in the façade, by party walls and floor elements.
4N-1: Roof design Roof design is integral to the building and responds to the streetscape.	• Roof design should relate to the street, by: - Using features and strong corners, - Using skillion or low-pitch hipped roofs, or - Using roof materials and pitch to complement adjacent buildings. • Roof design should integrate with the building by: - Its scale being in proportion with the rest of the building, - Materials complementing the façade, and - Service elements being integrated into the roof.
4N-2 & 4N-3: Roof design Roofs are used for residential accommodation or as open space and add to sustainability.	• Habitable, high-amenity roof space may be provided by: - Including penthouses, - Dormer windows, or - Operable skylights. • Rooftop open space may be provided, with acceptable levels of privacy, comfort, safety and security. • Roof design should maximise solar access, by: - Lifting the roof to the north, and - Eaves and overhangs providing shade to lower windows and openings.
4O-1 & 4O-2: Landscaping Landscape design is viable, sustainable, provides amenity and complements the streetscape.	• Landscaping should improve amenity and environmental performance/sustainability, by: - Using diverse plant species, - Incorporating bio-filtration gardens, - Providing space/garden beds for vegetable/fruit production, - Planting native species to nurture local fauna, - Incorporating gardens into roofs or walls, or - Providing for water reuse and composting. • Enhancing microclimate, by: - Planting suitably scaled trees,

Division F cl. 3 Residential flat buildings SEPP 65 does not apply	
Design objective	**Design criteria & guidance**
	- Using a judicious mix of evergreen and deciduous trees, according to orientation, and - Providing shade structures to complement landscaping and open space. • Landscape design should respond to: - Site and locality conditions, - Views and outlook, - Significant landscape features, and - Local ecology.
4Q-1, 4Q-2 & 4Q-3: Universal design Universal design is used to promote flexible housing for all community members.	• Residential flat development should aim to achieve a benchmark 20% of units incorporating universal design principles and techniques. • Adaptable housing should be provided in accordance with local council policy (DCP). • Typically, adaptable apartments should have: - Convenient, continuous paths of travel to access communal spaces and facilities, - Access to wider parking bays, - Good solar access, - Continuous paths of travel within units, - Access for wheelchairs and similar conveyances, - Rooms that permit multiple functions, - Dual master bedrooms, or - May be larger, open plan, 'loft' style units that only have a fixed kitchen, laundry and bathroom.
4U-1 & 4U-2: Energy efficiency Residential buildings incorporate passive environmental design	• Conveniently located, outdoor clothes lines should be provided. • Smart glass should be used in north and western elevations. • North-facing walls and floors should optimise their thermal mass. • Hard-floor surfaces should be used instead of carpet. • Roofs and walls should be insulated, and doors and windows sealed.

4. Residential flat buildings to which SEPP 65 applies

a. This clause applies to erection of and alterations and additions to a residential flat building(s) and adaptation of an existing building(s) to create a residential flat building(s), to which the provisions of SEPP 65 apply.

b. This clause applies to the residential component(s) of mixed use buildings, such as shop top housing.

c. The purpose of this clause is to supplement the applicable provisions of SEPP 65 and the objectives and design criteria/guidance of the Apartment Design Guide.

d. This clause applies to ancillary development, as defined by the Codes SEPP, that is not exempt or complying development under that policy or any other environmental planning instrument.

e. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

f. Where there is no guideline for a design element, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

Development Guidelines Table

Division F cl. 4 Residential flat buildings SEPP 65 applies		
Design elements	**Guidelines**	**Performance criteria**
a. **Site Planning.**		
i. Location of residential flat buildings. This guideline does not apply to development of land zoned R3 or B4.	Residential flat building sites are to be at least 500m apart. The separation distance is measured between the closest point of each site along the street frontage. Variation of this guideline may be considered when the proposed development is within 400m of a B1, B2, B3 or a B4 zone, measured along a street or streets, from the site to the closest point of the B1, B2, B3 or B4 zone.	A variety of housing stock is maintained in residential localities. Distribution of multi-dwelling housing is compatible with the streetscape and the character of the locality. Concentration of multi-dwelling housing is able to occur within a 400m walk of a B1, B2, B3 or a B4 zone.
ii. Development on a battle-axe lot.	Development guided by this clause is not favoured on a battle-axe lot, unless: • The lot adjoins or has an outlook to public open space or another type of public reserve, or land in an environmental protection zone, and, • Access to the lot is suitable for the development.	Development on a battle-axe lot: • Provides reasonable amenity for occupants and neighbours, • Is compatible with the public domain and the character of the locality, • Addresses public open space or another type of public reserve, or land in an environmental protection zone, and • Is provided suitable access.
b. **Building Height.**		
i. Max. no. storeys.	Nil.	Number of storeys is compatible with the streetscape and the character of the locality. Number of storeys reasonably maintains acceptable relationships with adjoining development, in terms of bulk and scale, and resident-amenity.

Division F cl. 4 Residential flat buildings SEPP 65 applies		
Design elements	**Guidelines**	**Performance criteria**
ii. Earthworks, retaining walls & related structures. Refer to Figures 14 & 15 in the Schedule.	Development is to be stepped to align as closely as possible with the slope of the lot. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with adjoining land. If the lot was benched when the land was subdivided, earthworks and related structures are not to further increase or decrease finished ground levels at any boundary with adjoining land. All earthworks and related structures are to be properly drained and not direct surface water onto adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.
	Structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed.
	Appropriate construction techniques, including minimising removal of vegetation where possible, are to be implemented to assist in erosion and sediment control during and post construction. An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	Construction of earthworks and related structures does not adversely impact stormwater flows and the environment.
c. **Setbacks.**		
i. Min. primary street setback. Refer to Figure 16 in the Schedule.	Average setback of the two buildings closest to the lot, in the same street and on the same side of the street. 6m when averaging as set out above is impractical.	Setbacks are compatible with the setback of neighbouring buildings. Setbacks contribute to a consistent streetscape and character in the locality.
ii. Min. secondary street setback on a corner lot.	50% of the primary road setback.	
iii. Min. garage setback from a rear lane.	0m, provided there is adequate area for access into and egress from a garage. Entry to and exit from a garage is to be demonstrated by plans of swept paths of vehicles, if required.	Safe and practical entry to and exit from a garage off a rear lane is provided.

Division F cl. 4 Residential flat buildings SEPP 65 applies		
Design elements	**Guidelines**	**Performance criteria**
iv. Exceptions to the primary street setback.	In areas undergoing change in their character due to various circumstances (e.g. a change in zoning or land economics), a site and context analysis is to be carried out to establish an appropriate setback to the street, when an exception is sought to the primary street setback. Applicants are to consult with Council regarding the appropriate application of this guideline when preparing a development application.	The primary street setback is established in accordance with a site and context analysis, that has considered the area's character and specific circumstances related to the site and its development.
d. **Vehicle parking.**		
i. Min. no. parking spaces.	Specified by Part 17.	The number of on-site parking spaces is adequate and acceptably impacts parking supply on local streets.
e. **Utility infrastructure.**		
i. Access to the development and associated road works.		Access to the development and associated road works are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, access is provided in accordance with RFS guidelines.
ii. Water and sewer supply.		If required, arrangements are made with Council, the water and sewer authority, for provision of water and sewer services. Such arrangements are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, water supply is provided in accordance with RFS guidelines.
iii. Stormwater management.	A stormwater management concept plan is to be submitted with a development application.	Stormwater management is consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.

Division F cl. 4 Residential flat buildings SEPP 65 applies		
Design elements	**Guidelines**	**Performance criteria**
iv. Electricity, gas and telecommunications services.		Evidence is provided to Council, that these services are available, before issue of an occupation certificate.
f. Master plans & concept development applications.		
i. Min. number of dwellings when a master plan is required.	20.	Large developments are planned, designed and developed to make a positive and compatible contribution to Albury's urban environment.
ii. Guidelines to be considered in preparing a master plan. Refer to Figures 8, 9, 10 & 11 in the Schedule.	Matters relevant to the development of a site are to be considered, such as: • An analysis of the site and locality's accessibility, functions, character and environmental conditions. • Means to improve accessibility of the site and the locality. • Integration with the existing street network and hierarchy, including consideration of street network design principles in cl. 2. e. i. • Potential to connect new streets, footpaths, shared paths or cycleways with planned, approved or constructed streets on adjoining land, with reference to the Thurgoona Wirlinga Precinct Structure Plan or other strategic document, when applicable. • Potential to extend and complement existing street, footpath and bicycle/shared path networks, in areas other than where the Thurgoona Wirlinga Precinct Structure Plan or other strategic document applies. • Preferred uses and built form, following subdivision, based on the site and locality analysis. • Higher density lots and housing when the site is within an 'accessible area' in relation to a B1, B2, B3 or B4 zone. • The pattern of subdivision and subsequent development complementing the character and functions of the locality. • Provision of public open space identified in a Council-adopted structure plan or strategy. • Provision of public open space may also be supported through analysis of land proposed as open space, considering matters such as: - an analysis of existing supply and likely demand for open space in the locality,	Master plans are prepared having considered all relevant environmental conditions and Albury's planning framework.

Division F cl. 4 Residential flat buildings SEPP 65 applies		
Design elements	**Guidelines**	**Performance criteria**
	- accessibility – i.e. the open space is within a 400m walk for potential users, not restricted by barriers such as a major road (e.g. roads specified by cl. 2. e. iii.), a creek line, and the like. - area and dimensions of the land, - the site's characteristics, including constraints such as flooding or steep slopes (> 1:8), and - addition to or integration with other open space (e.g. linear networks). • Where there is potential to dedicate land for environmental conservation, whether the land could also support recreational values and accessibility in the locality are to be considered. When deemed appropriate, low-impact public access is to be provided, that is sensitive to the conservation values of the land. • Potential to retain any significant trees and other vegetation in the public domain, such as in street reserves and public open space. • Potential of the site to be impacted by any hazard, such as contamination, bush fire or flooding, and means of eliminating or reducing the risk posed by the hazard. • Stormwater management, including consistency with any Council drainage strategy. • The potential traffic impact of the site's development and means to avoid, minimise or mitigate those impacts.	

Division G - Residential development enabled by a SEPP

Advice

Interpretation & the LEP

- *For the meaning of words and terms refer to clause 4 of Division A – Introduction, for more information.*
- *Strata subdivision of certain types of residential development, is permitted with consent by cl. 4.1 of the LEP. However, strata subdivision may be prohibited by a SEPP, in which case the SEPP prevails.*
- *For the provision of public utilities and infrastructure to development, cl.7.6 of the LEP applies.*
- *Ancillary development, including sheds, garages and other outbuildings, require development consent, when they do not satisfy requirements to be exempt or complying development under the Codes SEPP.*
- *Most fencing within Residential zones does not require Council's approval, being classified as exempt development. Development standards for exempt development are contained in the Codes SEPP.*
- *Diagrams and illustrations are located in the Schedule at the end of this part, to assist interpretation of guidelines in the Development Guidelines Tables.*

Purpose of this Division

- *The performance guidelines in this division are intended to supplement and complement the development standards and other provisions of the applicable SEPP that applies to these development types:*
  - *For seniors housing, the Seniors SEPP,*
  - *For boarding houses, the Affordable Rental Housing SEPP - Division 3, and*
  - *For group homes, the Affordable Rental Housing SEPP - Division 7.*
- *When any performance guideline in this division is inconsistent with a standard or other provision of the applicable SEPP, the provisions of the SEPP prevail, to the extent of the inconsistency.*
- *Seniors housing and group homes are defined as a 'special fire protection purpose' by the Rural Fires Act 1997. When a development application for either of them is proposed on bush fire prone land the application is referred by Council to the NSW Rural Fire Service for approval.*
- *For further information regarding the design of seniors housing, designers may refer to the Seniors Living Policy - Urban design guidelines for infill development.*

Master plans & concept development applications

- *A 'master plan' is a plan prepared to conceptually illustrate how a site is to be subdivided and developed.*
- *'Concept development application' has the same meaning as in s.4.22 (1) of the Act.*
- *'Accessible area' is land wherein a safe pedestrian access path is available between a development site and land in either a B1, B2, B3 or B4 zone; and the distance of that access path (or paths) is 400 metres or less, when measured along the street or streets.*

Utility installations

- *When preparing a development application, applicants should contact:*
  - *Council regarding stormwater drainage, water and sewer services, and*
  - *Providers of gas, electricity and telecommunications services,*

  to determine service availability, approval requirements or restrictions for servicing (if any).
- *When necessary, development is to be designed to accommodate any on-site infrastructure in accordance with standards and approvals of relevant agencies.*
- *Development applications shall include details of all existing and proposed services.*
- *Location of any proposed water or sewer mains are to be supplied with the development application.*
- *Servicing through areas with significant vegetation is to be avoided when practical.*
- *On bush fire prone land, proposed development is to provide for access and a water supply for fire-fighting in accordance with the NSW Rural Fire Service guidelines.*

Tree & vegetation management

- *Trees and vegetation should be retained where possible. Refer to Part 5 of this DCP for further information.*

Consultation & collaboration

- *When preparing a development application, applicants are encouraged to discuss proposed development with Council's planning/assessment officers.*

1. Objectives

Objectives for development to which Division G applies are to be considered by Council when a development application is determined. The objectives are, to:

a. Ensure development to which this division applies responds to the environmental conditions of the site and the locality.

b. Enable development to which this division applies to be compatible with the streetscape and to contribute positively to the character of the locality in which development is proposed.

c. Create reasonable amenity for occupants of development to which this division applies without causing unreasonable impacts on the amenity of neighbours.

2. Residential development enabled by a SEPP

a. This clause applies to erection of new buildings, alterations and additions to and adaptation of existing buildings, for:

i. Seniors housing,
ii. Boarding houses, and
iii. Group homes.

b. The purpose of this clause is to supplement the applicable provisions of the SEPPs that apply to the types of development specified by cl. 2. a.

c. This clause applies to ancillary development, as defined by the Codes SEPP, that is not exempt or complying development under that policy or any other environmental planning instrument.

d. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

e. Where there is no guideline for a design element, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

Development Guidelines Table

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
a. Site planning.		
i. Min. landscaped area. Min. width of landscaped areas (to count as part of the min. landscaped area). Min. proportion of the primary street setback to be landscaped area. Refer to Figure 13 in the Schedule.	30% of the lot. 1m. 25% Erection of ancillary development is not to reduce the min. landscaped area or private open space to an amount less than that required.	Adequate landscaped area is provided, to ensure: • Space for growing plants, including trees, • Absorption of rainwater into the ground, • Reasonable amenity for residents, • Lots are not over-developed with buildings, structures and paving, and • Paving and buildings do not dominate the streetscape.
ii. Development on a battle-axe lot.	Development guided by this clause is not favoured on a battle-axe lot, unless: • The lot adjoins or has an outlook to public open space or another type of public reserve, or land in an environmental protection zone, and, • Access to the lot is suitable for the development.	Development on a battle-axe lot: • Provides reasonable amenity for occupants and neighbours, • Is compatible with the public domain and the character of the locality, • Addresses public open space or another type of public reserve, or land in an environmental protection zone, and • Is provided suitable access.
iii. Max. basement area.	Within applicable building setbacks.	Basements do not impact the ability to maintain or plant vegetation on the lot.
b. Building height.		
i. Max. no. of storeys.	2. Does not apply in R3 and B4 zones.	The number of storeys is compatible with the streetscape and the character of the locality. The number of storeys reasonably maintains acceptable relationships with adjoining development, in terms of bulk and scale and resident-amenity.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
ii. Max. no. of storeys in the rear 40% of a lot, measured as a percentage of the average length of the two side boundaries.	1. Does not apply in the R3 and B4 zones (except when the lot adjoins land in the R1 or R2 zones), or when the lot adjoins a rear lane, or is a corner lot, or is in a heritage conservation area.	Development in the rear of a lot maintains resident amenity and is compatible with local character.
iii. Earthworks, retaining walls & related structures. Refer to Figure 14 & 15 in the Schedule.	Development is to be stepped to align as closely as possible with the slope of the lot. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with adjoining land. If the lot was benched when the land was subdivided, earthworks and related structures are not to further increase or decrease finished ground levels at any boundary with adjoining land. All earthworks and related structures are to be properly drained and not direct surface water onto adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.
	Structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed.
	Appropriate construction techniques, including minimising removal of vegetation where possible, are to be implemented to assist in erosion and sediment control during and post construction. An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	Construction of earthworks and related structures does not adversely impact stormwater flows and the environment.
iv. Max. floor height of balconies decks, patios and the like.	0.5m within 2m setback. 2m with 2m - 3m setback. 3m with 3m – 6m setback.	Maintains acceptable built form and amenity relationships with neighbouring development.
c. Setbacks.		
i. Min. primary street setback. Refer to Figure 16 in the Schedule.	Average setback of the two buildings closest to the lot, in the same street and on the same side of the street. 4m when averaging as set out above is impractical.	Setbacks are compatible with the setback of neighbouring buildings.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
ii. Min. secondary street setback on a corner lot.	50% of the primary road setback.	Setbacks contribute to a consistent streetscape and character in the locality.
iii. Min. setback from a rear lane.	0m, provided there is adequate area for access into and egress from a garage. Entry to and exit from a garage is to be demonstrated by plans of swept paths of vehicles, if required.	Safe and practical entry to and exit from a garage off a rear lane is provided.
iv. Min. side setback.	0.9m, when building height closest to the boundary does not exceed 4.5m. 1.5m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at side boundaries, for access, safety, private open space, privacy and sunlight access.
v. Min. rear setback.	3m, when building height closest to the boundary does not exceed 4.5m. 6m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at rear boundaries, for access, safety, private open space, privacy and sunlight access.
vi. Build-to boundary/zero setbacks (0mm-900mm).	Not permitted on a lot > 20m wide at the primary street setback. 0 – 900mm setback is permitted to one side boundary only. Walls setback < 900mm must be of masonry construction and have no openings. 3m max. wall height. Unbroken length cannot be greater than 10m, or one third of the boundary length, whichever is less. Maximum length of 15m provided that the wall contains at least one break of 3m. A building adjacent to a wall with a zero setback is to be set back 1.5 metres from the common boundary, despite any other provision of this DCP.	Appropriate flexibility for building siting and design is enabled on lots < 20m in width. Access between the front and rear of a lot is available on one at least one side of a dwelling. Adequate area is provided for building maintenance. Amenity of occupants of neighbouring development is maintained or created. A harmonious streetscape is maintained or created.
vii. Exceptions to the primary street setback.	In areas undergoing change in their character due to various circumstances (e.g. a change in zoning or land economics), a site and context analysis is to be carried out to establish an appropriate setback to the street, when an exception is sought to the primary street setback. Applicants are to consult with Council regarding the appropriate application of	The primary street setback is established in accordance with a site and context analysis, that has considered the area's character and specific circumstances related to the site and its development.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
	this guideline when preparing a development application.	
viii. Other exceptions to setbacks.	450mm is the minimum side or rear setback for any aerial, antenna, awning, eave, flue, chimney, pipe, cooling or heating appliance, any rainwater tank greater than 1.8m in height, or any other structure, installation or appliance associated with the provision of a utility service. Side or rear setbacks do not apply to fences, fascias, gutters, downpipes, light fittings, electricity or gas meters, driveways, open carports, paths or paving. Setbacks from streets and lanes do not apply to driveways, fences, paths, or retaining walls.	Services and utilities are able to be located within side and rear setbacks, without unreasonable adverse impacts on neighbours' amenity. Enables siting of ancillary works that must be located on, over or between lot boundaries and buildings.
d. Character & the public domain.		
i. Character.	The building is designed to be compatible with the streetscape and character of the locality.	Development is of high architectural quality and contributes positively to local character and a safe public domain. Design and choice of materials and colours are compatible with surrounding development and contribute to a pleasant and attractive public domain. The mass and form of development integrates with and promotes diversity in the locality through quality urban design.
ii. Design, massing & articulation. Refer to Figure 17 in the Schedule.	Massing and articulation are to reduce apparent scale and bulk and create visually interesting buildings. Materials, textures and colours are to complement the massing and design of the building. Buildings are to be suitably articulated using harmonious architectural elements in the design, such as verandahs, porticos, awnings, bay windows, balconies or terraces. Elements such as these may be forward of the primary street setback. Simple roof forms are to be designed to complement other building elements and minimise bulk and scale of the building. Roof forms are to be compatible with those of nearby buildings. Infrastructure and services are to be integrated into to the development's design or screened.	
iii. Community safety & surveillance.	Principal pedestrian entries are to address, be readily identifiable and directly accessible from the street.	A safe method of access to and egress from development is provided.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
	Principal pedestrian entries are not to be from a lane. When a building façade faces a reserve or other element of the public domain, that façade is to include windows and/or doors to address that reserve or other element of the public domain. Fencing and landscaping are not to unacceptably diminish informal surveillance of the public domain.	Development contributes to community safety and informal surveillance of the public domain.
e. Resident-amenity.		
i. Sunlight access. Refer to Figures 21 & 22 in the Schedule.	Windows and doors of habitable rooms (except bedrooms) and private open space of all dwellings are to be sited and oriented to receive at least 3 hours direct sunlight between 9am and 3pm on the winter solstice.	Sunlight access to primary indoor living areas and private open space is optimised. Sunlight access enables passive solar heating in winter and provides a pleasant and healthy indoor environment.
ii. Overshadowing.	Proposed development must retain at least 3 hours of sunlight between 9am and 3pm on the winter solstice for existing neighbouring residential accommodation's: • Windows and doors of habitable rooms except bedrooms, • At least 50% of private open space, • Photovoltaic and solar hot water systems, and • Outdoor clothes drying facilities. If areas or utilities specified in the above paragraph of existing neighbouring residential accommodation receive less than 3 hours sunlight at the time a development application is lodged for adjoining land, the amount of sunlight received is not be reduced as a result of proposed development. When existing neighbouring residential accommodation may have its sunlight access impacted by proposed development, a shadow diagram is to be submitted with the application for the proposed development, based on the winter solstice, in hourly intervals from 9am to 3pm.	Sunlight access to existing neighbouring residential accommodation is reasonably maintained.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
iii. Climate management for west-facing residential accommodation. Refer to Figure 18 in the Schedule.	Where habitable rooms face west (between north-west and south-west), architectural elements are to be used, such as: • Extended eaves, • Verandahs, • External shutters or louvres, or • Awnings. Architectural design elements can be complemented by landscaping.	Heat-gain is reduced to improve thermal performance and comfort for occupants of residential accommodation.
iv. Privacy. Refer to Figure 23 in the Schedule.	When privacy of occupants of proposed development or neighbours is likely to be affected, siting and design of the proposed development is to maintain reasonable levels of privacy. Principal siting and design techniques to consider and use, include: • Building orientation, • Position of habitable rooms, • Window size and location, • Building separation and setbacks, • Avoiding or minimising direct lines of sight, and • Location of balconies and terraces adjacent indoor living areas. When principal techniques may not maintain reasonable levels of privacy, supplementary techniques to consider and use include: • Recessed balconies or vertical fins, • Solid or partially solid balustrades, • Bay or pop-out windows, • Planter boxes, • Privacy screens, • Sill heights, or • Opaque window glazing.	Privacy between residents of proposed development and neighbours is reasonably protected.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
v. Private open space. Min. area. Min. length and width. Max. grade. When provided above ground, min. length and width to count towards min. private open space area. Refer to Figure 19 in the Schedule.	 24m^2. 4m. 1:20. 2m.	Private open space is sited and designed to accommodate various functions such as outdoor leisure and dining, gardening and landscaping, clothes drying, and bin storage.
vi. Principal private open space. At ground level: Min. area. Min. length and width. Max. grade. Above ground level: Min. area. Min. depth. Refer to Figure 19 in the Schedule.	Principal private open space is located adjacent to and directly accessible from a habitable room in a dwelling, other than a bedroom. 16m^2. 4m. 1:50. 12m^2. 2m.	Principal private open space is located and designed to provide high amenity for dwelling occupants.
vii. Landscape design.	A landscape concept plan is to be provided, prepared in accordance with Council's Engineering Guidelines Subdivisions and Development Standards.	Landscape planning and design is properly conducted for development.
viii. Safer by design.	Development applications for the following developments are to be accompanied by a safer by design (crime prevention through environmental design) assessment: • Seniors housing of more than 6 dwellings and/or beds, • Group homes accommodating more than 6 people (excluding caretakers), and • Boarding houses accommodating more than 6 people.	The risk of anti-social behaviour, criminal activity and reduced public safety is avoided, minimised or mitigated. Development is liveable and safe for its occupants.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
ix. Noise & air quality.	Development is to be sited and designed to acceptably reduce the impact of noise in the locality. When there is a risk development will be impacted by a nearby source of noise or offensive or hazardous emissions to the atmosphere, the development is to be designed and sited to acceptably reduce that risk. When deemed necessary by Council, a noise impact assessment is to be submitted with a development application and the development's design is to adopt the recommendations of that assessment.	Impacts of noise and air-emissions are avoided or effectively mitigated and minimised.
x. Waste Management.	Provide bin storage in accordance with Council's kerbside requirements, in a readily accessible location for residents. Bins are not to be stored forward of the primary street setback, or in a location visible from the public domain. Construction and demolition waste are to be managed and disposed of in accordance with the requirements of Council or another authority, when applicable.	Waste storage meets residents' requirements, reasonably maintains resident-amenity and the qualities of the streetscape and the character of the locality. Waste from the development is effectively managed in accordance with applicable requirements.
xi. Building materials.	Reflective building materials are not to be used.	Building materials do not unreasonably diminish neighbours' amenity.
f. Boundary treatments (fences & walls).		
i. Max. height of a boundary treatment forward of the primary street setback. Refer to Figure 24 in the Schedule.	1.2m, or 1.8m, with at least 50% being see-through.	Amenity is protected for residents without adverse impact on the streetscape. Informal surveillance is enabled, and the boundary treatment contributes positively to the streetscape.
ii. Max. height of a gate, forward of the primary street setback.	As above.	Gates are of the same height as and compatible in appearance with the remainder of front boundary treatment and maintain safety on the public road.
iii. Max. height of side and rear boundary treatment behind the primary street setback.	1.8m.	Side and rear fencing enables privacy and security without being visually intrusive or dominant.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
iv. Boundary treatment materials and colours.	To be consistent with the materials and colours of the development on the lot and compatible with the streetscape. On a lot adjoining semi-rural or rural land, or land in an Environmental zone, boundary treatments on that lot are to be compatible with the character of the land adjoining the lot. Post and rail or post and wire fencing are examples of suitable fencing. Solid metal or timber fencing, or masonry walls are discouraged.	Boundary treatments contribute positively to the streetscape and are compatible with the character of the locality.
g. Access & parking.		
i. Pedestrian access.	Pedestrian entries are to be clearly identifiable and visible from the street. Entries are to provide direct access to letter boxes. Entries and paths from the street are to be suitably lit at night. Pedestrian paths are to be separate from driveways, when possible, or shared ways design to minimise vehicle speed to walking speed (5 km/h).	Pedestrian entries to development are safe and provide amenity for and informal surveillance of the street.
ii. Min. no. parking spaces.	Specified by Part 17.	The number of on-site parking spaces is adequate and acceptably impacts parking supply on local streets.
iii. Internal access design. Refer to Figure 25 in the Schedule.	Internal access design is to consider and be based on a combination of these principles: • Avoid unrelieved, long, straight driveways that are visually dominant. • Vary the alignment of driveways to avoid a 'gun-barrel' effect'. • Set back garages behind the predominant primary street setback to reduce their visibility from the street • Avoid driveways running the length of the site. • Minimise the impact of driveways on streetscape. • Terminating vistas with trees, vegetation, open space or a dwelling, not garages or parking. • Use planting to soften driveway edges • Varying the driveway surface material to break it up into series of smaller spaces.	Internal access design is safe, functional, visually appealing and contributes positively to the streetscape.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
	• Limiting driveway widths on narrow sites to single vehicle width with passing bays when required.	
iv. Carports forward of the primary street setback.	A carport erected forward of the primary street setback is to: • Have max. dimensions of 6m x 3m, • Be setback at least 1m from the front boundary, • Not exceed 4.5m in height, • Only be enclosed one side, either at the rear of the carport or on the side closest to a side lot boundary, and • Be designed and built of materials and colours compatible with the main building(s) on the lot.	Carports forward of the primary street setback do not unreasonably affect the amenity of neighbours and are compatible with other buildings on the lot and the streetscape.
h. Utility infrastructure.		
i. Access to the development and associated road works.		Access to the development and associated road works are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, access is provided in accordance with RFS guidelines.
ii. Water and sewer supply.		If required, arrangements are made with Council, the water and sewer authority, for provision of water and sewer services. Such arrangements are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, water supply is provided in accordance with RFS guidelines.
iii. Stormwater management.	A stormwater management concept plan is to be submitted with a development application.	Stormwater management is consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
iv. Electricity, gas and telecommunications services.		Evidence is provided to Council, that these services are available, before issue of an occupation certificate.
i. Master plans & concept development applications.		
i. Minimum number of dwellings when a master plan is required.	20.	Large developments are planned, designed and developed to make a positive and compatible contribution to Albury's urban environment.
ii. Guidelines to be considered in preparing a master plan. Refer to Figures 8, 9, 10 & 11 in the Schedule.	Matters relevant to the development of a site are to be considered, such as: • An analysis of the site and locality's accessibility, functions, character and environmental conditions. • Means to improve accessibility of the site and the locality. • Integration with the existing street network and hierarchy, including consideration of street network design principles in cl. 2. e. i.. • Potential to connect new streets, footpaths, shared paths or cycleways with planned, approved or constructed streets on adjoining land, with reference to the Thurgoona Wirlinga Precinct Structure Plan or other strategic document, when applicable. • Potential to extend and complement existing street, footpath and bicycle/shared path networks, in areas other than where the Thurgoona Wirlinga Precinct Structure Plan or other strategic document applies. • Preferred uses and built form, following subdivision, based on the site and locality analysis. • Higher density lots and housing when the site is within an 'accessible area' in relation to a B1, B2, B3 or B4 zone. • The pattern of subdivision and subsequent development complementing the character and functions of the locality. • Provision of public open space identified in a Council-adopted structure plan or strategy. • Provision of public open space may also be supported through analysis of	Master plans are prepared having considered all relevant environmental conditions and Albury's planning framework.

Division G cl. 2 Residential development enabled by a SEPP		
Design elements	**Guidelines**	**Performance criteria**
	land proposed as open space, considering matters such as: - an analysis of existing supply and likely demand for open space in the locality, - accessibility – i.e. the open space is within a 400m walk for potential users, not restricted by barriers such as a major road (e.g. roads specified by cl. 2. e. iii.), a creek line, and the like. - area and dimensions of the land, - the site's characteristics, including constraints such as flooding or steep slopes (> 1:8), and - addition to or integration with other open space (e.g. linear networks). • Where there is potential to dedicate land for environmental conservation, whether the land could also support recreational values and accessibility in the locality are to be considered. When deemed appropriate, low-impact public access is to be provided, that is sensitive to the conservation values of the land. • Potential to retain any significant trees and other vegetation in the public domain, such as in street reserves and public open space. • Potential of the site to be impacted by any hazard, such as contamination, bush fire or flooding, and means of eliminating or reducing the risk posed by the hazard. • Stormwater management, including consistency with any Council drainage strategy. • The potential traffic impact of the site's development and means to avoid, minimise or mitigate those impacts.	

Division H – Non-residential development in residential zones

Advice

Interpretation & the LEP

- *For the meaning of words and terms refer to clause 4 of Division A – Introduction, for more information.*
- *Various forms of non-residential development are permitted with consent by the LEP in R1 General Residential, R2 Low Density Residential, R3 Medium Density Residential and R5 Large Lot Residential zones.*
- *Strata subdivision of non-residential development is permitted with consent by cl. 4.1 of the LEP.*
- *For the provision of public utilities and infrastructure to development, cl.7.6 of the LEP applies.*
- *Ancillary development, including sheds, garages and other outbuildings, require development consent, when they do not satisfy requirements to be exempt or complying development under the Codes SEPP.*
- *Most fencing within Residential zones does not require Council's approval, being classified as exempt development. Development standards for exempt development are contained in the Codes SEPP.*
- *Diagrams and illustrations are located in the Schedule at the end of this part, to assist interpretation of guidelines in the Development Guidelines Tables.*

Specific types of non-residential development

- *Several types of non-residential development permissible in residential zones are enabled and controlled by a SEPP and in some instances associated design guidelines.*
- *The performance guidelines in this clause are intended to supplement and complement the development standards and other provisions of the LEP or applicable SEPP and associated design guidelines, which apply to these development types:*

  Bed and breakfast accommodation
  - *For bed and breakfast accommodation, cl. 5.4 of the LEP prescribes a maximum of 3 guest bedrooms.*
  - *Part 4A, Division1, Subdivision 1 of the Codes SEPP prescribes development standards for bed and breakfast accommodation to be complying development, which have been adapted for Development Guidelines Table B.*

  Mixed use development & serviced apartments
  - *SEPP 65 and the Apartment Design Guide apply to the residential components of mixed use development, including shop top housing.*
  - *Although the SEPP does not specifically apply to either of these development types, the associated guidelines may be used for guidance to prepare and assess development applications.*

  Centre based child care facilities
  - *For centre based child care facilities, the Educational Establishments and Child Care SEPP and the Child Care Planning Guideline apply.*
  - *The SEPP's cl. 23 states that before approving a development application, Council must consider applicable provisions of the Child Care Planning Guideline.*
  - *The SEPP's cl. 26 Centre based child care facility – development control plans, specifies matters which, if in a DCP, do not apply, except for building height, side and rear setbacks and parking rates.*
  - *Guidelines for building height and setbacks are in Development Guidelines Table A.*

  Educational establishments
  - *The Educational Establishments and Child Care SEPP - Parts 4, 5 & 6 respectively permit schools, universities and TAFE establishments. Depending on the nature and scale of the development, it is permitted either without consent or with consent, or either as exempt or complying development.*
  - *For example, when a development application for a school is prepared and determined, the design quality principles in Schedule 4 must be considered. These seven principles address:*

  - *Context, built form and landscape*
  - *Sustainability, efficiency and durability*
  - *Accessibility and inclusivity*
  - *Health and safety*
  - *Amenity*
  - *Whole-of-life flexibility and adaptiveness*
  - *Aesthetics*
- *All schools are state significant development, meaning that a development application would be lodged with Council for assessment and exhibition, and then determined by the Joint Regional Planning Panel.*

- *When any performance guideline in this clause is inconsistent with a standard or other provision of the applicable SEPP, the provisions of the SEPP prevail, to the extent of the inconsistency.*

Integrated development

- *Centre-based child care centres, community facilities (when used as a bush fire refuge), educational establishments and respite daycare centres are defined as a 'special fire protection purpose' by the Rural Fires Act 1997. Consequently, they are defined as 'integrated development' by Division 4.8 of the Environmental Planning & Assessment Act 1979.*
- *When a development application for any of these is proposed on bush fire prone land the application is referred by Council to the NSW Rural Fire Service for assessment and determination.*

Master plans & concept development applications

- *A 'master plan' is a plan prepared to conceptually illustrate how a site is to be subdivided and/or developed.*
- *'Concept development application' has the same meaning as in s.4.22 (1) of the Act.*
- *'Accessible area' is land wherein a safe pedestrian access path is available between a development site and land in either a B1, B2, B3 or B4 zone; and the distance of that access path (or paths) is 400 metres or less, when measured along the street or streets.*

Utility installations

- *When preparing a development application, applicants should contact:*
  - *Council regarding stormwater drainage, water and sewer services, and*
  - *Providers of gas, electricity and telecommunications services,*

  to determine service availability, approval requirements or restrictions for servicing (if any).
- *When necessary, development is to be designed to accommodate any on-site infrastructure in accordance with standards and approvals of relevant agencies.*
- *Development applications shall include details of all existing and proposed services.*
- *Location of any proposed water or sewer mains are to be supplied with the development application.*
- *Servicing through areas with significant vegetation is to be avoided when practical.*
- *On bush fire prone land, proposed development is to provide for access and a water supply for fire-fighting in accordance with the NSW Rural Fire Service guidelines.*

Tree & vegetation management

- *Trees and vegetation should be retained where possible. Refer to Part 5 of this DCP for further information.*

Consultation & collaboration

- *When preparing a development application, applicants are encouraged to discuss proposed development with Council's planning/assessment officers.*

ALBURY DCP PART 10 – DEVELOPMENT IN RESIDENTIAL ZONES

i. Objectives

Objectives for development to which Division H applies are to be considered by Council when a development application is determined. The objectives are, to:

a. Ensure non-residential development permitted in residential zones responds to the environmental conditions of the site and the locality.

b. Enable non-residential development permitted in residential zones to be compatible with the streetscape and to contribute positively to the character of the locality in which development is proposed.

c. Create reasonable amenity for occupants of non-residential development permitted in residential zones without causing unreasonable impacts on the amenity of neighbours.

ii. Non-residential development in residential zones

a. This clause applies to:

   i. Erection of new buildings, alterations and additions to and adaptation of existing buildings, for all types of non-residential development permitted in residential zones.

   ii. Ancillary development, as defined by the Codes SEPP, that is not exempt or complying development under that policy or any other environmental planning instrument, and

   iii. Land to which the LEP's Schedule 1 Additional permitted uses, applies.

b. This clause provides specific design guidance for:
   i. Bed and breakfast accommodation,
   ii. Exhibition homes and villages, and
   iii. Neighbourhood shops.

c. This clause has two Development Guidelines Tables:

   i. Development Guideline Table A – applies to all types of development described by cl. 2 a and cl. 2 b.

   ii. Development Guideline Table B – applies to types of development described by cl. 2 b, in addition to the provisions of Development Guidelines Table A.

d. Satisfaction of performance criteria is to be demonstrated to justify departures from numerical guidelines and non-numerical guidelines as set out in the Development Guidelines Table to this clause.

e. Where there is no guideline for a design element, information is to be provided with a development application to demonstrate that relevant performance criteria are satisfied.

Development Guidelines Table A

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
a. Site planning.		
i. Min. landscaped area. Min. width of landscaped areas (to count as part of min. landscaped area). Min. proportion of the primary street setback to be landscaped area. Refer to Figure 13 in the Schedule.	30% of lot area. 1m. 25%. Erection of ancillary development is not to reduce the min. landscaped area to an amount less than that required for the lot.	Adequate landscaped area is provided, to ensure: • Space for growing plants, including trees, • Absorption of rainwater into the ground, • Reasonable amenity for residents, • Lots are not over-developed with buildings, structures and paving, and • Paving and buildings do not dominate the streetscape.
ii. Development on a battle-axe lot.	Development guided by this clause is not favoured on a battle-axe lot, unless: • The lot adjoins or has an outlook to public open space or another type of public reserve, or land in an environmental protection zone, and, • Access to the lot is suitable for the development.	Development on a battle-axe lot: • Provides reasonable amenity for occupants and neighbours, • Is compatible with the public domain and the character of the locality, • Addresses public open space or another type of public reserve, or land in an environmental protection zone, and • Is provided suitable access.
iii. Max. basement area.	Within applicable building setbacks.	Basements do not impact the ability to maintain or plant vegetation on the lot.
b. Building height.		
i. Max. no. of storeys,	2. Does not apply in R3 and B4 zones.	The number of storeys is compatible with the streetscape and the character of the locality. The number of storeys reasonably maintains acceptable relationships with adjoining development, in terms of bulk and scale and resident-amenity.

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
ii. Max. no. of storeys in the rear 40% of a lot, measured as a percentage of the average length of the two side boundaries.	1. Does not apply in the R3 and B4 zones (except when the lot adjoins land in the R1 or R2 zones), or when the lot adjoins a rear lane, or is a corner lot, or is in a heritage conservation area.	Development in the rear of a lot maintains resident amenity and is compatible with local character.
iii. Earthworks, retaining walls & related structures. Refer to Figures 14 & 15 in the Schedule.	Development is to be stepped to align as closely as possible with the slope of the lot. Earthworks and related structures are not to result in finished ground levels that differ by more than 600mm from existing ground levels at any boundary with adjoining land. If the lot was benched when the land was subdivided, earthworks and related structures are not to further increase or decrease finished ground levels at any boundary with adjoining land. All earthworks and related structures are to be properly drained and not direct surface water onto adjoining land.	Adverse impacts of earthworks and related structures on adjoining land, resident-amenity, streetscape and the character of the locality are avoided, or acceptably minimised or mitigated.
	Structures related to earthworks that differ by more than 600mm from existing ground levels, including any retaining, drainage works or other works, are to be designed by a suitably qualified and experienced engineer.	Earthworks and related structures and infrastructure are properly designed.
	Appropriate construction techniques, including minimising removal of vegetation where possible, are to be implemented to assist in erosion and sediment control during and post construction. An erosion and sediment control plan is to be submitted with a development application, except when development does not involve soil disturbance or when soil disturbance is insignificant.	Construction of earthworks and related structures does not adversely impact stormwater flows and the environment.
c. Setbacks.		
i. Min. primary street setback. Refer to Figure 16 in the Schedule.	Average setback of the two buildings closest to the lot, in the same street and on the same side of the street. 4m when averaging as set out above is impractical.	Setbacks are compatible with the setback of neighbouring buildings. Setbacks contribute to a consistent streetscape and character in the locality.
ii. Min. secondary street setback on a corner lot.	50% of the primary road setback.	

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
iii. Min. side setback.	0.9m, when building height closest to the boundary does not exceed 4.5m. 1.5m, when building height closest to the boundary exceeds 4.5m. Side setbacks may be less than specified above, to boundaries of a lot that adjoins land in a Business or an Industrial zone.	Adequate building separation is provided at side boundaries, for amenity, boundary fencing, access, safety, and maintenance.
iv. Min. rear setback.	3m, when building height closest to the boundary does not exceed 4.5m. 6m, when building height closest to the boundary exceeds 4.5m.	Adequate building separation is provided at rear boundaries, for access, safety, privacy and sunlight access.
v. Min. garage setback from a rear lane.	0m, provided there is adequate area for access into and egress from a garage. Entry to and exit from a garage is to be demonstrated by plans of swept paths of vehicles, if required.	Safe and practical entry to and exit from a garage off a rear lane is provided.
vi. Exceptions to the primary street setback.	In areas undergoing change in their character due to various circumstances (e.g. a change in zoning or land economics), a site and context analysis is to be carried out to establish an appropriate setback to the street, when an exception is sought to the primary street setback. Applicants are to consult with Council regarding the appropriate application of this guideline when preparing a development application.	The primary street setback is established in accordance with a site and context analysis, that has considered the area's character and specific circumstances related to the site and its development.
vii. Other exceptions to setbacks.	450mm is the minimum side or rear setback for any aerial, antenna, awning, eave, flue, chimney, pipe, cooling or heating appliance, any rainwater tank greater than 1.8m in height, or any other structure, installation or appliance associated with the provision of a utility service. Side or rear setbacks do not apply to fences, fascias, gutters, downpipes, light fittings, electricity or gas meters, driveways, open carports, paths or paving. Setbacks from streets and lanes do not apply to driveways, fences, paths, or retaining walls.	Services and utilities are able to be located within side and rear setbacks, without unreasonable adverse impacts on neighbours' amenity. Enables siting of ancillary works that must be located on, over or between lot boundaries and buildings.

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
d. Character & the public domain.		
i. Character.	The building is designed to be compatible with the streetscape and character of the locality.	Development is of high architectural quality and contributes positively to local character and a safe public domain. Design and choice of materials and colours are compatible with surrounding development and contribute to a pleasant and attractive public domain. The mass and form of development integrates with and promotes diversity in the locality through quality urban design.
ii. Design, massing & articulation. Refer to Figure 17 in the Schedule.	Massing and articulation are to reduce apparent scale and bulk and create visually interesting buildings. Materials, textures and colours are to complement the massing and design of the building. Buildings are to be suitably articulated using harmonious architectural elements in the design, such as verandahs, porticos, awnings, bay windows, balconies or terraces. Elements such as these may be forward of the primary street setback. Simple roof forms are to be designed to complement other building elements and minimise bulk and scale of the building. Roof forms are to be compatible with those of nearby buildings. Infrastructure and services are to be integrated into to the development's design or screened.	
iii. Community safety & surveillance.	Principal pedestrian entries are to address, be readily identifiable and directly accessible from the street. Principal pedestrian entries are not to be from a lane. When a building façade faces a reserve or other element of the public domain, that façade is to include windows and/or doors to address that reserve or other element of the public domain. Fencing and landscaping are not to unacceptably diminish informal surveillance of the public domain.	A safe method of access to and egress from development is provided. Development contributes to community safety and informal surveillance of the public domain.
iv. Signage.	Relevant provisions of SEPP 64 are adopted for design guidance of advertising structures and signs.	Signage is properly designed.

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
e. Occupant & neighbour-amenity.		
i. Sunlight access. Refer to Figures 19 & 20 in the Schedule.	Windows and doors of habitable rooms and open space areas, if provided for occupants or visitors of the development, are to be sited and oriented to receive at least 3 hours direct sunlight between 9am and 3pm on the winter solstice.	Sunlight access to primary indoor areas and open space is optimised. Sunlight access enables passive solar heating in winter and provides a pleasant and healthy indoor environment.
ii. Overshadowing.	Proposed development must retain at least 3 hours of sunlight between 9am and 3pm on the winter solstice for existing neighbouring residential accommodation's: • Windows and doors of habitable rooms except bedrooms, • At least 50% of private open space, • Photovoltaic and solar hot water systems, and • Outdoor clothes drying facilities. If areas or utilities specified in the above paragraph of existing neighbouring residential accommodation receive less than 3 hours sunlight at the time a development application is lodged for adjoining land, the amount of sunlight received is not be reduced as a result of proposed development. When existing neighbouring residential accommodation may have its sunlight access impacted by proposed development, a shadow diagram is to be submitted with the application for the proposed development, based on the winter solstice, in hourly intervals from 9am to 3pm.	Sunlight access to existing neighbouring residential accommodation is reasonably maintained.
iii. Climate management for west-facing buildings. Refer to Figure 18 in the Schedule.	Where habitable rooms face west (between north-west and south-west), architectural elements are to be used, such as: • Extended eaves, • Verandahs, • External shutters or louvres, or • Awnings. Architectural design elements can be complemented by landscaping.	Heat-gain is reduced to improve thermal performance and comfort for occupants of non-residential development.

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
iv. Privacy. Refer to Figure 23 in the Schedule.	When privacy of occupants of proposed development or neighbours is likely to be affected, siting and design of the proposed development is to maintain reasonable levels of privacy. Principal siting and design techniques to consider and use, include: • Building orientation, • Position of habitable rooms, • Window size and location, • Building separation and setbacks, • Avoiding or minimising direct lines of sight, and • Location of balconies and terraces adjacent indoor living areas. When principal techniques may not maintain reasonable levels of privacy, supplementary techniques to consider and use include: • Recessed balconies or vertical fins, • Solid or partially solid balustrades, • Bay or pop-out windows, • Planter boxes, • Privacy screens, • Sill heights, or • Opaque window glazing.	Privacy between residents of proposed development and neighbours is reasonably protected.
v. Landscape design.	A landscape concept plan is to be provided, prepared in accordance with Council's *Engineering Guidelines Subdivisions and Development Standards.*	Landscape planning and design is properly conducted for development.
vi. Safer by design.	Development applications for the following developments are to be accompanied by a safer by design (crime prevention through environmental design) assessment: • Childcare centres, • Community facilities, • Educational establishments, • Health services facilities, • Places of public worship, and • Serviced apartments.	The risk of anti-social behaviour, criminal activity and reduced public safety is avoided, minimised or mitigated. Development is liveable and safe for its occupants.
vii. Hours of operation.	Hours of operation will be considered with regard to the site's location, access to the road network and potential to impact amenity of residents in the locality.	Hours of operation are appropriately established depending on site and contextual circumstances.

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
viii. Noise & air quality.	When there is a risk development will be impacted by a nearby source of noise or offensive or hazardous emissions to the atmosphere, the development is to be designed and sited to acceptably reduce that risk. When deemed necessary by Council, a noise and/or air quality impact assessment is to be submitted with a development application and the development's design is to adopt the recommendations of that assessment.	Impacts of noise and air-emissions are avoided or effectively mitigated and minimised.
ix. Waste Management.	Provide bin storage in accordance with Council's kerbside requirements, in a readily accessible location for residents. Bins are not to be stored forward of the primary street setback, or in a location visible from the public domain. Construction and demolition waste is to be managed and disposed of in accordance with the requirements of Council or another authority, when applicable.	Waste storage meets residents' requirements, reasonably maintains resident-amenity and the qualities of the streetscape and the character of the locality. Waste from the development is effectively managed in accordance with applicable requirements.
x. Building materials.	Reflective building materials are not to be used.	Building materials do not unreasonably diminish neighbours' amenity.
f. Boundary treatments (fences & walls).		
i. Max. height of a boundary treatment forward of the primary street setback. Refer to Figure 24 in the Schedule.	1.2m, or 1.8m, with at least 50% being see-through.	Amenity is protected for residents without adverse impact on the streetscape. Informal surveillance is enabled, and the boundary treatment contributes positively to the streetscape.
ii. Max. height of a gate, forward of the primary street setback.	As above.	Gates are of the same height as and compatible in appearance with the remainder of front boundary treatment and maintain safety on the public road.
iii. Max. height of side and rear boundary treatment behind the primary street setback.	1.8m.	Side and rear fencing enables privacy and security without being visually intrusive or dominant.

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
iv. Boundary treatment materials and colours.	To be consistent with the materials and colours of the development on the lot and compatible with the streetscape. On a lot adjoining semi-rural or rural land, or land in an Environmental zone, boundary treatments on that lot are to be compatible with the character of the land adjoining the lot. Post and rail or post and wire fencing are examples of suitable fencing. Solid metal or timber fencing, or masonry walls are discouraged.	Boundary treatments contribute positively to the streetscape and are compatible with the character of the locality.
g. Access & parking.		
i. Pedestrian access.	Pedestrian entries are to be clearly identifiable and visible from the street. Entries are to provide direct access to letter boxes. Entries and paths from the street are to be suitably lit at night.	Pedestrian entries to development are safe and provide amenity for and informal surveillance of the street.
ii. Min. no parking spaces.	Specified by Part 17.	The number of on-site parking spaces is adequate and acceptably impacts parking supply on local streets.
iii. Internal access design. Refer to Figure 25 in the Schedule.	Internal access design is to consider and be based on a combination of these principles: • Avoid unrelieved, long, straight driveways that are visually dominant. • Vary the alignment of driveways to avoid a 'gun-barrel' effect'. • Set back parking areas and garages behind the predominant primary street setback to reduce their visibility from the street • Avoid driveways running the length of the site. • Minimise the impact of driveways on streetscape. • Terminating vistas with trees, vegetation, open space or a building, not garages or parking. • Use planting to soften driveway edges • Varying the driveway surface material to break it up into series of smaller spaces. • Limiting driveway widths on narrow sites to single vehicle width with passing bays when required.	Internal access design is safe, functional, visually appealing and contributes positively to the streetscape.

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
h. Utility infrastructure.		
i. Access to the development and associated road works.		Access to the development and associated road works are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, access is provided in accordance with RFS guidelines.
ii. Water and sewer supply.		If required, arrangements are made with Council, the water and sewer authority, for provision of water and sewer services. Such arrangements are consistent with Council's Engineering Guidelines for Subdivisions and Development Standards. On bush fire prone land, water supply is provided in accordance with RFS guidelines.
iii. Stormwater management.	A stormwater management concept plan is to be submitted with a development application.	Stormwater management is consistent with Council's Engineering Guidelines for Subdivisions and Development Standards.
iv. Electricity, gas and telecommunications services.		Evidence is provided to Council, that these services are available, before issue of an occupation certificate.
i. Master plans & concept development applications.		
i. Min. site area for when a when a master plan is required.	5,000m^2.	Large developments are planned, designed and developed to make a positive and compatible contribution to Albury's urban environment.

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
ii. Guidelines to be considered in preparing a master plan. Refer to Figures 8, 9, 10 & 11 in the Schedule.	Matters relevant to the development of a site are to be considered, such as: • An analysis of the site and locality's accessibility, functions, character and environmental conditions. • Means to improve accessibility of the site and the locality. • Integration with the existing street network and hierarchy, including consideration of street network design principles in cl. 2. e. i.. • Potential to connect new streets, footpaths, shared paths or cycleways with planned, approved or constructed streets on adjoining land, with reference to the Thurgoona Wirlinga Precinct Structure Plan or other strategic document, when applicable. • Potential to extend and complement existing street, footpath and bicycle/shared path networks, in areas other than where the Thurgoona Wirlinga Precinct Structure Plan or other strategic document applies. • Preferred uses and built form, following subdivision, based on the site and locality analysis. • Higher density lots and housing when the site is within an 'accessible area' in relation to a B1, B2, B3 or B4 zone. • The pattern of subdivision and subsequent development complementing the character and functions of the locality. • Provision of public open space identified in a Council-adopted structure plan or strategy. • Provision of public open space may also be supported through analysis of land proposed as open space, considering matters such as: - an analysis of existing supply and likely demand for open space in the locality, - accessibility – i.e. the open space is within a 400m walk for potential users, not restricted by barriers such as a major road (e.g. roads specified by cl. 2. e. iii.), a creek line, and the like. - area and dimensions of the land, - the site's characteristics, including constraints such as flooding or steep slopes (> 1:8), and - addition to or integration with other open space (e.g. linear networks). • Where there is potential to dedicate land for environmental conservation, whether the land could also support	Master plans are prepared having considered all relevant environmental conditions and Albury's planning framework.

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
	recreational values and accessibility in the locality are to be considered. When deemed appropriate, low-impact public access is to be provided, that is sensitive to the conservation values of the land. • Potential to retain any significant trees and other vegetation in the public domain, such as in street reserves and public open space. • Potential of the site to be impacted by any hazard, such as contamination, bush fire or flooding, and means of eliminating or reducing the risk posed by the hazard. • Stormwater management, including consistency with any Council drainage strategy. • The potential traffic impact of the site's development and means to avoid, minimise or mitigate those impacts.	

Development Guidelines Table B

Division H cl. 2 Non-residential development in residential zones			
Design elements		**Guidelines**	**Performance criteria**
a.	**Bed & breakfast accommodation.**		
i.	Location of guest accommodation.	In an existing dwelling house. Council will consider location of guest bedrooms in an ancillary building, when it is demonstrated the performance criteria is achieved.	No significant impact on resident-amenity and the character of the locality.
ii.	Min. no. of guest bathrooms.	1.	
iii.	Min. no. of off-street guest parking spaces.	1 per guest bedroom. Departure from this guideline will be considered when: • When adequate on-street parking is demonstrated, or • When publicly accessible off-street parking is available within a reasonable walking distance (200m or less) of the proposed development.	
b.	**Exhibition homes & villages.**		
i.	Opening hours.	Opening hours will be considered depending on the site's location, access to the road network and potential to impact amenity of existing and likely future residents in the locality.	Resident amenity is reasonably maintained during use of the dwelling(s) for exhibition.

Division H cl. 2 Non-residential development in residential zones		
Design elements	**Guidelines**	**Performance criteria**
ii. Fixed term.	A fixed term for the exhibition home or village is to be established by the development consent, based on an assessment of the size of the estate or urban release area in which the exhibition home or village is located and the likely timeframe in which sale of new dwellings will occur in the locality. Development applications are to include information to support the proposed term that the dwelling(s) will be used for exhibition. Following this term, the dwelling(s) used for exhibition is(are) to be converted for residential occupation, in compliance with applicable standards.	The use of dwellings for exhibition purposes ceases within a reasonable period, and the future residential amenity of the locality is protected.
iii. Parking.	2 parking spaces per exhibition dwelling.	Adequate parking is provided.
iv. Related development.	Accommodation for complementary activities such as office space, stalls, kiosks and the like will be considered on merit.	Ancillary development complements the principal use of the land as an exhibition home or village.
c. Neighbourhood shops.		
i. Parking.	Specified by Part 17. Departures from this guideline will be considered when it is demonstrated there is excess parking available on-street, or publicly accessible parking is available within a reasonable walking distance (200m or less) of the proposed development.	Suitable and adequate parking is provided for customers and employees and does not unreasonably impact parking supply on local streets.

Division I – Area specific development plans

1. Objectives

a. To ensure development occurs in accordance with plans prepared for specific areas in the City of Albury.

b. To complement other applicable provisions of Part 10.

2. Area specific development plans

a. Development of land affected by one of the plans specified below, shall be designed and carried out in accordance with that plan:

i. Racecourse Estate Development Plan. See Figure 2. a. i below.

ii. Easternview Estate Development Plan. See Figure 2. a. ii below.

iii. Ettamogah Development Plan. See Appendix E.

iv. Hamilton Valley Development Control Plan. See Appendix F.

v. Kremur Street Aged Care Accommodation Site & Surrounds. See Appendix G.

vi. Charles Sturt University – Albury CBD Development Control Plan 2010. See Appendix N.

vii. 219 Corrys Road, Thurgoona (Ex Stargazer Site) Development Control Plan. See Appendix O.

b. Development of land in accordance with paragraph a. is to have regard to other applicable provisions of this DCP.

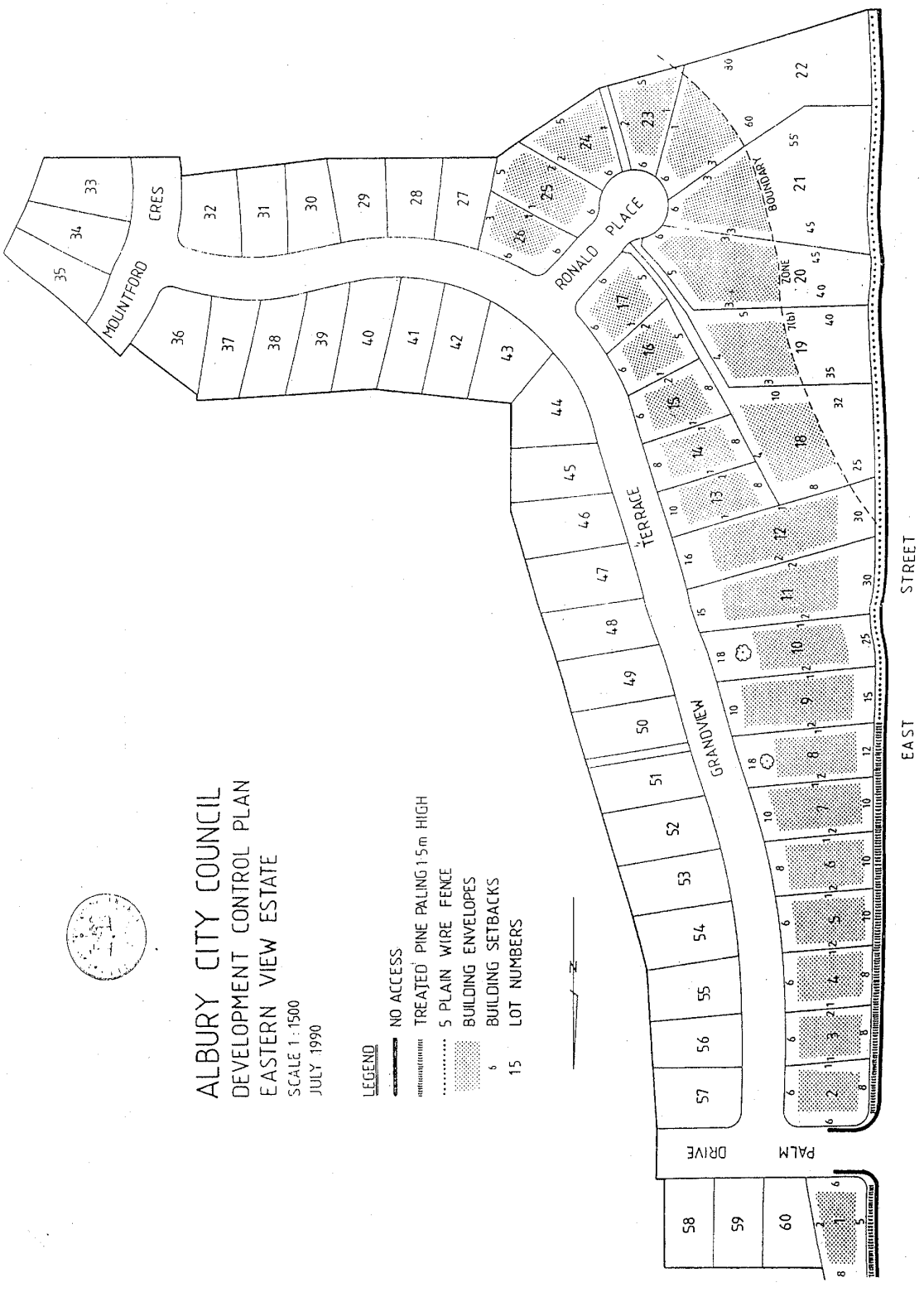
c. Where there is an inconsistency between provisions of this division or other provision of this DCP, the provisions of this division shall prevail, to the extent of the inconsistency.

Figure 2. a. i

RACECOURSE ESTATE DEVELOPMENT PLAN

Figure 2. a. ii

EASTERNVIEW ESTATE DEVELOPMENT PLAN



SCHEDULE - Diagrams & illustrations

1. Objective

The objective of the diagrams and illustrations is to assist interpretation of certain provisions of the Development Guidelines Tables in Divisions B to H of this part.

2. Application

This schedule contains diagrams and illustrations referred to by other provisions of this part.

List of Figures:

Figure 1: Potential to decrease width of lots with rear lane access.

Figure 2: Street & lot orientation in subdivisions.

Figure 3: Appropriate use of culs-de-sac.

Figure 4: Schematic road & street hierarchy.

Figure 5: Subdivision next to environmental land or public open space.

Figure 6: Subdivision next to a specified road.

Figure 7: Earthworks & retaining structures on lot boundaries.

Figure 8: Sample urban context plan, for master planning.

Figure 9: Sample site context plan, for master planning.

Figure 10: Sample site analysis plan, for master planning.

Figure 11: Sample site block/massing plan, for master planning.

Figure 12: Principles for master planning of subdivisions in greenfield areas.

Figure 13: Minimum landscaped area - inclusions and exclusions.

Figure 14: Limiting excavation reduces impact on adjoining dwellings.

Figure 15: Limiting excavation creates a harmonious streetscape.

Figure 16: Primary street setbacks.

Figure 17: Façade articulation.

Figure 18: Climate management on western façades.

Figure 19: Private open space & principal private open space.

Figure 20: Maximum garage widths for dwelling houses.

Figure 21: Sunlight access diagram.

Figure 22: Design provides sunlight in mid-winter and shade in mid-summer.

Figure 23: Privacy design options.

Figure 24: Boundary treatments.

Figure 25: Pedestrian & vehicular access.

Figure 1: Potential to decrease lot widths with rear lane access.

Figure 2: Street & lot orientation in subdivisions.

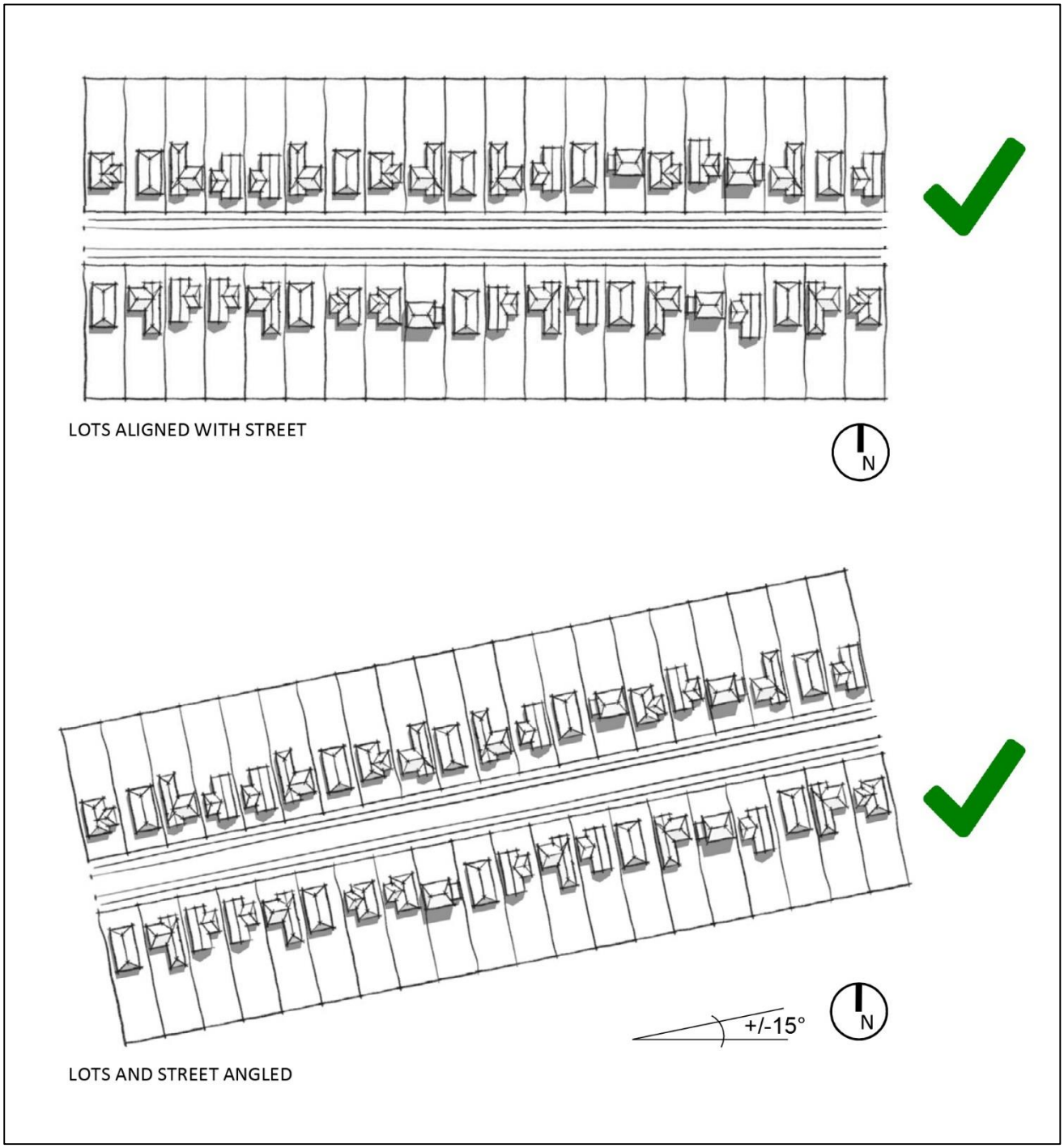
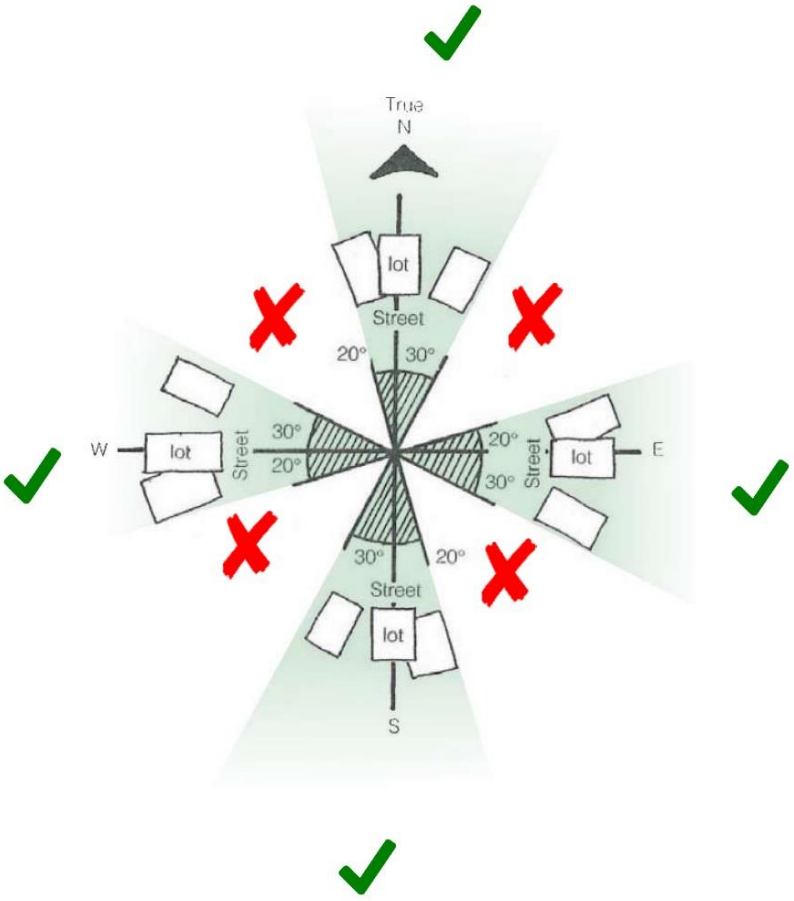


Figure 2: Street & lot orientation in subdivisions (cont.).



SOURCE: ENERGY EFFICIENT HOUSING MANUAL, ENERGY VICTORIA, 1994

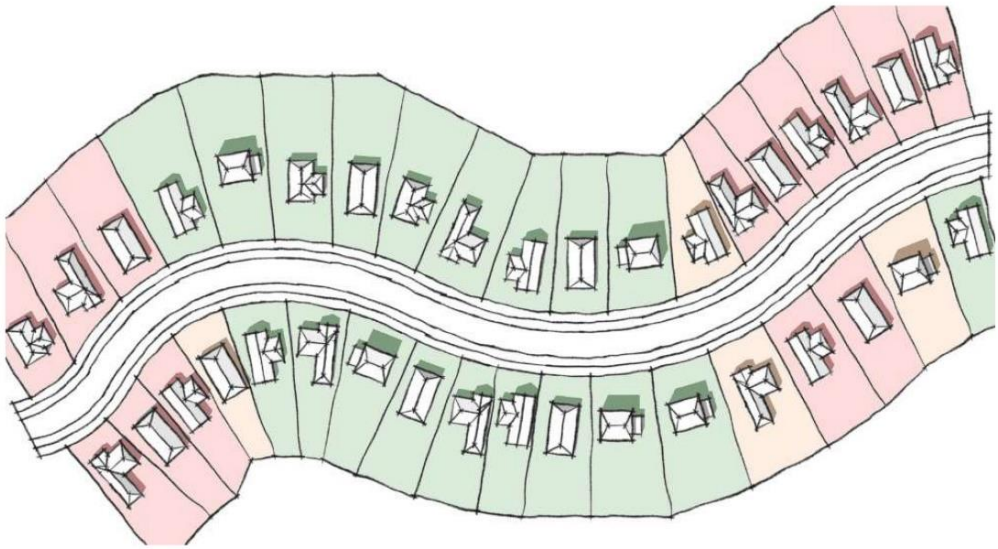


Figure 3: Appropriate use of culs-de-sac.

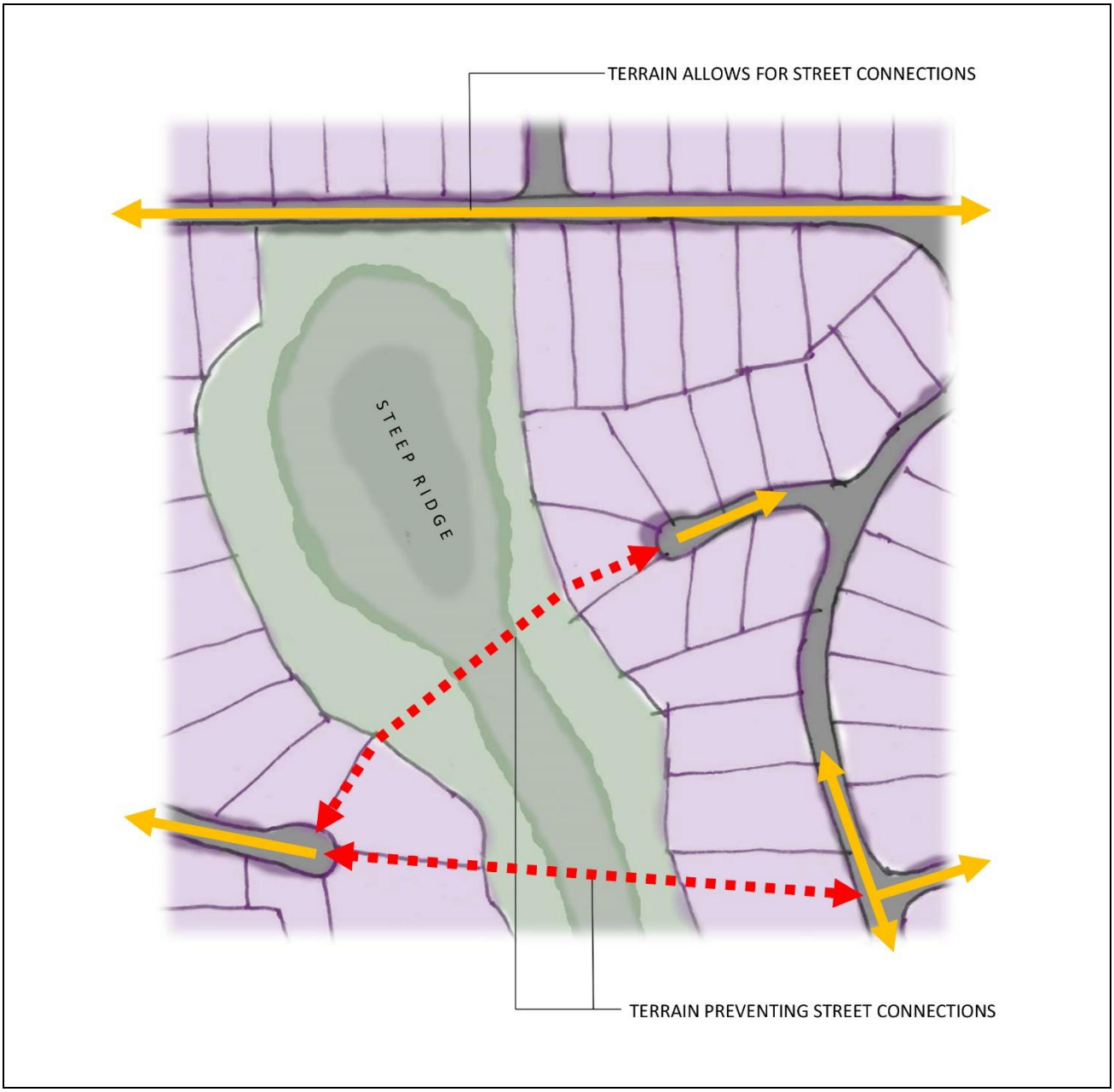


Figure 4: Schematic road & street hierarchy.

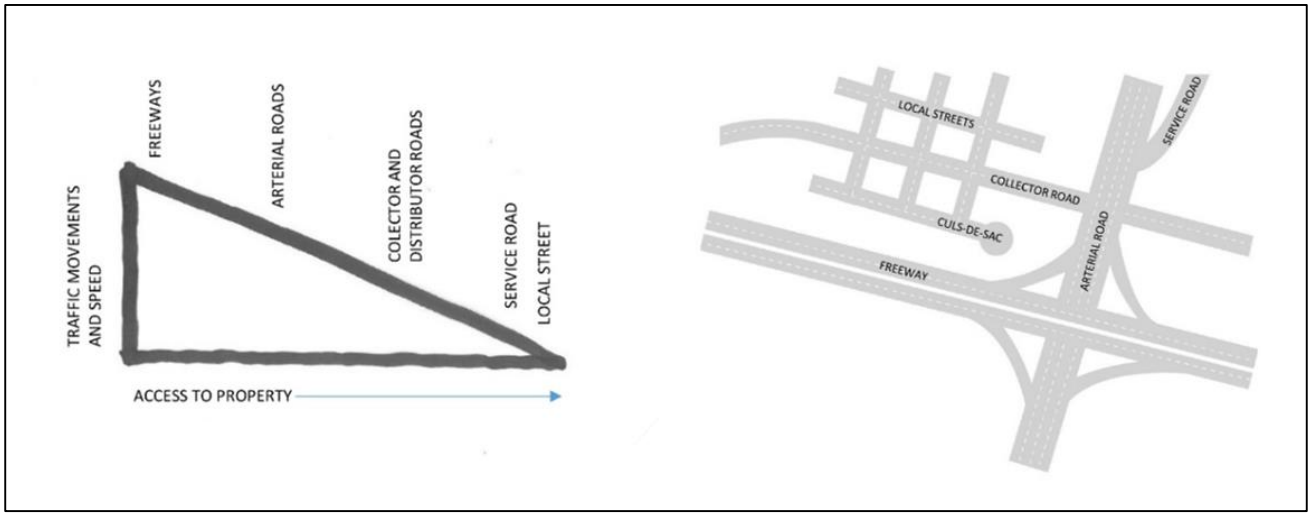


Figure 5: Subdivision next to environmental land or public open space.

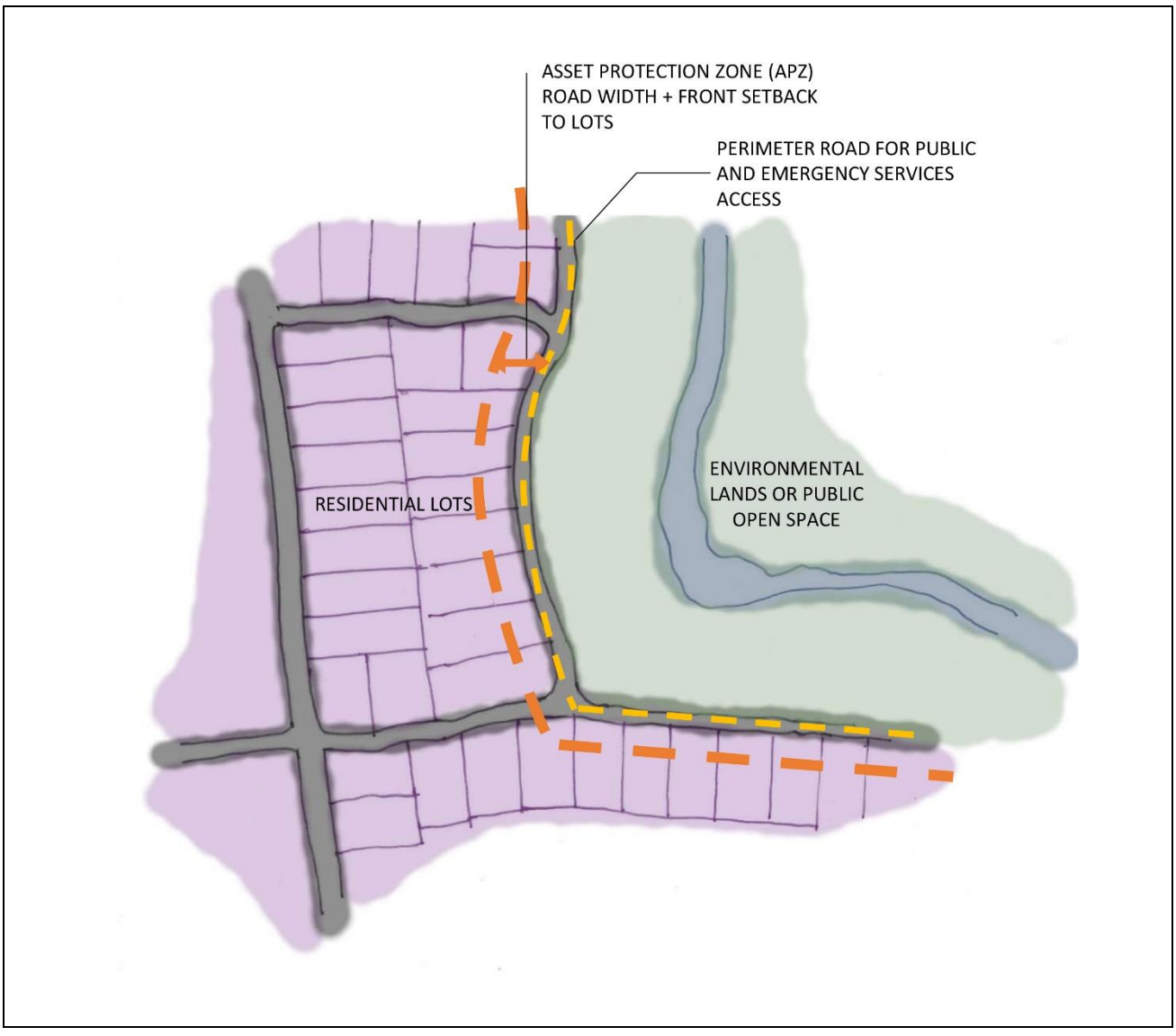


Figure 6: Subdivision next to a specified road.

Figure 7: Earthworks & retaining structures on lot boundaries.

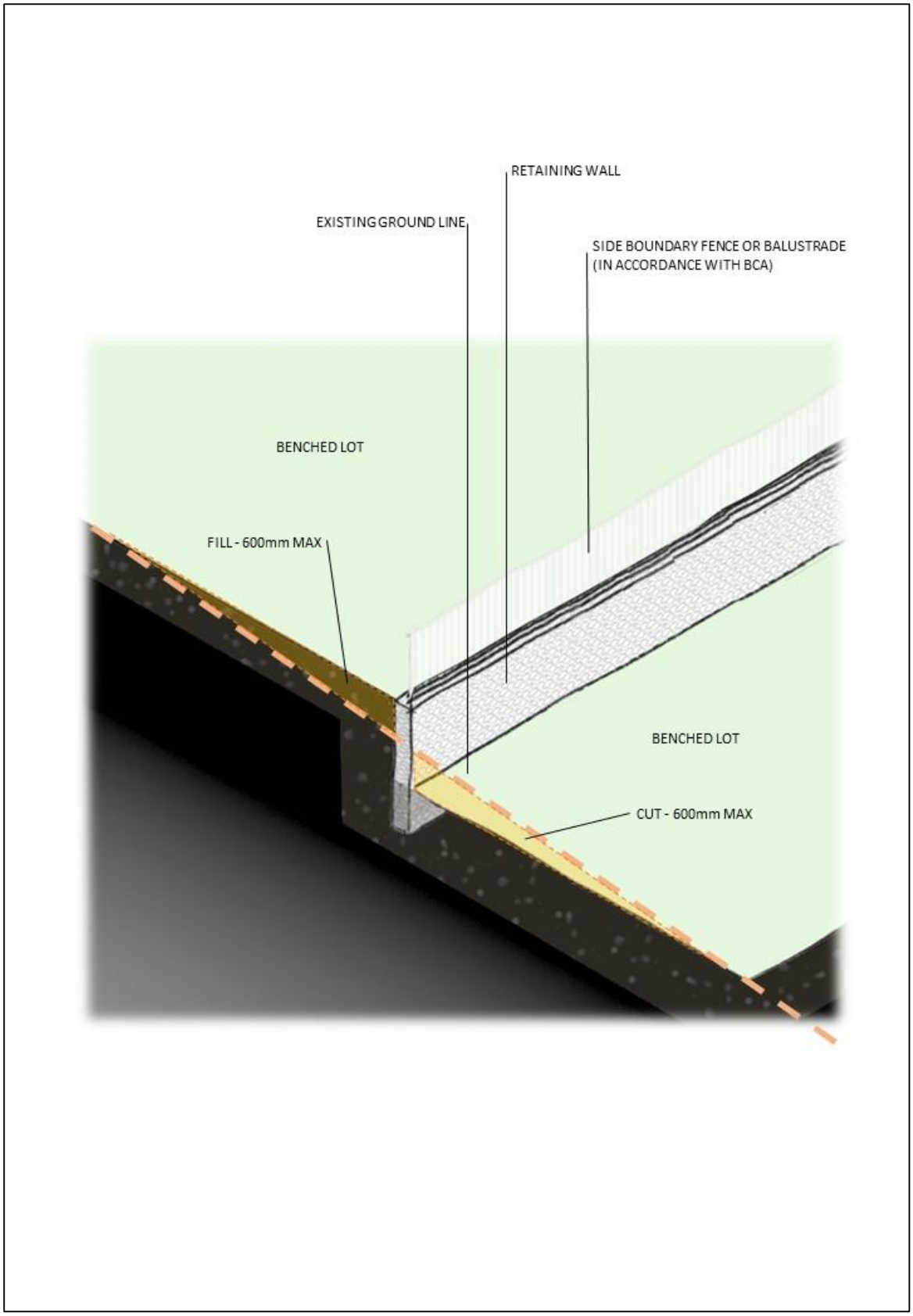


Figure 8: Sample urban context plan, for master planning.

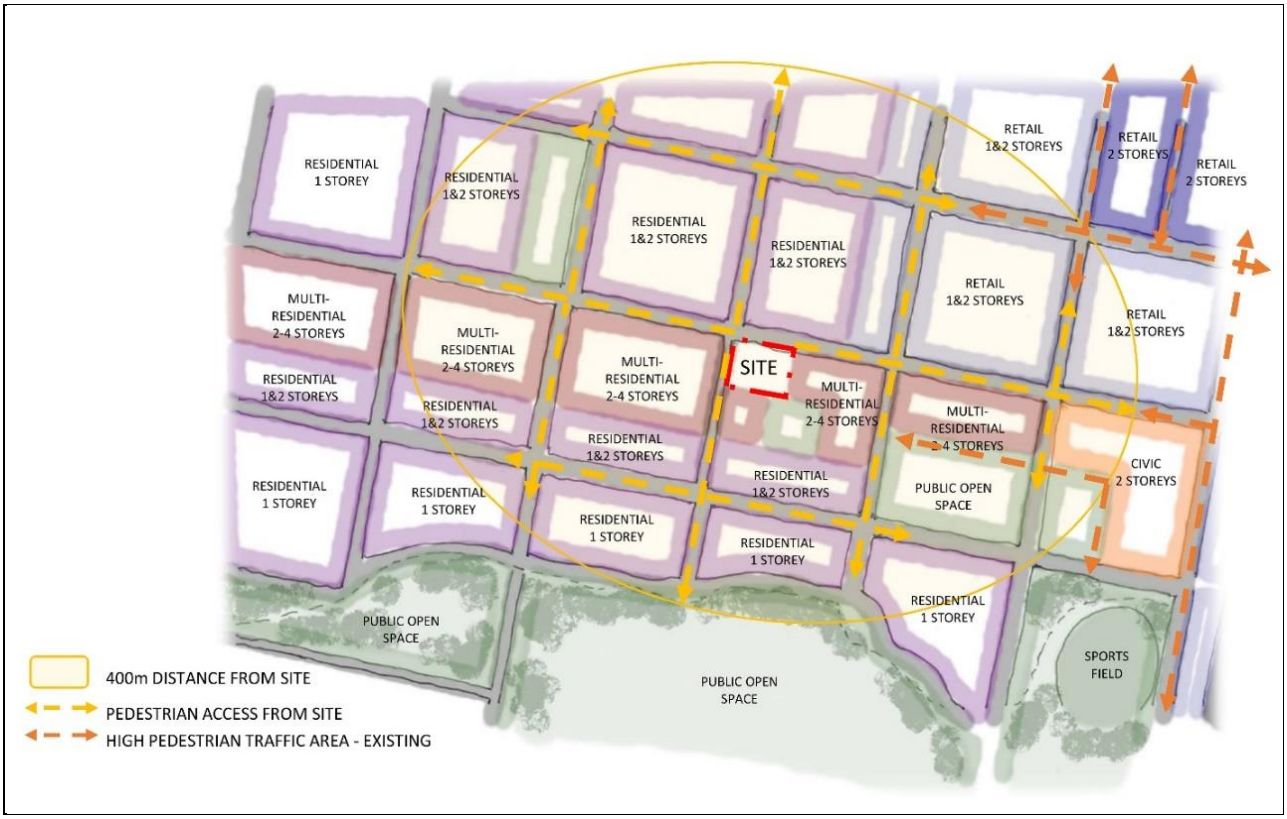


Figure 9: Sample site context plan, for master planning.

Figure 10: Sample site analysis plan, for master planning.

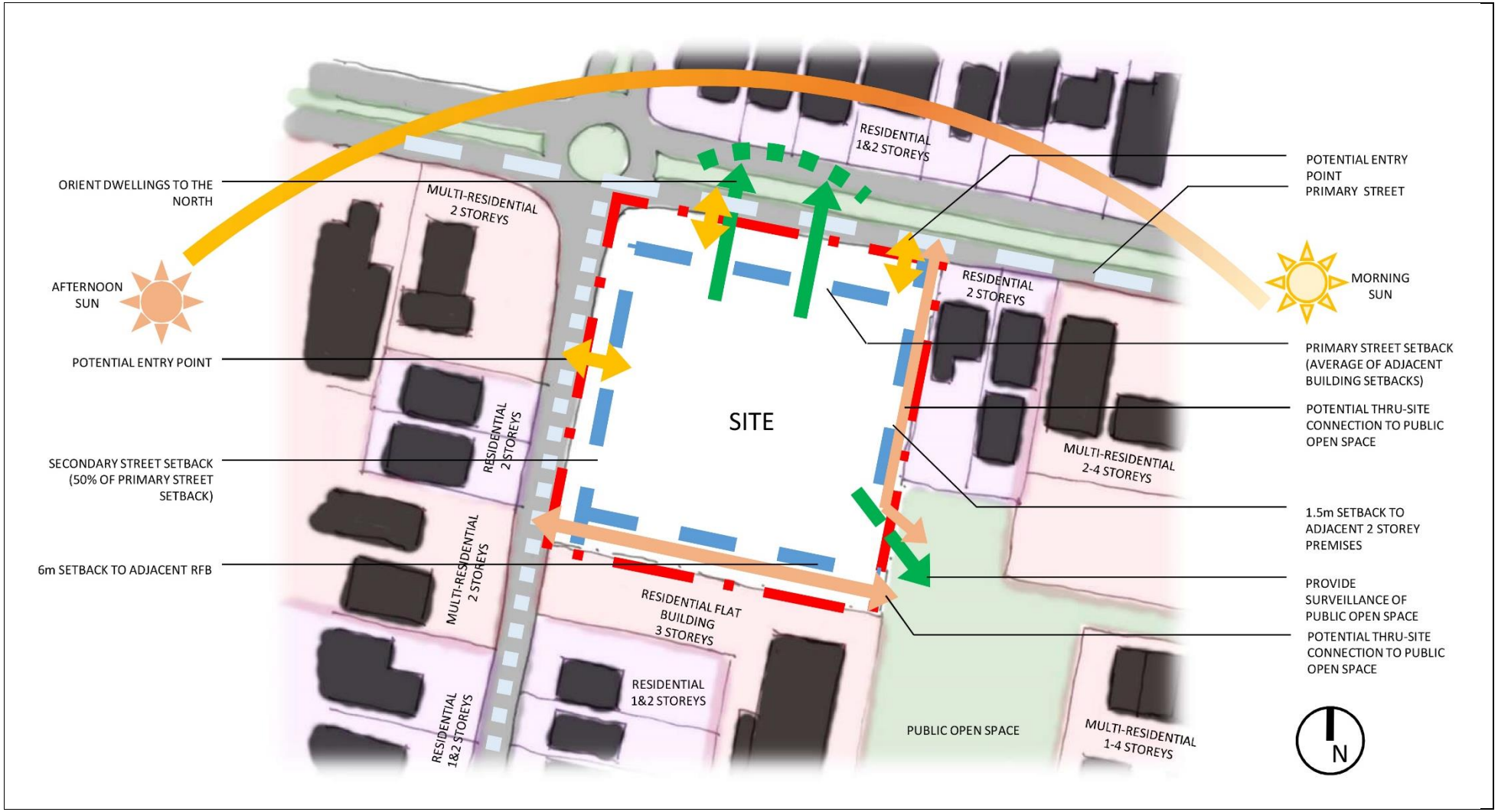


Figure 11: Sample site block/massing plan, for master planning.

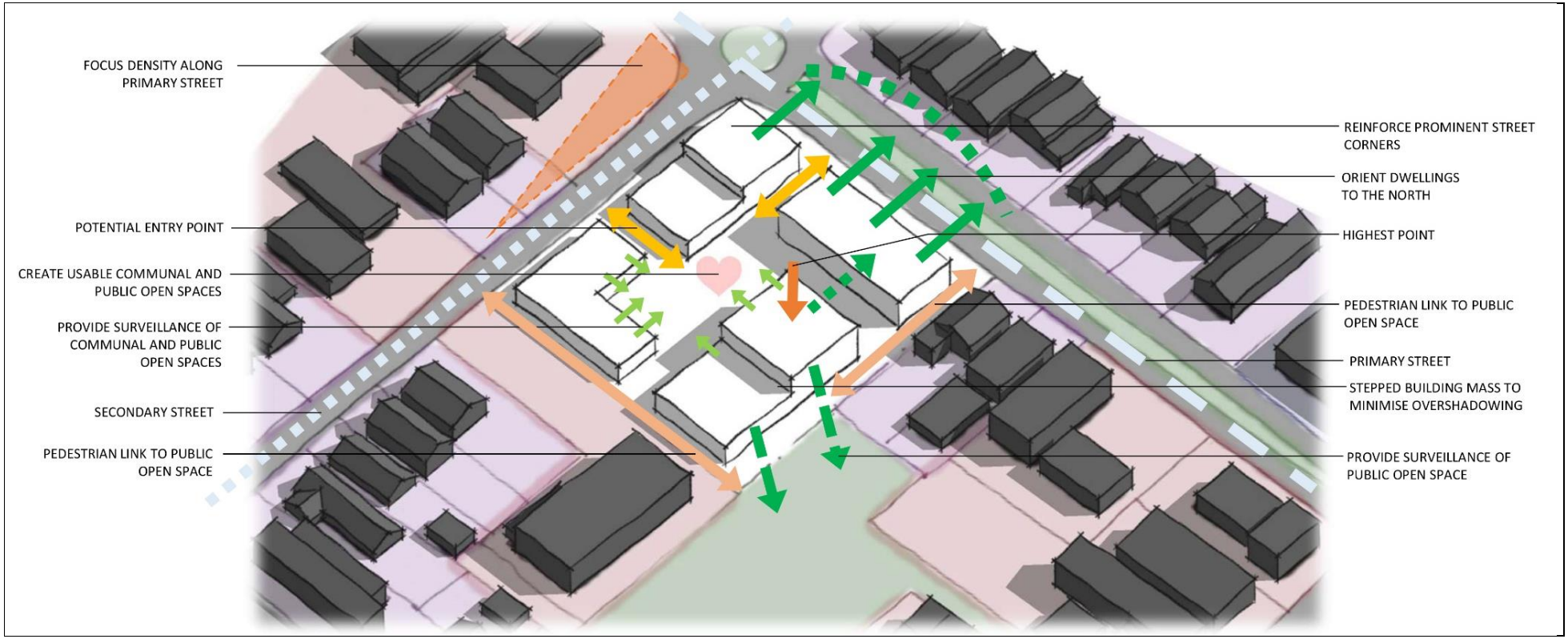


Figure 12: Principles for master planning of subdivisions in greenfield areas.

Figure 13: Minimum landscaped area – inclusions and exclusions.

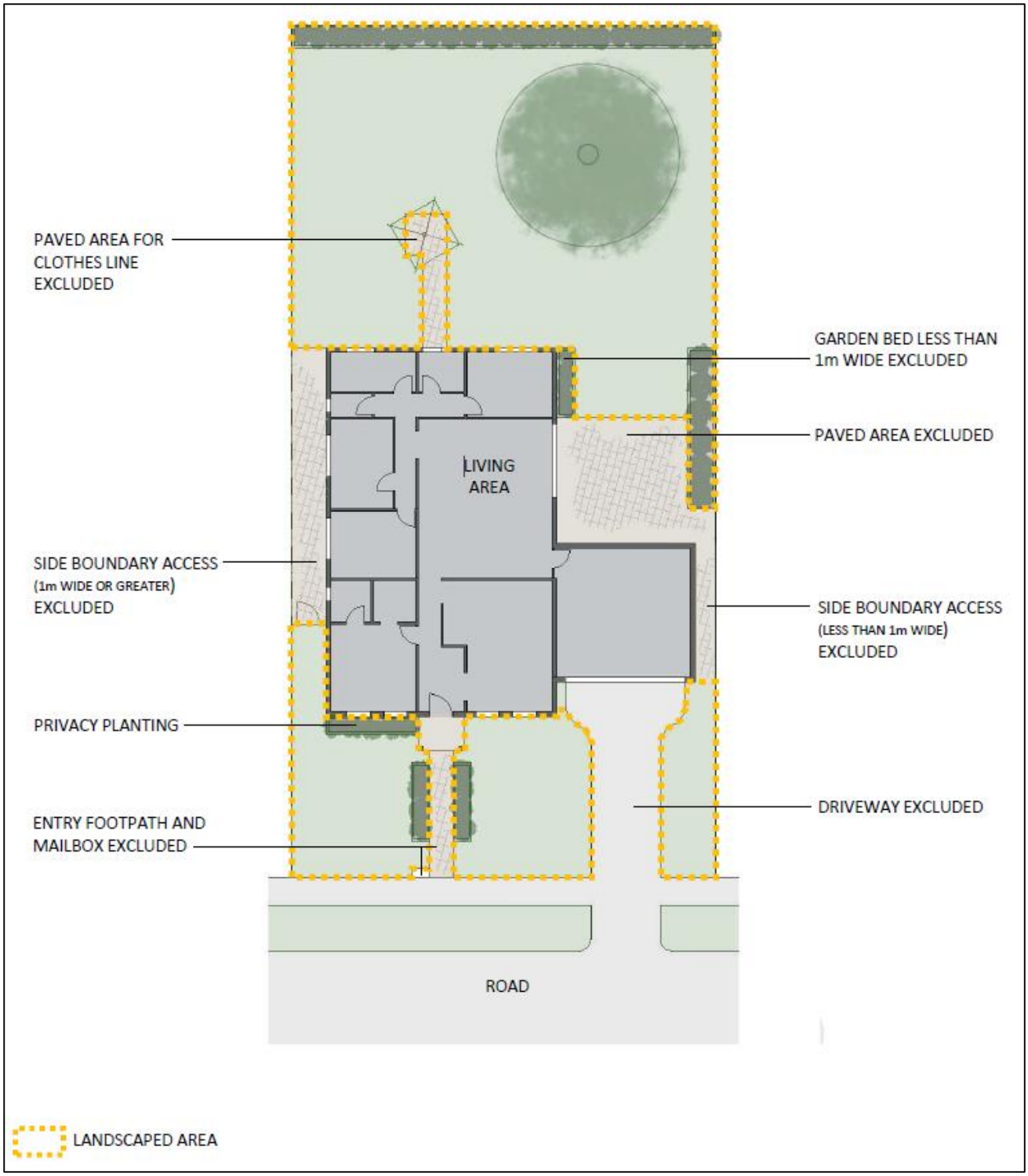


Figure 14: Limiting excavation reduces impact on adjoining dwellings.

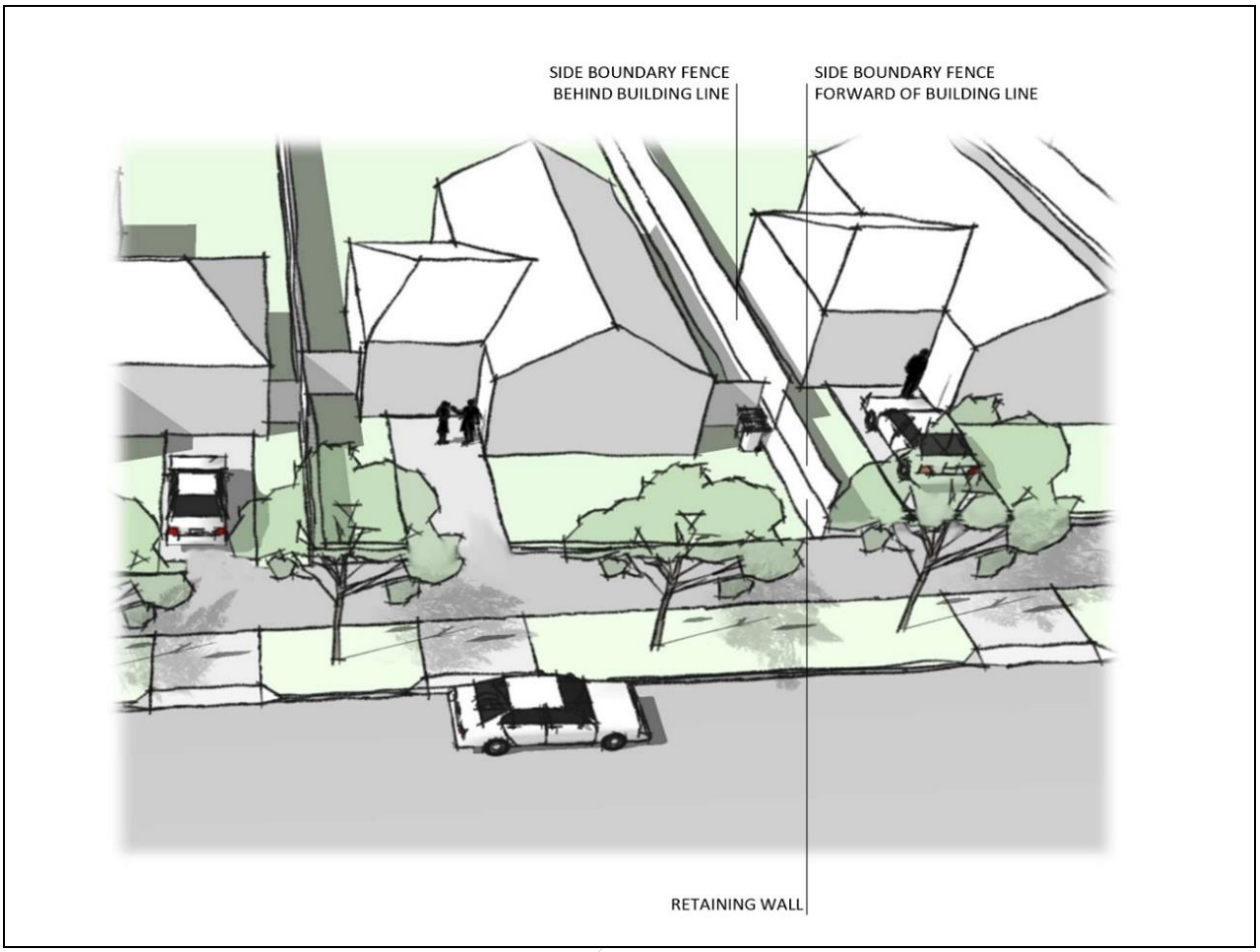


Figure 15: Limiting excavation creates a harmonious streetscape.

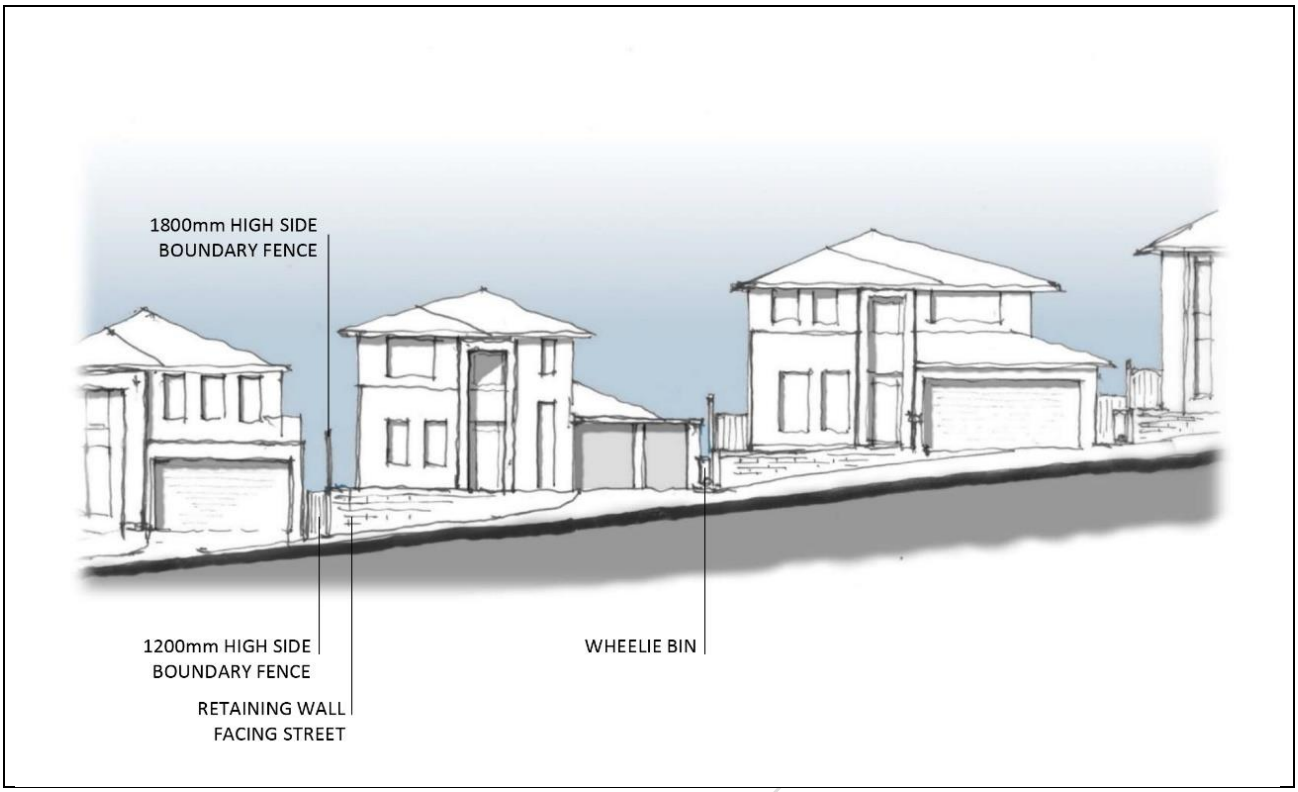


Figure 16: Primary street setbacks.

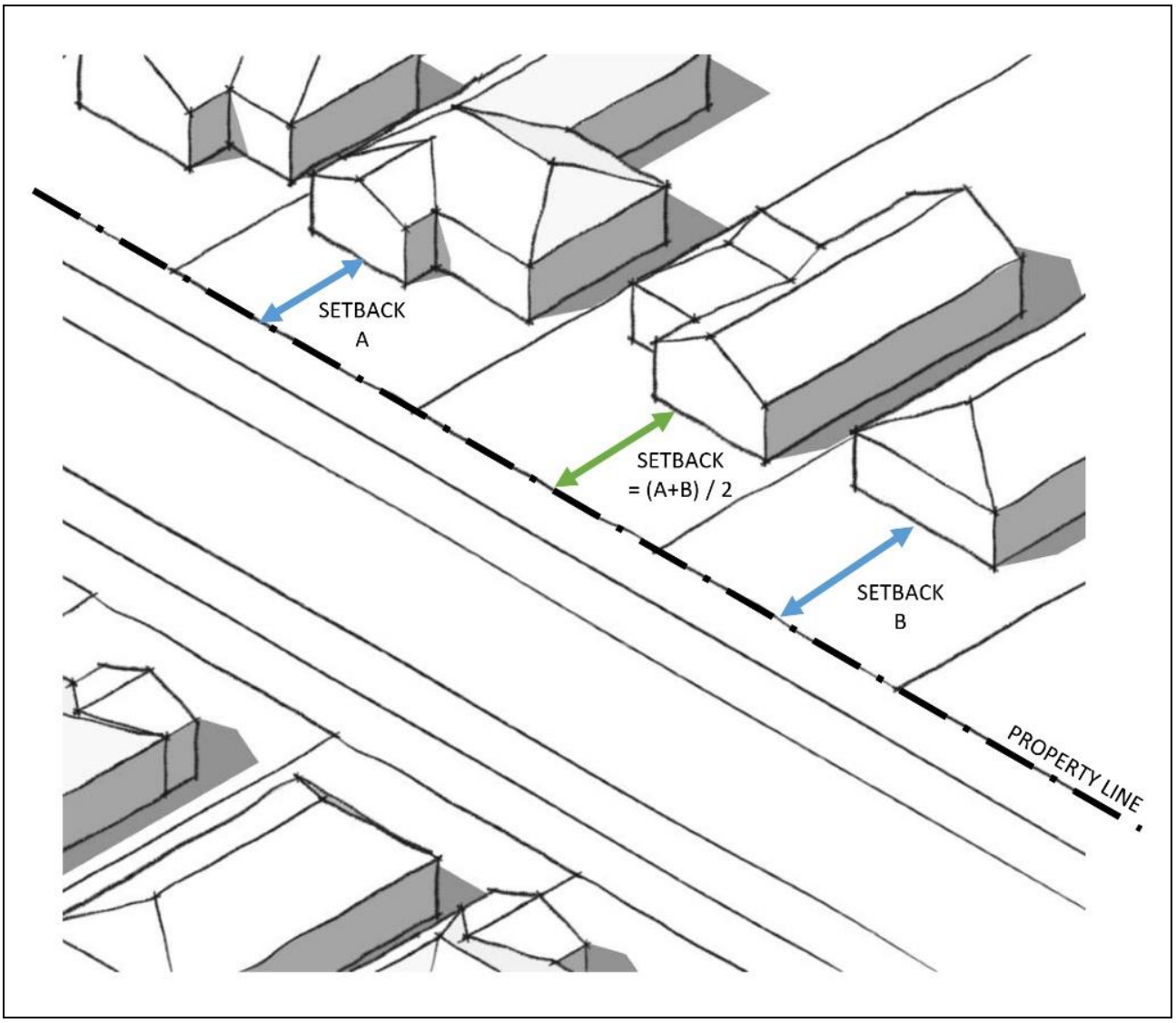


Figure 17: Façade articulation.

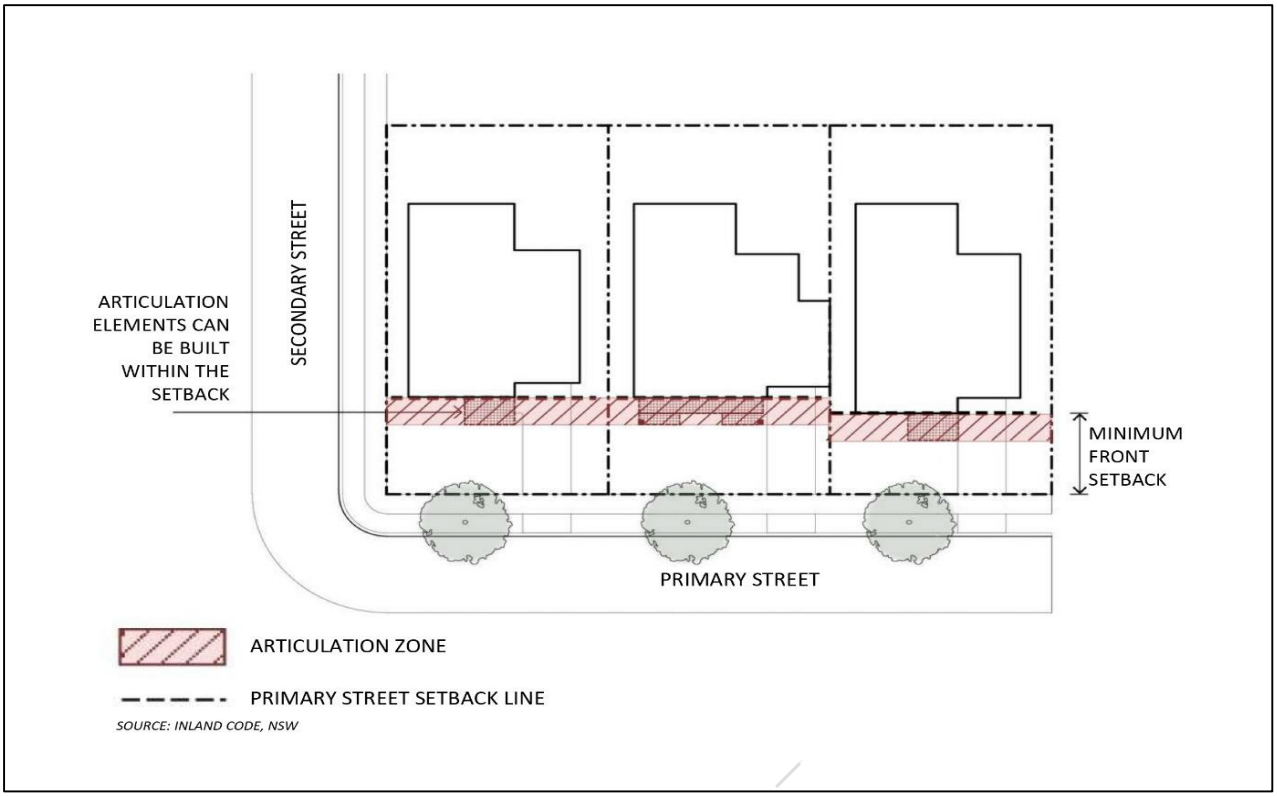
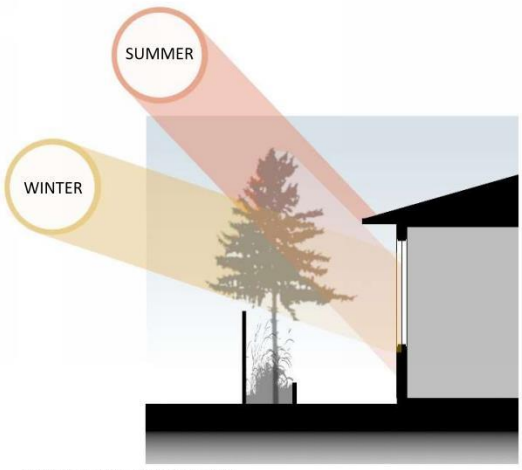
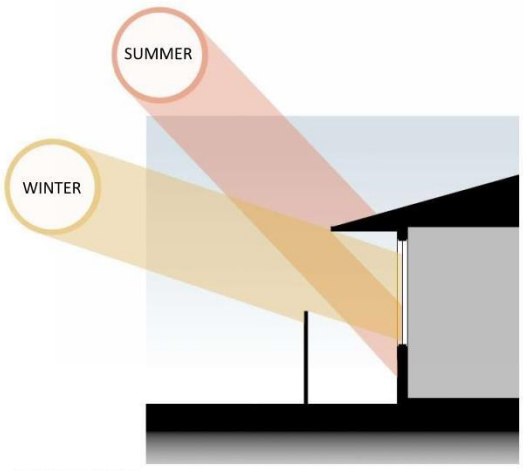


Figure 18: Climate management on western façades.



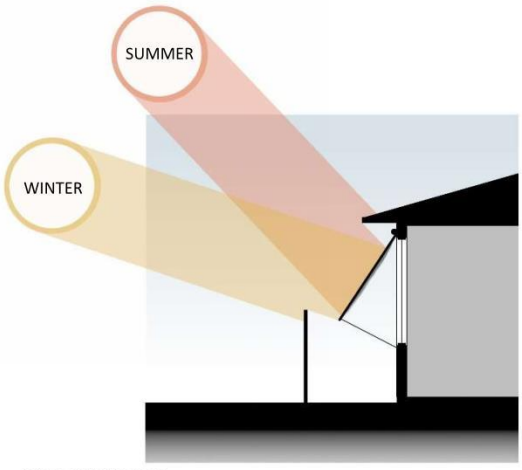
LANDSCAPING AT BOUNDARY

Landscaping can reduce solar heat gain on western facades in summer by screening direct sunlight. A deciduous tree will block direct sun in summer, and allow sun penetration in winter.



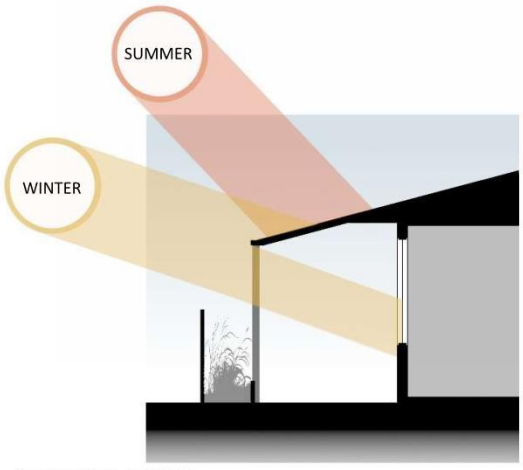
EXTENDED EAVES

Larger eave overhangs can reduce solar heat gain on western facades by blocking summer sun from hitting the façade.



WINDOW AWNINGS

Awnings can help reduce solar heat gain within dwellings by blocking sun penetration and can be retracted to allow sun access in winter months. Awnings typically only cover windows however, and therefore may not alleviate any heat gain of the façade material itself.



VERANDAH OR PERGOLA

Verandas or pergolas will screen a façade from western sun and solar heat gain and can also incorporate louvered or operable systems that can allow winter sun penetration.

GENERAL NOTES:

- Sun angles shown are not specific to a time of day or date, but are representative of the typical angles experienced in summer and winter months.
- Diagrams do not consider overshadowing by neighbouring structures, boundary treatments, or landscaping elements.
- Devices depicted should be considered in the context of other DCP guidelines, such as landscaped area requirements, privacy, and overshadowing.

Figure 19: Private open space & principal private open space.

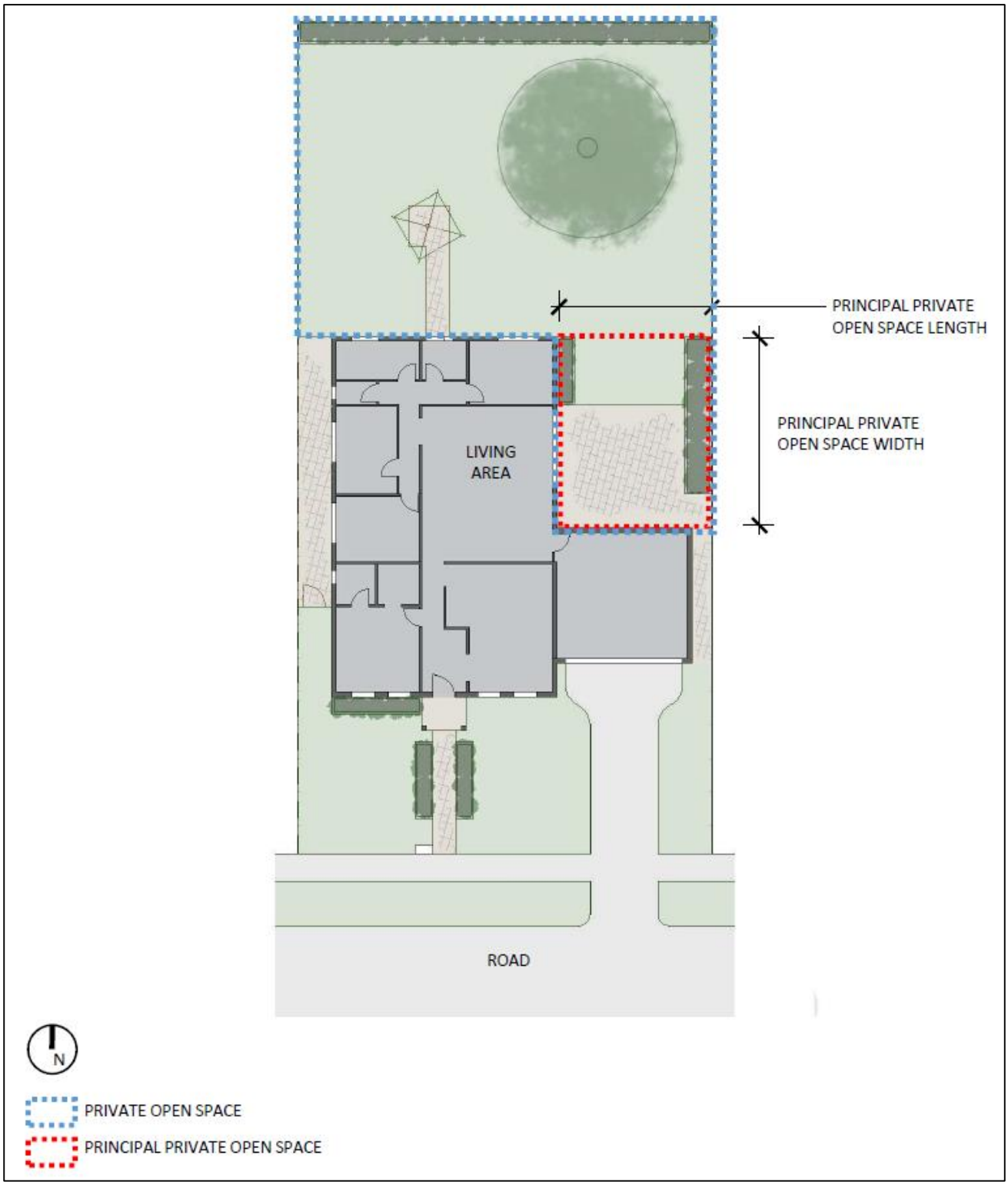


Figure 20: Maximum garage widths for dwelling houses.

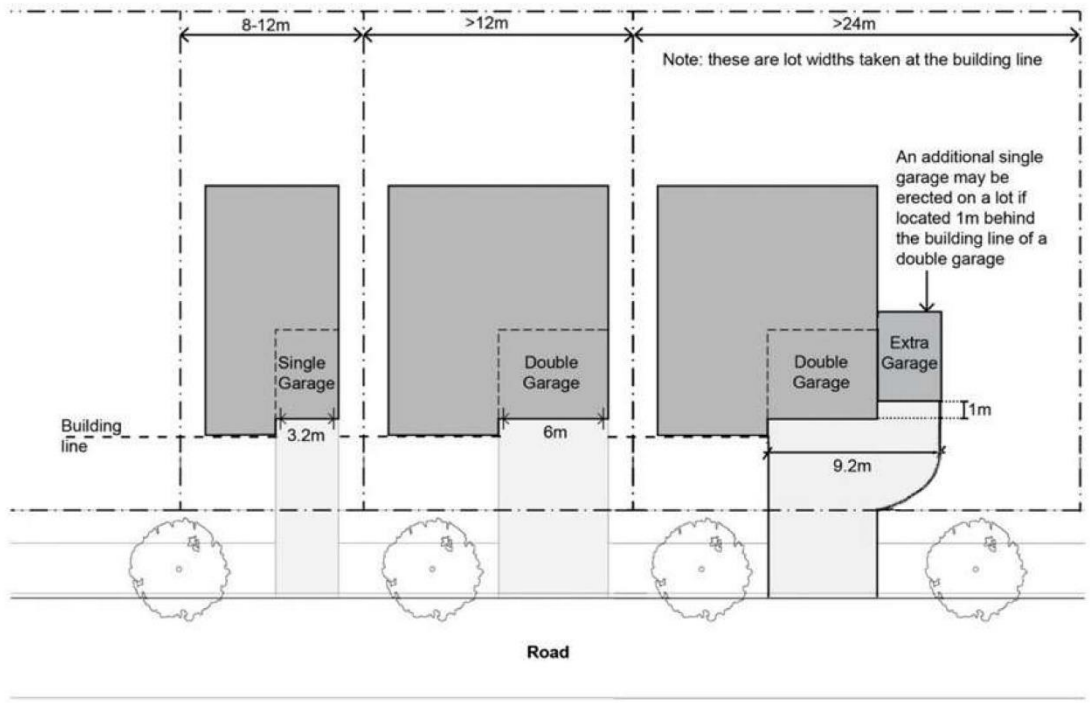


Figure 21: Sunlight access diagram.

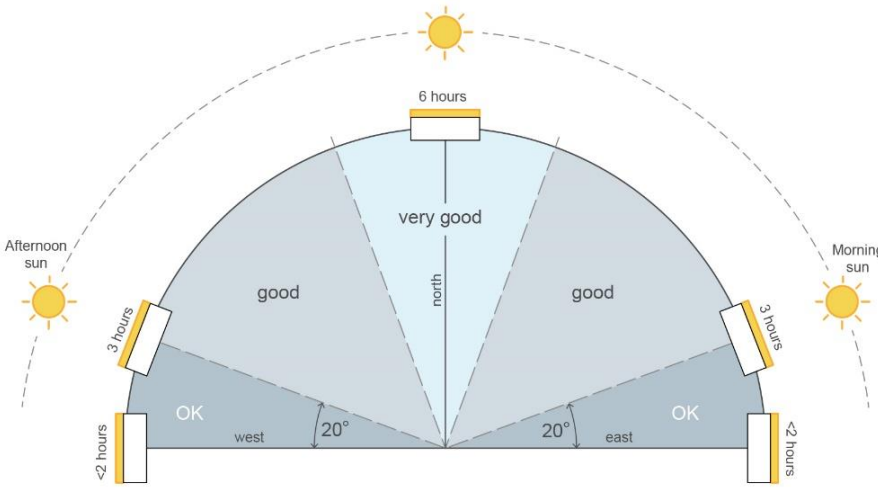


Figure 4A.1 The hours of sunlight that can be expected in mid winter are directly related to the orientation of the facade. This diagram shows the optimal orientation for habitable rooms and balconies
Note: An additional design and assessment tool is provided at Appendix 5 to assist in confirming the level of sunlight access to apartments

Sunlight hours expected in mid-winter are directly related to the façade's orientation (Apartment Design Guide).

Figure 22: Design provides sunlight in mid-winter and shade in mid-summer.

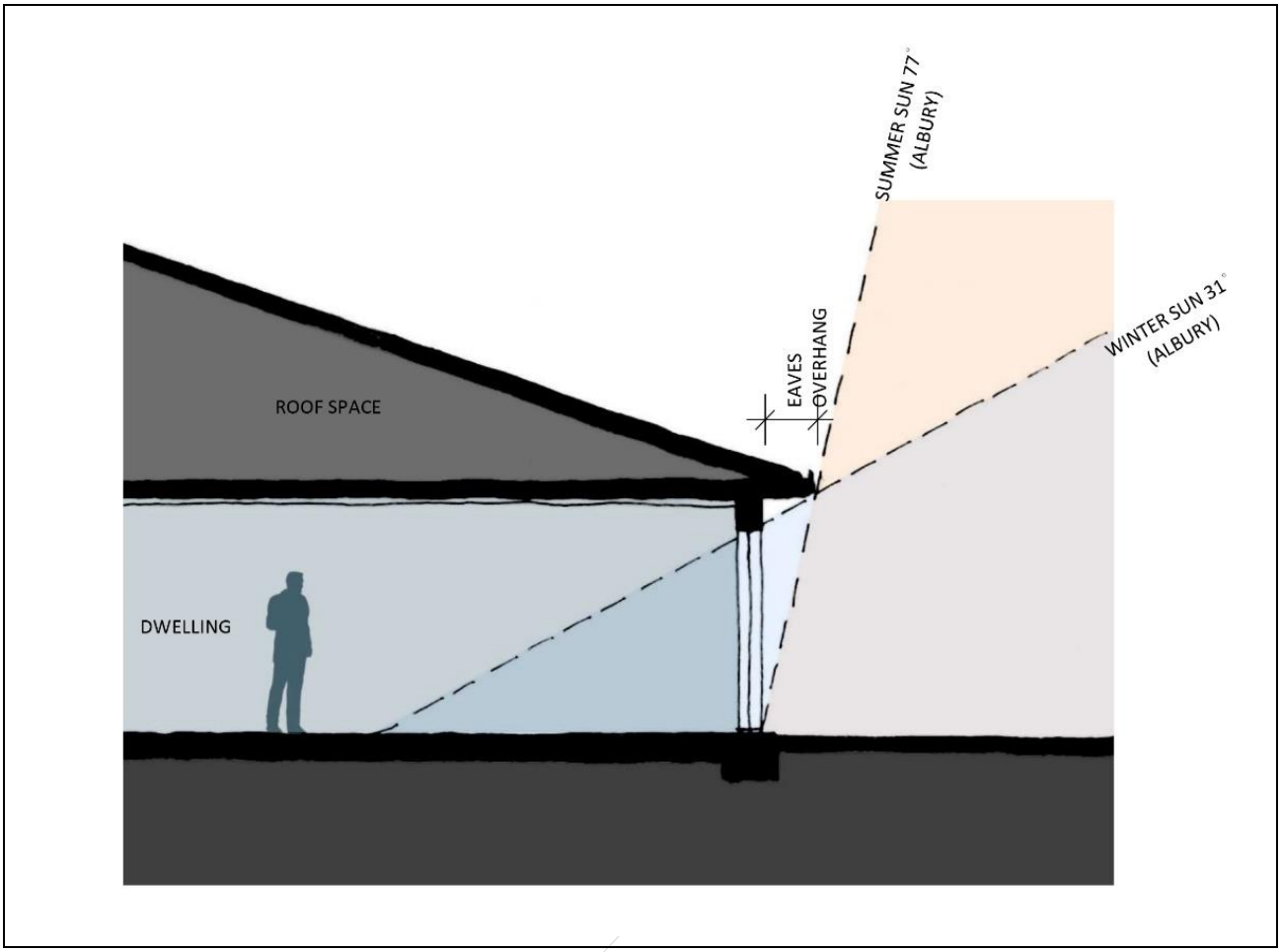


Figure 23: Privacy design options.

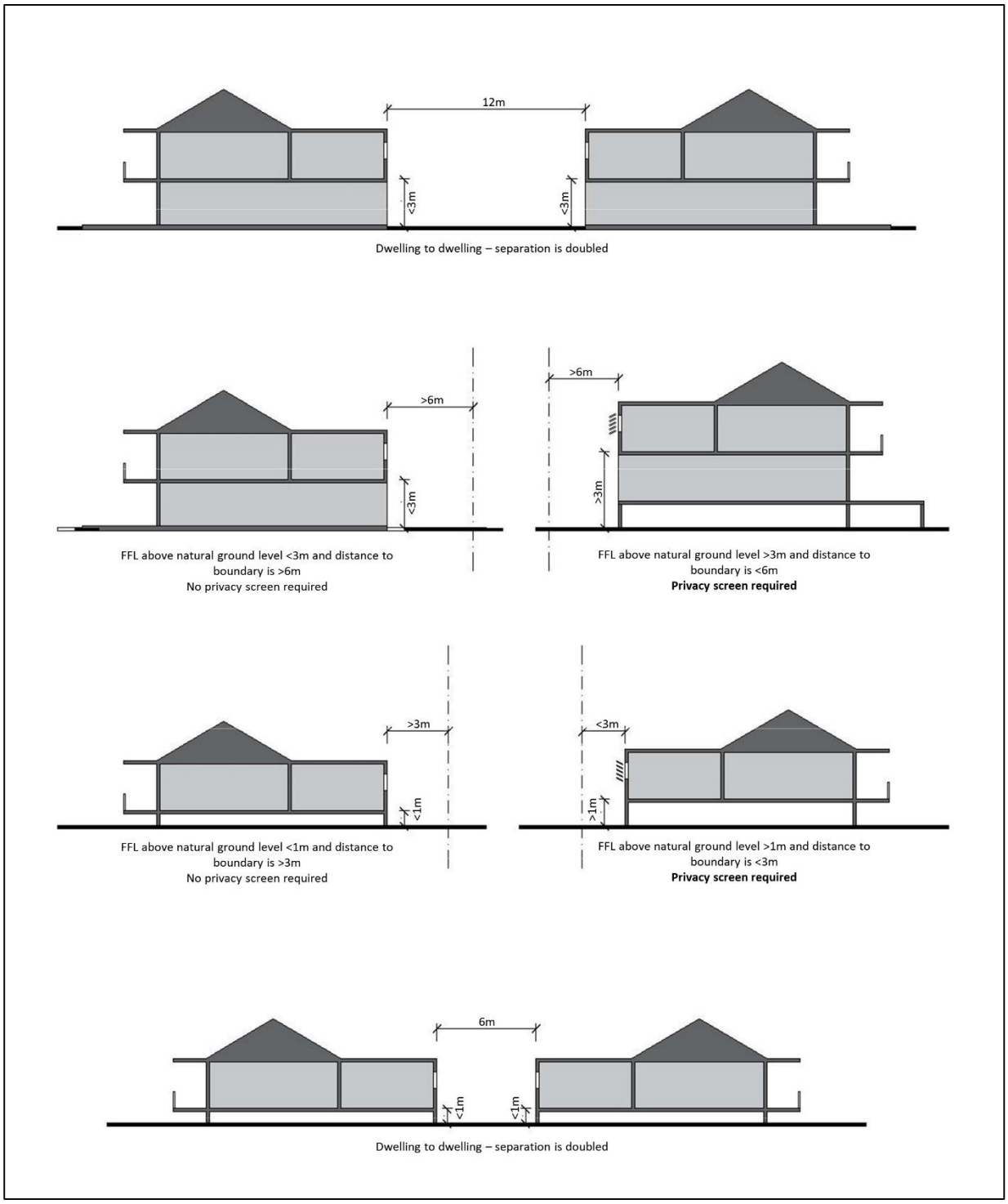


Figure 24: Boundary treatments.

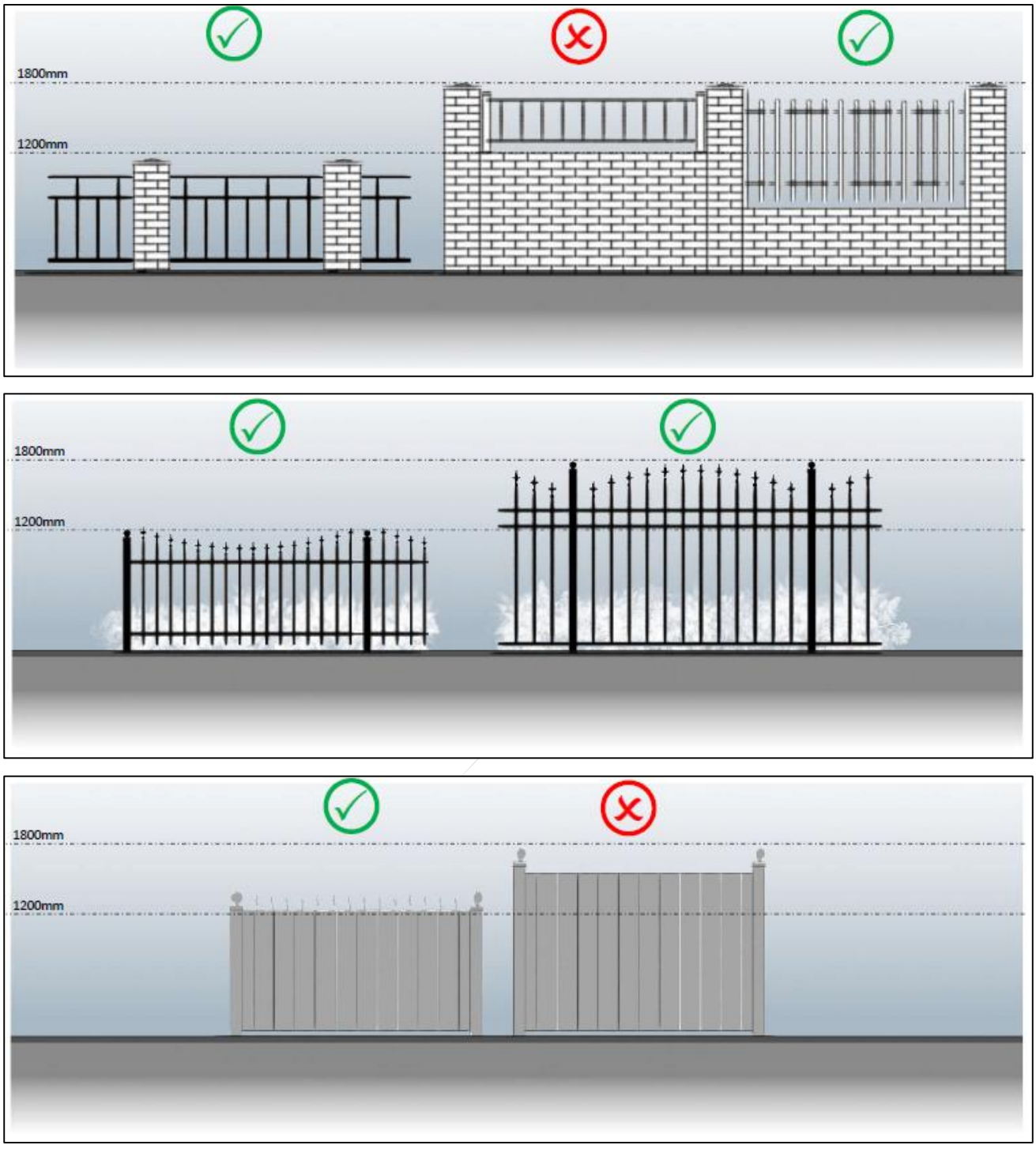


Figure 25: Pedestrian & vehicular access.